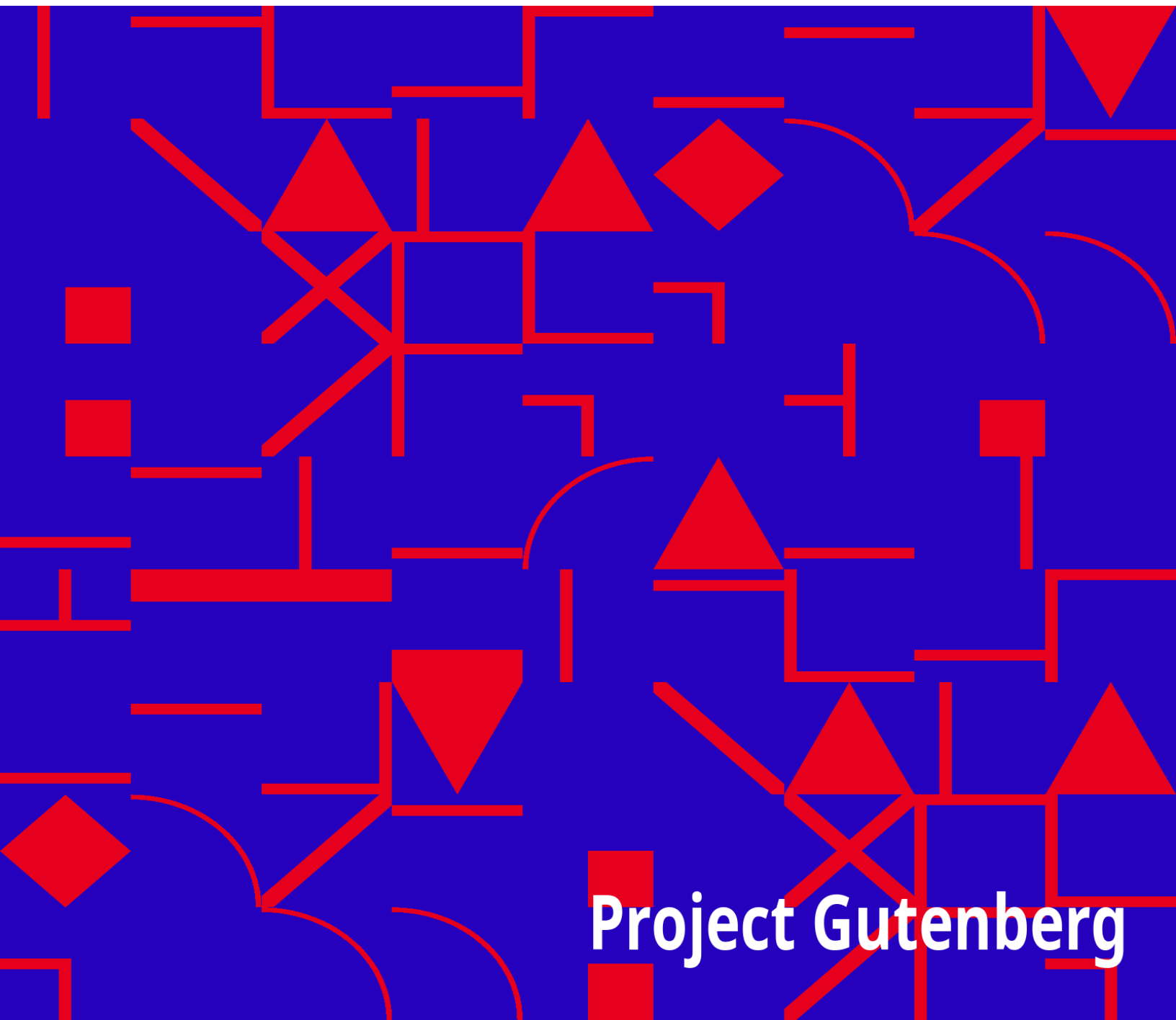


Belford's Magazine, Vol. II, No. 3, February 1889

Various



Project Gutenberg

**Belford's Magazine, Vol. II, No. 3, February
1889**

Various



Project Gutenberg

The Project Gutenberg eBook of Belford's Magazine, Vol. II, No. 3, February 1889

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Belford's Magazine, Vol. II, No. 3, February 1889

Author: Various

Release date: December 21, 2012 [eBook #41678]

Most recently updated: October 23, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/41678

Credits: Produced by Barbara Tozier, Bill Tozier, JoAnn Greenwood
and the Online Distributed Proofreading Team at
<http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK BELFORD'S
MAGAZINE, VOL. II, NO. 3, FEBRUARY 1889 ***

Transcriber's Note

The following Table of Contents was not present in the original and has been added for the convenience of readers.

Remaining transcriber's notes are located at the end of the text.

[A FEW PRACTICAL FACTS FOR SENATOR EDMUNDS](#)

[IRAR'S PEARL](#)

[THE FIRST REGIMENTS OF U. S. COLORED TROOPS](#)

[THE OLD TUNE](#)

[BOTH SIDES OF THE COUNTER](#)

[IRISH NORAH TO ENGLISH JOHN](#)

[BELLA'S BUREAU](#)

[A SHOT ON THE MOUNTAIN](#)

[EDITORIAL DEPARTMENT](#)

[THE PASSING SHOW](#)

[REVIEWS](#)

[A STORM ASHORE](#)

BELFORD'S MAGAZINE.

VOL. II.

FEBRUARY, 1889.

No. 3.

A FEW PRACTICAL FACTS FOR SENATOR EDMUNDS.

I am a physician practising in a small manufacturing town, and am doing very well so far as getting business goes—might even be able to save a little money if it were not for the bad debts. They make my income pretty small, considering the amount of hard work I am compelled to do; and the time spent in endeavoring to collect my bills takes a great many hours which, in justice to my patients who pay, ought to be used in brushing up my medical studies and trying to keep abreast with the rest of the profession.

It is hard to get out of a warm bed at night and tramp off a mile or so to look after a patient when you are not certain of ever getting your pay, and it seems to grow worse instead of better. The number of people who, because of their poverty, need a doctor the most are on the increase; and yet so long as they are not poor because of vicious habits, one really hasn't the heart to refuse when called upon. I hear a great deal said about the prosperity of the workingman and the high wages he receives, but observe as a matter of experience that only a few are able to save enough to carry them through a few weeks' illness, let alone paying the doctor, who is forced to wait months and sometimes even years for his pay, getting it then a dollar or two at a time.

To be sure, some of my patients own homes of their own, but the most of them are in debt, a mortgage being about as regular an attachment to a workingman's house as a chimney.

Wages, too, are not quite so high as they were when I began practice: they fell pretty low at one time, and then, when human nature could endure it no longer, came a strike. The employers were horrified; there never had been a strike in this town before: the working men, women, and children all received high wages. "There is John Smith, for instance—earns eighty dollars a month. There is Miss Jones, who makes two dollars a day. There are some who earn even more." True enough! But one day I was called to

see John Smith lying dead on his kitchen floor; fell dead on coming home from work, died in the harness, worked to death; a young man at that, and ought to have been good for twenty years more. His employers wouldn't have allowed one of their horses to work that way.

I remember the first time I ever saw Miss Jones—a bright, pretty, red-cheeked girl, fresh from the country and proud to think that she could earn her own living; to-day you would not recognize her, bent, haggard, and worn; the rosy cheeks all gone; and the sunken chest and hollow cough too plainly prophesy the end is not far off. High wages? Yes! for flesh and blood are cheap.

Well, the strikers compromised, got a raise in wages of five per cent., with pay once a month instead of half at the end of the month, and the balance at the end of the year, as had been the custom. Most of the employers gave up the "pluck-me store" system, and we had better times.

Every year there comes family after family, all skilled working men and women, from over the ocean, and I begin to see men standing on the street corners looking for work, while every now and then one of the employers will cut down wages a little in some department of his factory.

I see the men and boys who were born here crowded out of their places by the imported labor, leaving town, and later hear of them beginning life over again in some western village, or taking up government lands on the prairies. If it were not for the emigration out of the town, wages would scarce be enough to support life, so fast does immigration to the town keep up with the demand for labor.

The place used to be full of little shops, and the business was conducted by hundreds of small manufacturers who were but one remove from their men; in fact, it was no uncommon thing for a man to begin manufacturing for himself on the savings from two or three years' labor.

But now these small shops are used as tenements, and a dozen large firms do nearly all the business, crowding the few small manufacturers that are left closer and closer to the wall every year. This is because much of our raw stock has to be imported: we can make only a few kinds of our class of goods in this country. The large manufacturer, who is generally an importer

also, is thus able to offer a full line of goods to the jobber, which the smaller fry can't do.

The business is a highly protected industry, the people being taxed by a tariff of fifty per cent to support it.

In this connection a few figures may prove instructive:

The total value of gloves manufactured during the census year was	\$5,718,539
For making which, labor received as wages	1,245,013 or 22%
And the raw material cost	3,404,937
Leaving a surplus to the manufacturers of	1,068,589 or 23%
Yet their capital invested was only	2,690,048

The tariff of fifty per cent is sufficient therefore to enable the manufacturer to pay, not the difference in wages between European labor and American, but *all* the wages and twenty-eight cents on the dollar's worth of finished product besides; while—there being no tariff on labor—foreign labor comes to compete with home labor just so fast as the difference in wages will warrant the making of the journey from the old country to the new.

The tariff on gloves in an unfinished state is, however, but twenty per cent, and at that rate many gloves are imported so nearly finished as to require but little labor to fit them for the market: and here the large dealer who imports is able to obtain another serious advantage over the small dealer, and at the same time, while pretending to protect labor, defraud it.

The closing of the small shops, and the consequent driving of our people into large factories, hurts the best skilled workman in that it lessens the number of employers competing for his services. I have been a protectionist in the past, for I was taught to believe that protection raised wages; but the results of a careful inquiry as to cause and effect have shown me pretty conclusively that it does not and can not.

I have talked with many workingmen who are beginning to perceive that the tendency of wages to fall a little from time to time is due to the competition of the "pauper labor of Europe," which coming to this country, underbids them at the shop door, takes away their work, and turns them out to shift for themselves; while the employer, who is protected by a duty of fifty per cent, gets his labor in the lowest market and sells his goods in the highest.

Said a glove-cutter to me the other day: "Doctor, if all the workingmen born and brought up here and all that have come from the old country had remained here, wages would not be fifty cents a day. I understand very well what keeps wages up in America: it's the great West, with its free land acting as a safety valve; and the worst is that so much of it has been given to railroads or sold to cattle syndicates for a mere song. When the remaining free land is appropriated, God help the workingman!

"Yes, we're protected in all that we have to buy: food, clothing, and shelter, in a way that increases the cost to us; but in what we have to sell, our labor, we have no protection at all. They give us good wages, for if they did not we would emigrate to the West and leave them, and by reason of this confounded tariff they put up the price of all we need so high that wages, measured by their purchasing power, are not so large after all. If the difference in real wages was so great as the protectionists claim, there would be more immigrants coming from Europe in one day than do now in a year."

The workingmen have been educating themselves in the last four years, and are no longer to be deceived by superficial comparisons of the differences in wages between countries; they will also examine into the differences in conditions, productive power, and the like, which the protectionist statistician omits to do.

WILLIAM C. WOOD, M. D.

IRAR'S PEARL.

"One hundred golden pieces for this slave! Who bids?—who bids?"

"One hundred golden pieces? Surely the man has some special talent to be valued so highly."

The speaker stopped, and drew near to the crowd that had gathered about the group of captives crouched in the center of the market-place. As he approached, one among the gathering said:

"Room for the vizier; room, room!"

And the assembled people drew back on either hand, leaving a pathway clear.

The man went forward, followed by his attendants, and faced the inner group of the crowd, a picturesque gathering of armed Bedouins, swarthy and turbaned, clustered about a number of captives whose lighter complexion and free-flowing hair told of a more northern nativity, and which the most ready-tongued of the warriors was now loudly offering for sale.

"One hundred golden pieces buys this slave," he cried again, his eye quickly noticing the interest evinced by the glance of the new-comer; an interest that his ready wit told him might be utilized to advantage.

"And why one hundred golden pieces for this man? Methinks I have seen much stronger knaves sold for an hundred silver pieces; and, lo! you ask for gold. Why?"

"Your servant is a dog if he does not answer the question to the satisfaction of the most exacting. This man comes from the sea that lies beyond our northern mountains, and can live in the water. There is no better diver than he; why, he has brought up pebbles that were ten fathoms down, and surely each fathom's depth is worth ten golden pieces."

The speaker turned to the crowd for approval, and the affirmative nods that greeted his appeal brought a smile of satisfaction to his dark face.

"If you speak truth, you are right," answered the vizier. "But where is your proof?"

"Ask the man; he will not lie."

"Can you do what he claims for you?" questioned the vizier, turning to the captive.

A smile of mingled scorn and contempt passed like a flash across the man's face, and then he said:

"What will it matter to me whether I can or no?"

"This," answered the vizier: "if you can, I shall purchase you for the sultan's pearl fisheries. One pearl each day makes you free for the remaining hours, and the sultan is not a hard master. I have known him give slaves their freedom."

"I need no freedom, for my people are here. Shall I have food and shelter?"

As he spoke his glance swept along the faces of the captives and turned away, a bitter disappointment in it, as though it could not find those for whom it sought.

"You will have food and shelter; yea, and garments for all needs."

"I can do more than he says," said the man.

"Then I will give the golden pieces for him. Bring him to my palace before the sun sets."

And as the man bowed low in answer, the vizier turned and went slowly down the street that led to the sultan's palace.

That evening his new slave lay asleep on a rug in the rose-scented corridor of the palace, and dreamt of freedom and love all through the long hours of the night.

The next day the vizier carried the man to the sultan's divan, and having told of his accomplishments, presented him to his royal master, whose great delight was the vast hoard of pearls that burned like smothered sunbeams in his treasury.

That same day the man was sent to the pearl fisheries on the gulf, and it was ordered that should he prove successful he was to have a house for his special accommodation, and, on his parole of honor, be allowed the freedom of the city and ten leagues of the adjacent country.

Taken to the fisheries, he soon proved himself the master of all engaged in that dangerous work, and was quickly made the favorite of the sultan by the brilliancy and largeness of the pearls that he found. He was given a small house seated in the center of a garden where fruits and flowers commingled in fragrant profusion, and his food and clothing were such as he himself chose, for the orders of his royal master made his wishes in these things law.

His labor for the day was soon over, one pearl, often the result of a five minutes' bath, made him free for the remainder of the twenty-four hours. This time he employed in reading or in taking solitary walks along the shore of the bay opposite to that where the fisheries were located. Here a mass of frowning cliffs rose in dark grandeur against the sky, and over and among these he would clamber for hours, their steep acclivities and the wind-notes that echoed among them seeming to have a strange fascination for him.

At last there came a rumor to the court that the sovereign of a distant Indian realm had become possessed of a pearl whose size and brilliancy of hue were unequalled in the world; and the sultan, hearing of this, sent an envoy to ascertain the truth of the report. The return of this messenger confirmed the statement, and filled the sultan's soul with envy. He knew that he could not purchase the gem, but he determined to stimulate the efforts of his fishers, and for this purpose he caused it to be announced that any slave who should find a pearl more brilliant and larger than that possessed by the Indian monarch should be given his freedom and one hundred thousand pieces of gold.

To Irar, for such was the name by which the northern diver had elected to be known, this proclamation brought no joy. Others of the fishers made

desperate exertions to obtain the prize. He brought his daily pearl and went away, basking in the sunlight of his garden, or climbing some rough cliff that he had not scaled before.

When questioned concerning this indifference, he smiled, a scornful and bitter light burning for an instant in his eyes, as he answered:

"Why should I desire to change my life? I have food, a home, clothing; and life can give nothing beyond these. I have no country, no friends. The foray that brought me here swept my people from the face of the earth. My labor is light, my holidays are many. What benefits can freedom give me?"

If the philosophy of his questioner could find no adequate reply to this argument, the passion that slumbered within the slave was not to be so dumb.

He had finished his daily task, and was loitering through a shaded lane just outside of the walls of the city, when he saw approaching the veiled form of a woman. As she came near him, the wind, that kindly agent of man, came blustering down the lane, and before the little brown hands could grasp the filmy white gauze that told of maidenhood, blew it back from the face, and gave Irar a vision that no time nor distance could efface.

He was a strongly-built and handsome fellow, young and brave, just such a man as would please the eyes and heart of a maiden whose love was waiting the call it would so gladly obey; and though a heightened color was hidden by the quickly captured veil, a pleased smile made answer to Irar's look of respectful admiration.

To his salutation, a voice sweet as the nightingale's responded, and then the little form went tripping on, and disappeared through a gateway a short distance from where he stood.

The sunshine of his garden, the conquering of mighty cliffs, ceased to have an attraction for Irar, and his feet seemed drawn to the secluded lane in which this vision had come to him. It was strange how many errands there were calling the little maid along that shaded way; and the wind was ever at hand to give one or more glimpses of the face that was growing sweeter and brighter every day. But while joy was always a portion of these meetings, now and then a dark thought would give its stab; for was he not a slave?

And how could he dare to look forward to a time when one so beautiful should be his own?—aye, all and all his own?

He had discovered that were he free he could claim this jewel, for she was a peasant's daughter: and yet how far above him, for she was free.

He had but just left her, having felt the warmth of her breath so near his cheek that it thrilled him like wine, and the clinging clasp of her hand was still tingling in his blood.

"Oh that I could own this pearl!" he cried: and then he shouted aloud in great joyfulness, for the sultan's proclamation flashed up in his mind, recalled by the word he had used.

He would find the sultan a pearl; he would be free—yes, and rich. But his northern blood was cool, and he made sure that his dear one should not suffer should he not succeed at first.

When he met her the next day he said:

"I have come to bid you good-bye for a time."

Her little hand trembled, and her bosom heaved as though a sob were welling up for utterance.

"Only for a time, remember," he went on. "And when I come again it will be to claim a bride."

There was a supreme confidence in his tone, a foreshadowed success that inspired even himself, as he asked:

"Will she be ready for me?"

For answer she nestled in his arms, and no wind was needed to tear the veil aside that his lips might claim love's pledge from hers.

"Shall I have to wait long?" she said.

"No, perhaps a month; but I hope it will be less even than that."

"Oh that Allah would make it less!" she answered.

A long time they lingered in the rose-scented shadows, and then Irar, with her kiss of hope and prayer warm on his lips, strode rapidly back to his home.

Arrived there, he rubbed his body thoroughly with oil to make it mobile and supple, and then sought the slumber that would give him strength for his search.

With the first glinting of dawn he arose, and having partaken of a plain repast, sat down to consider how he should act did he find the pearl.

Should he give the gem to the inspector of the fisheries?

No, for the man was not friendly to him, and might prove false.

The better way would be for himself to carry it to the sultan, and as he laid it at the feet of his royal master, claim the reward that had been offered.

This plan satisfied him, and then another thought arose: How should he hide it from the keen eyes of the watchful guards, whose duty it was to see that no gem was carried away, and who stood ready to search each diver as he appeared above the water?

This was a more difficult problem to settle than was that concerning the way in which the gem should be conveyed to the sultan; and the sun had risen far above the mountains lying eastward from the city before he could devise a plan that seemed to meet his needs.

At last a smile of satisfaction took the place of the perplexed look that had pervaded his face, and rising, he hastened to the bay.

The divers were already at work, and one or two had finished their labor and were going away, when Irar sprang into his skiff and was rowed out to the deeper water, where the pearls lay hidden. He was not so easy to please as he had previously been, but scanned the water curiously, directing the boatmen to pull in many different directions, while he stood in the bow, watching.

Suddenly some mysterious prompting whispered, "Now!"—and without a moment's hesitation he sprang from the skiff and sank swiftly down to the indistinct depths below.

Merciful Allah—did he see aright?

Yes, there lay the pearl he sought, perfect, brilliant, a gem that royalty itself could not outshine.

To grasp it and thrust it into his mouth, yes, and to swallow it, was but an instant's work; and then he quickly found another gem, and with it sped upward to the surface.

A half-hour had not passed, and now he was hastening back to the city, buoyant, elate, his heart beating with swift throbs of joy.

He did not seek his home, but turning down a narrow and unfrequented street sought a dark, closely-curtained house, and knocking, was silently admitted by a sallow-hued man, whose broad brow and gleaming eyes, set deep under shaggy brows, told of a strange and subtle power that only he could wield.

"Well, friend Irar," he said, when he had led the young man to a dim room at the back of the house, "can I do aught for you to-day?"

"You can. Listen." And Irar told, as briefly as he could, of his love, the sultan's promise, and his success.

This done, he went on.

"That you are skilled in the arts of surgery is well known. If the pearl stays in my stomach it will be ruined. For an act that saved your life, which I was glad to do, help me now."

The man thought for a moment, and then said:

"I will, but you will be sick for a week, and perhaps for a longer time. What must be done in this case?"

"Your word will be enough to excuse me from work. Will you not go to the vizier and make the excuse I need?"

"Yes; and now, was the gem hard to swallow?"

"It was."

"Sit quiet here, I shall soon be ready."

Swiftly the man prepared two mixtures and brought out some thin knives and other curious instruments. These and some bandages he placed on a small table that he drew near to a slab standing in the middle of the apartment.

"Lie down here," he said, and Irar obeyed.

"If you feel the pearl forced up into your throat, do not struggle, but grasp the sides of the slab, and keep as quiet as you can: I will see that no harm comes to you."

"I will do as you say."

"Now drink this;" and he handed Irar one of the potions he had prepared.

No sooner had Irar swallowed this than he grew faint and chill; and then a horrible sickness filled him, and with violent retchings he sought to relieve the oppression in his stomach. The man stood by, a knife in his grasp, and just as Irar felt a lump stick in his throat a hand was clasped tightly below it, and it was forced upward. Then a swift movement of gleaming steel followed; and just as the pressure on his lungs grew to a suffocating intensity, the lump causing this was ejected from his throat, and stinging pain told of rapid punctures, through which a thread was quickly drawn.

Then a burning liquid was applied to his throat, and a bandage wound about it, after which he was carried to a couch and told to remain quiet.

Then the man picked up the pearl and, washing it, held it up to the light.

"A right royal gem," he cried, his eyes gleaming. "Here, take it, or I shall begin to envy you your prize;" and he thrust the pearl fiercely into Irar's hand, going immediately from the apartment.

In an hour he returned, holding a paper that bore the seal of the vizier.

"You are excused for a month," he said, "and before that time you will be well: in fact, you will be able to move to your own house in two weeks. The one thing needful is that you keep your neck quiet."

It was not hard for Irar to do this, for did he not know that love and freedom were both waiting for him? The days passed swiftly, for dreams of a happy future filled both waking and sleeping hours, and the contentment that pervaded his existence made his recovery rapid.

At the end of a week the bandages were removed, and the surgeon looked in surprise at the nearly healed cut.

"This is better—much better than I hoped for," he said. "A week more of quiet, and you will be all right."

He bathed the wound with a lotion, replaced the bandages, and then wandered restlessly about the room. This was but a repetition of his course ever since Irar had come to him, and caused his guest no uneasiness.

After a time he grew quiet, and going to the window, seemed to be pondering some plan. Then his face lightened, and coming back to Irar's couch he said:

"I will make a cooling drink for you, and then go out." And he left the room, soon returning with the draught, which he held out to his patient, who took it and drained the liquor to the dregs.

Again the surgeon wandered about the room in a restless way, furtively watching Irar, who soon felt a delicious languor stealing over his senses.

"Let me see your pearl once more," said the surgeon, and Irar languidly handed it to him.

Did he dream it?—or did he see the surgeon clutch it fiercely, then thrust it hurriedly into his mouth and with a gleam of savage triumph hastily swallow it?

There was no certainty of this when he awoke, but a strange sensation of indistinctness in his mind, which gradually cleared as his eyes grew accustomed to the light. But he could not rid himself of the thought, and he thrust his hand under the covering of the couch where he had kept the pearl, and started up with a cry of horror.

The pearl was gone!

A man came running in, alarmed by his cry; and of him Irar demanded, in a voice choked and hoarse with emotion:

"Your master, quick!—where is he?"

"I have not seen him for a week."

"A week? And I?"

"You have been asleep. My master said you would not wake before a week had passed, and that he would return ere your slumber was broken."

It was true, then, this horror that he had thought a dream; and he buried his face in his hands that the servant might not see his emotion. In a little time he grew calm, and raising his head, he said:

"Has your master returned?"

"No."

He put up his hand, and felt his throat—the bandage was gone. To his questioning look, the man said:

"The master ordered it. It was taken off the third day after he went away, and you can eat if you desire to."

"I will. Bring me a light repast."

In a little time he was eating the food brought, and calling for his clothes he put them on and tried to walk. At first his steps were unsteady, but they quickly grew firm. Finding that the pouch containing his knife and purse was in its place, he went forth. But instead of seeking his own home, or the lane that had so often been the goal of his wanderings, he turned southward, and leaving the city was soon pacing the sands leading towards the rocks that he had so frequently explored.

Soon he reached them, and began his usual clambering among them, going on and on, but keeping near the sea. At times his hand would explore the pouch where his knife was, and once he drew it forth, and his eyes gleamed with satisfaction as his finger tested the keenness of its blade.

His glance sought every shadowy hollow, and twice he turned into fissures that seemed to lead to a deeper gloom. But he returned and kept on, reaching at last a bold crag, beneath which a gully of the sea ran in—so narrow that he could almost step across it.

The garrulous call of a gull drew his attention to a dark object that rose and fell with the swelling and sinking of the tide, close to a little square of sand at the head of this opening. It had a strangely human look, and he made his way down to it. Taking off his sandals, he gathered his garments up above the wash of the waves, and soon had grasped the floating clothes that streamed out from the central mass.

The strain caused this to turn over, and showed him the white and livid face of the very man who had played him false.

For a moment a savage joy filled his soul, and then his manhood exerted its sway, and pity came; and as the softer feeling caused a mist to gather in his eyes, he noticed that there was a large, unnatural lump protruding from the dead man's throat.

Hastily drawing the body on the sands, he drew forth his knife, and carefully cut the flesh about this.

A cry of joy came, as his pearl dropped from the slit and lay, clear and shining, on the sand.

Hastily secreting it, his better thought prompted him to bury the man whose avarice had come so near wrecking his life, and finding an oar blade on the sand, he dug a grave close to the rock, and dragged the body to this.

A small tablet fell from the clothing as he was doing this, and he picked it up and put it in his pouch. Then he covered the body, and heaped the sand high above it.

Resting for a little time, he clambered back to the top of the cliff and quickly returned to the city, hastening to the vizier's palace.

His request to have audience with the sultan was immediately granted, and the vizier being about to report to his royal master, Irar was told to accompany him.

Arrived at the palace, the vizier quickly made Irar's wish known.

"The slave I gave your highness for a pearl-fisher desires to speak with you."

"Let him speak, for he has ever done his work well," said the sultan.

Bowing his head low, Irar held out his hand, closed over the pearl.

"Your highness promised freedom and gold to the slave who should bring you the finest pearl on earth; will this one win the gift?" And he unclasped his hand and showed the peerless gem it had hidden.

With a cry of delight, the sultan said:

"Yes, you are free, and the golden pieces shall be paid you when you wish them—now, if it is your choice. More, I appoint you the inspector of my pearl fisheries. Hand me the gem, and do you see our wishes fulfilled."

The last commands were addressed to the vizier, who took the pearl and laid it in the sultan's hand. Irar bowed low, and withdrew to the outer court by the palace gate. Here he was soon joined by the vizier, who gave him the certificate of his freedom, and the royal decree announcing his appointment to the inspectorship.

He also gave Irar some costly jewels, saying:

"You have done well. The sultan is overjoyed at this rare good fortune, for the pearl is much larger than that of the Sultan of Coromandel. He has remembered that I gave you to him, and so I share my gain with you."

Irar thanked him, and taking the papers, asked permission to be absent from duty for a time.

"You are free, and can do what you please, and you need not assume your new duties for a week."

Thanking him, Irar hastened away. It was growing late, but the sun still shone in the lane when he turned down its shadowy way. The gate was quickly reached; but before he came to it, it was flung open, and the light and gladness of his life shone on him.

As he clasped her in his arms, she murmured:

"I have watched for you every day; but now I shall have no more watching or waiting."

"No, my darling, you will not. Lead me to your father: I would speak with him."

It took but a short time for Irar to secure the consent that he sought. His royal appointment was a powerful factor in the argument, and he returned to his home a happy man.

As he was removing his garments before retiring, the tablet that he had found on the surgeon's body fell to the floor. Picking it up, he opened it, and saw some partly obliterated writing. Closely scanning this, he read the following:

"I have the pearl: it is mine. But since I have swallowed it I have become possessed with the thought that there is another like it—yes, larger and more brilliant—waiting my seeking; and to-night I shall go out to the fisheries and find it. I shall go alone, in a skiff that I have hired; and to-morrow I shall have two pearls, like which the world has no more."

"The fool!—he could not swim," said Irar, "for I rescued him from the sea when he tried to. Well, he wrought his own punishment, and may Allah forgive him as I do." And he sought his couch.

One week after this occurred Irar carried to the larger home that was allowed him as inspector of the pearl fisheries the sweetest and fairest bride in all the wide Persian realms, a bride more pure and lovely than the pearl that had given him his freedom and crowned his love with triumph.

THOS. S. COLLIER.

THE FIRST REGIMENTS OF U. S. COLORED TROOPS AND HOW THEY WERE RAISED.

May 22, 1863, a general order, No. 143, establishing a bureau "for the organization of colored troops," and providing for the detail of three field officers as Inspectors of these troops and for the creation of a board to examine applicants was issued from the War Department.

Although some colored men had been enlisted in Louisville and, under the authority of General Hunter, in South Carolina, the above order was the first formal recognition of this class of troops by the Government.

The Inspectors were to supervise at such points as might be indicated by the War Department "in the Northern and Western States," but recruiting stations and depots were to be established by the Adjutant-general as circumstances should require: the first clause expressing the conservatism of President Lincoln, and the second affording a wider range for the energies of Secretary Stanton.

The first Inspector detailed was Colonel William Birney, of the 4th New Jersey Volunteers. He was an Alabamian by birth, the son of James G. Birney, who had been the Presidential candidate of the Liberty party in 1840 and 1844. He had enlisted as a private and been elected Captain in the 1st New Jersey, had served through the different regimental grades, and had just been nominated to the Senate as Brigadier-general. At the beginning of the war he predicted to his friends, Secretary Chase and Henry Wilson (chairman of the Senate Committee on military affairs), the exigency for calling colored troops into the service, and had offered, in that event, to aid in organizing them without regard to his grade in the white troops. Hence his detail after more than two years' waiting.

Reporting at Washington in the first days of June for his new duty, Colonel Birney was kindly received by the Secretary of War, but found that neither

he nor Mr. Lincoln had marked out any definite line of action or had any orders ready to give him. Day after day his anxious inquiries were met by the same answer:

"Wait a little longer; we are not ready yet."

Finally, about the 10th of June, weary with oscillating between the Ebbitt House and the War Department, the Colonel asked leave of Mr. Stanton to organize a colored regiment at Washington. Written orders were refused, but oral permission to do what he could was granted him. He went to work at once, and before the 18th of June he had enlisted, uniformed, armed, and equipped four hundred men, gathered from Washington, Georgetown, Alexandria, and the country beyond. They were of course very raw material, but their habits of obedience and temperance were equivalent to the usual quickness and independence of the white troops. They were proud of their new position and enthusiastic in learning the manual of arms, even rising at four o'clock in the morning to begin their drill, which they practised incessantly through the day. The brightest among them were made sergeants and corporals, while young officers from the white regiments around Washington were detailed to serve as captains and lieutenants.

By the end of the month the 1st U. S. Colored Regiment was full, and Colonel Birney marched it down the avenue, past the White House to the Capitol, and back; affording a rare spectacle to the crowds that followed it, and one which the old inhabitants of the city certainly had never expected to see. But there they were, ten companies of black, brown, and yellow men, ex-slaves, dressed in the uniform of the United States, armed and equipped like white soldiers, and pledged to stand by the Government in its struggle with their former masters. They made a fine appearance, marching quite as well as white soldiers, and calling forth many compliments for themselves and their officers.

Still no orders came from the War Department, and it was some time before Colonel Birney understood the cause of the delay. Recruiting for colored troops had been begun in Philadelphia and Boston, but progressed slowly; and at Washington men were not obtained in any great numbers from the resident free people of color, but were mostly fugitive slaves from Maryland and Virginia. Colonel Birney represented to Mr. Stanton the

advantages of recruiting, in the States named, and the superiority as soldiers of the men raised on farms to those gathered in the alleys and slums of northern cities.

The Secretary listened attentively, and after reflecting a few moments, said:

"Go over to the White House and have a talk with the President. Don't say that I sent you. We will talk the matter over afterwards."

The Colonel was promptly admitted to Mr. Lincoln's presence, and a complimentary remark of the President on the excellent appearance made by the colored regiment opened the way for his visitor to give his views about recruiting from the Maryland farms.

"What!" exclaimed Mr. Lincoln; "you surely do not mean that we should take the slaves?"

"Mr. President," replied the Colonel, "a man's allegiance to his Government is not subordinate to claims of private parties upon him. If he is willing to fight for his country he should be allowed to do it."

"But my pledge!" said Mr. Lincoln. "You forget my pledge to the loyal slave States, in my proclamation of emancipation."

Here, then, was the point of difference between Mr. Stanton and the President. The former was willing to recruit colored troops in the loyal slave States, and the latter was opposed to it.

Of course the subject was dropped.

On the 28th of June Col. Birney was ordered to Norfolk to recruit slaves of rebels, but he had scarcely begun when another order brought him back to Washington.

Arriving about the 4th of July, Mr. Stanton showed him a letter from General Schenck, commanding the district of Maryland, stating that large numbers of free men of color had been gathered at Baltimore to work on the fortifications, and that a competent officer, if sent at once, might get a great many recruits among them. In answer to the Secretary's question of what he thought of this, Colonel Birney answered:

"I can organize several regiments in Baltimore, but probably not from the class mentioned by General Schenck. Free colored men will not fight to help the Government maintain slavery in Maryland; and that is the President's pledge. But the slaves will enlist, for they will get their freedom by it. If you send me to Maryland it must be with the knowledge that I will never recognize one man's right of property in another. I believe, with the Vermont justice, that the only proof of such a right is a deed signed and sealed by the Creator."

Mr. Stanton laughed. "Well," he said, "whatever you do, remember you do it on your own responsibility." This was repeated and emphasized.

The Colonel accepted the terms, asking the favor, however, that Mr. Stanton would do what he could for him in the event of the President's displeasure. This was cheerfully promised, and the necessary orders were then made out. A letter also was written to General Schenck directing him to recognize Colonel Birney as in charge of the recruiting of colored troops in Maryland, and to have his requisitions honored by the ordinance, commissary, and quartermaster officers. That is, the Colonel was to have *carte blanche* for his special business.

The large barracks near Druid Hill Park having been assigned for his use by General Schenck, who named them "Birney Barracks," the Colonel telegraphed for the 1st Regiment. As the "Plug Uglies" before the war, and the attacks made on the first northern volunteers by the Baltimore populace, had given that city the reputation of being peopled chiefly by roughs and rebels, it was thought best to have a sufficient force there to overawe the violent.

The regiment, under command of Colonel Holman, arrived at night without accident. It was put into good condition, and a few days later, with Colonel Birney riding at its head, was marched, with music, flying colors, and fixed bayonets, through the principal streets of the city, causing immense excitement and some apprehension among all classes. Doors and blinds were hastily closed, and the police gathered in force to be ready to repress disorders. But none occurred. One man was arrested for hurrahing for Jeff Davis; but this, scarcely worth noticing, was the only incident that indicated rebel sentiment.

From that date the populace accepted the situation, and it was quite safe for recruiting squads of colored soldiers to march through every quarter of the city.

It was worth going some distance to see the sergeant selected to command these squads march his men out. Black as a coal, his grand, martial air and proud assumption of authority were most impressive, while his stern, ringing voice made itself heard all over the drill ground. No doubt his pompous manner, aided by his uniform, had much to do in bringing in recruits.

The business of recruiting was, however, one of peculiar danger in other places. About this time a Lieutenant who had been left at Norfolk by Colonel Birney was foully murdered. A little later another was shot down near Benedict, and a recruiting agent was mobbed and killed in Frederick County. On two occasions armed men lay in ambush for the purpose of shooting Colonel Birney, but he was forewarned.

It very soon became evident that more energetic means must be adopted for filling up regiments. Accordingly, a requisition was made for a small steamboat for the purpose of recruiting along the eastern shore of Maryland. Before, however, completing his arrangements to do this, Colonel Birney's attention was called to another matter, the result of which did not tend to make him more popular with Maryland slave-owners.

Calling at General Schenck's office, one morning, a letter was handed him to read by Adjutant-general Piatt, which I here copy *verbatim et literatim*. It was addressed to President Lincoln and dated:

"BALTIMORE, June 15, 1863.

"HON. PRESIDENT ABRAHAM LINCOLN. *Sir*: i would like to inquire from you sir that we slaves are entitle to Be confine In prison By our masters or not sir. We have bin In Prison for two years and a half and some are Bin in here for seventeen months and so our masters are Rible General A. B. Steward and are now in the Rible Army sir and put us slaves here Before He went into the Rible Army and we are Bin here Ever sence and we are waitin to Be inlisted in the army or navy sir to fite for the stars and stripes there is about 20 of slaves in the

Balto city jail our masters says that they are going to keep we slaves in Prison untill the war is over or soon as he can get a chance to send us slaves Down South to the Rebilious and we all would like to have our Liberty sir and i sir i wish you would do something For we Poor Slaves we have no shoes or clothing to put Put on only what we Beg from the soldiers and citizens that comes to the Prison i would like to have my liberty. Direct your letter to Captain James warden in the city jail then he will give the Slaves their Libberty from your humble Servant."

No name was signed to this document, probably from prudential reasons. The name of the warden was, however, repeated, as though to emphasize the address.

Such an appeal could not but make a profound impression on Colonel Birney. He caused some inquiries to be made among the colored people, and learned that there were in the city at least three slave-pens in which men, women, and children had been confined for safekeeping since the beginning of the war. Thirty cents a head per day was the charge for keeping them, and they were to remain in confinement until the close of hostilities.

Col. Birney decided that no time should be lost in attending to this business. He called to see General Schenck about it, but the General had gone to Washington. Colonel Piatt was in the office, however, and unhesitatingly gave the required permit to open the jails.

Taking with him a few soldiers, Colonel Birney visited, one after the other, the dreadful pens where nearly one hundred human beings were found in a condition of misery almost incredible to the present generation. Nearly all the men and many of the women were chained in some manner or other. One aged man wore an iron collar to which a chain was fastened attached to an iron band around one ankle, and so short that it was with difficulty a step could be taken. Another, almost as old, was chained in a similar way from an iron belt to both ankles. Some were handcuffed and some had only their ankles chained together. The only place for fresh air or exercise was a small court-yard inclosed by high brick walls which, being whitewashed, had seriously affected the eyes of all the prisoners. Only a few of them could

see well at night, and some were almost totally blind. A few afterwards recovered, but several lost their sight completely. In this condition they had been kept for two years or more.

A blacksmith was sent for, and in a few minutes every chain was broken and the captives were told that they were free. The younger ones received the announcement with shouts and laughter, and ran eagerly to gather up all their little belongings and make themselves as tidy as possible before leaving the prisons. Others were incredulous and timid about accepting the boon offered to them, while the older ones, more deeply imbued with the religious spirit, raised streaming eyes to heaven and thanked the Lord that their deliverance had come at last.

They were all marched to the barracks and examined by the surgeons. A few only were found available as soldiers. The others were sent to the Quartermaster's Department in Washington and disposed of there. The expressions of gratitude from those who remained with us were most fervent, but often a little amusing. Colonel Birney was spoken of among them as a man sent by the Lord, a second Moses come to deliver and lead His oppressed people. He was prayed for in their evening prayer-meetings, and the Lord implored to be with him and "purtect him always, on de right hand and on de left, in de front and in de rar;" and one earnest old man was heard to pray: "Eben as he hab done it unto de least ob dese, my chillun, say de Lord, he hab done it unto me, and we prays dat de Lord will recognize dat fact and bless him accordin'."

The opening of the slave pens, and the revelations concerning the treatment of the prisoners confined there, caused, as may well be supposed, a great sensation. Owners of slaves began to discuss measures to protect themselves from Colonel Birney's operations. Reverdy Johnson was appealed to and secured as their representative, and complaints were forwarded to Washington. That these were not noticed at that time was due, in a great measure, to the influence of the Hon. Winter Davis, then member of Congress, and of Judge Hugh L. Bond, between whom and Colonel Birney a warm friendship existed as well as entire unanimity of opinion on the colored soldier question.

The Colonel now felt free to carry out the plans he had matured, of the success of which he had not the slightest doubt. Taking with him a few of his most reliable officers, he embarked on the steamer that had been furnished him and started on his first voyage of discovery. He was absent a little over a week, and was so much encouraged by what he heard and saw that no delay was made in despatching the boat again, this time in command of one of the lieutenant-colonels.

And now all along the eastern and western shores the news flew that able-bodied men would be received as soldiers, transported to a place of safety, and no questions asked. On it went like the unseen blaze beneath the pine brush, darting out now here, now there, still travelling swiftly and silently until it reached the remotest districts of the State, and the black population knew that its emancipation was in its own hands. Soon one boat was not enough to bring away all who were willing to serve in the Union army. A second boat and then a third were added to the service, and recruiting stations were opened in various parts of the State. To these flocked the slaves, fugitives from both rebel and loyal masters, many of them at the risk of their lives bringing their families with them, walking often forty and fifty miles to reach the station. Here they were protected until the boats came along which carried them to Baltimore. A crowd always gathered to see them land, and followed as—often two and three hundred together—they were marched in double file through the streets to the barracks.

It was certainly a grotesque but pathetic spectacle, that of these people just escaped from bondage, all ragged, many of them with scarce tatters enough for decency, barefooted and bareheaded, or with handkerchiefs around their heads, dirty and forlorn, each one carrying a little bundle containing his entire earthly possessions.

Immediately upon their arrival at the barracks the men were examined, the able-bodied ones enlisted, the rest otherwise disposed of.

Before the 1st of August the 2d and 4th regiments were complete, the 7th and 8th more than half full, and the 9th was begun.^[1]

It was surprising how many men had to be rejected. Sometimes out of a hundred recruits fifty would be found physically unfit for service. But those accepted were, as a rule, fine, hearty fellows.

The preliminary process to becoming a soldier was not always relished. The carbolic soap bath in the river, with the after clipping and shaving and shampooing, being in many cases a first experience, was not submitted to in every instance without grumbling. A few even rebelled, positively refusing to go into the water. A facetious sergeant, detailed to supervise the scrubbing, originated an argument which proved most effective.

"Look at you now," he was heard to say, "you ignorant nigger! You don't know nothin'. Don't you see your ole close a burnin' up on de sho', and don't you know when you gits inter dat ribber and scrubs wid de guvment soap you washes all de slavery out ob you? Go 'long wid you!"

And the subject, aided by a touch of the sergeant's foot, would make no further resistance.

But when, the bath and barbering over, comfortable under-clothing was given them and they were then arrayed in bright new uniforms and a glittering musket was put into their hands, surely Solomon in all his glory never experienced the glow of satisfaction that warmed the hearts of these ex-slaves as they viewed each other, and each man knew that he looked just like his fellows. For the first time in their lives they were men, not "boys,"—not chattels to be disposed of at the will of a master, but owning themselves, treated with respect, and considered worthy to take part with white men in defending the Union. In many of them the almost immediate change in look and bearing from cringing humility or unmeaning levity to earnest willingness and self-confidence was strikingly apparent; in others the change came gradually, as though time were needed to make them realize the revolution that had taken place. But it was surprising how quickly the vast majority learned well what was required of them, and how few rascals there were. Intemperance and profanity were exceedingly rare among them, and the guard-house opened its doors to a much less number than was usual in white regiments.

Of course there was general dissatisfaction among the abandoned masters and mistresses, many of whom were left without a single field-hand or house-servant. Scarcely a day passed without bringing one or two of these owners or their agents to inquire for some Sam or Tom or Dick. They were always invited up to headquarters to present their claims, and the records

were examined for their satisfaction. If the names of their slaves were among the enlisted men, the ex-owners were required to produce a certificate of loyalty from the provost marshal of their district; and, if this was satisfactory, they were referred to the Board of Claims, to be organized in Baltimore for the purpose of deciding upon such cases. If they could show no proper certificate, they were summarily dismissed. Very often a man would change his name when he enlisted, thus making it very difficult for his master to trace him, besides causing confusion and a good deal of merriment among the young officers, as those who took new names invariably forgot them.

"Andy Smith!" the sergeant would cry at roll-call; but no Andy Smith would answer until, the name having been repeated several times, some comrade would nudge the fellow who had assumed it, saying:

"You is Andy Smith; don't you 'member you is?"

And then there would be a start and an exclamation of:

"So I is—I done forgot!" followed by a loud "Here!"

Amusing and sometimes pathetic scenes between masters and servants were of frequent occurrence. It was surprising in how short a time a poor, crying, slovenly slave became a bright, neat, self-asserting man.

One morning a tall, ungainly fellow, who had tramped several days to get to us, was brought to headquarters. He looked as though he had been driven and hunted all his life; but he was strongly built, and his ebony countenance, though showing a good deal of anxiety, expressed fearlessness and resolution. The officer who accompanied him reported him sound in every way except that he stuttered badly. Before the Colonel could speak to him, the fellow managed, with much difficulty, to get out an earnest request that he should not be "jected."

"But you could not give the countersign if challenged," said the colonel.

"Jes try me, please, mars Colonel," the poor man stuttered. He was tried with the regular drill orders, and the proof of the man's pluck was that, though surrounded by a crowd that laughed at his ridiculous efforts, he made an heroic stagger at every order, and with a certain air of dignity that

had its effect. At any rate, the Colonel, pleased with his manly bearing, told him that if he would come up the next morning and give those orders without stuttering he should be mustered into the service. Whether what his comrades asserted, that he spent the night practising in the grove back of the barracks, was true or not, it is a fact that the next morning he appeared bright and cheery, and in a voice that resounded over the campus he repeated every order promptly and intelligibly. He was accepted and a few days afterwards put on guard at the foot of the hill. As he was quietly pacing up and down his beat, a man rode up, sprang to the ground, and saying, "Look after my horse, fellow," started to walk up the hill. He failed to recognize in the neat, fine-looking soldier whom he had addressed his runaway slave. But the slave knew his late master, and with the sense of security inspired by his uniform and his loaded musket, he stepped forward. He could now say "Halt!" without stuttering, and he said it in a very decided tone. And then the master, looking sharply at him, exclaimed with an oath:

"Sam, you stuttering idiot! what are you doing here?"

"Defendin' de country, mas—sa," Sam stuttered.

His master burst out laughing, and with another oath ordered Sam to stand aside and let him pass, as he had come to take his man back home, and intended to do it. But Sam was not alarmed. He lowered his musket significantly, and managed to say:

"I aint nobody's slave no more, massa. I'se under the orders of de United States Guvment, and dem orders is to let nobody parss here what can't gib de countersign. Ef you kin do dat, you kin parss: ef not—not!"

The master raved and stormed in vain. Sam stood firm, until the officer of the day who, unobserved, had witnessed the scene from a clump of trees, thought best to interfere. He escorted the irate Marylander to the Colonel's office, but it is hardly necessary to say he was obliged to return home alone, as he came.^[2]

A very similar incident occurred shortly afterwards, which I believe found its way into the papers: but it will bear repetition.

A new recruit, feeling to an exaggerated extent the dignity and the importance with which his uniform invested him, and realizing also, perhaps, the solemn obligations of his oath, was approached while on guard by his former master, and, with the usual oaths, ordered to get out of the way. This the sentinel declined to do, and the master began to abuse him for "a coward," "a black scoundrel," "a sneaking thief," etc., etc., all of which the soldier bore unmoved. But when the white man, still more infuriated by this indifference, damned the Union Army and even the uniform the black man wore, the latter became excited, and facing his angry master, said, in a very forcible manner:

"Massa, you kin 'buse dis nigger as a nigger as much as you please: dat don't hurt nobody. But when you damn dese buttons, you damns de goviment, sar, and dat am treason, and I'se pledged to stop it. Now scoot!"

And he charged on the astonished master, driving him down the slope and into the road, and kept his musket levelled at him until he saw him get on a street-car and ride away.

After a time, curiosity brought many people from the city every afternoon to see the troops drill, and before the end of the summer it became the fashionable thing for ladies and gentlemen driving out to stop below the hill on which the barracks stood and remain during the whole parade. Many even descended from their carriages and came up the slope to get a better view. As to the colored population, the barracks, and all that took place there, were full of interest for them. It seemed as though each one felt that he or she gained something in importance by belonging to a class that was attracting so much attention. Those especially who had sons or brothers among the troops rose at once in their own estimation and in their social scale. I could cite a number of amusing illustrations of this vainglorious sentiment, but one will suffice.

The respectable matron who did my washing came to me one morning to say that she would be obliged to give up my patronage, as her son had just enlisted and she could not think of disgracing him by continuing her business. Remonstrance was in vain; she retired from the suds, and lived on her importance and, presumably, on her son's pay.

One afternoon in the early fall two ladies came to headquarters. They were dressed in fashionable mourning, were gentle of speech and manner, and evidently belonged to the best society. They stated that they owned a large farm in Calvert County, had been visiting in Philadelphia, and had just learned that two "valuable boys" belonging to them had run away and enlisted in Baltimore. The "boys" had been brought up in the family, had always been kindly treated, were perfectly contented, and must have been worked upon in some subtle manner to have been induced to leave. They felt sure that if they could see them they could persuade them to return, as they could not bear the thought of the hardships the "boys" must undergo in army life.

The Colonel looked over the roll and found the names of the "boys," who had enlisted two weeks before. He informed the ladies that, even if willing, these soldiers could not be remanded to slavery; but if they would like to see them, he would send for them. The ladies requested that this should be done, and an orderly was dispatched to bring the fugitives.

Few worse specimens, as regarded raggedness and general evidences of hard usage, than these two men had come up from the western shore. When they now made their appearance in the office, tall, good-looking fellows, in their clean uniforms and new shoes, and their countenances beaming with satisfaction, it was no wonder that their mistresses did not at first recognize them, and were embarrassed in addressing them. A short conversation ensued, during which the men, though perfectly respectful, let the ladies understand that they were neither ashamed nor sorry for having left the old home. As the visitors, evidently much chagrined, at last arose to go, one of them, extending her hand to the younger one, said:

"Well, John, good-bye; I am going home to-morrow. What shall I tell the people for you?"

"Give 'em my love, marm," said John, "an' tell em I's mighty glad I's here, an' I wish dey was all here, too."

The other lady had taken out her pocket-book, and now said to the other:

"And you, Will, what shall I say for you?"

"Tell 'em all, marm," he earnestly replied, "dat de Lord hab broke my yoke an' made me free. Tell em I'se happier dan I eber 'spected to be in dis world—an' I blesses 'em all."

"Very well," she said coldly, and dropped something into his hand. Both ladies bowed and departed.

The man Will stood looking reflectively at what his mistress had given him. As the door closed on her, he turned to the Colonel and, showing a silver quarter, said:

"I'se worked fur dat woman mor'n twenty years, an' dis is de fust bit ob money she eber gib me!"

Towards the last of September Secretary Chase, being in Baltimore, was invited by Judge Bond to drive out to the barracks and witness the parade of the colored troops. His appearance was a pleasant surprise to Colonel Birney, who, up to that time, had failed to elicit from him any expression of interest in his work; though, on account of old friendship and political sympathies, the Secretary was the first person from whom the Colonel had expected support. But Mr. Chase had not as yet gone beyond the President in his views concerning the enlistment of slaves. He, however, expressed himself greatly pleased as well as surprised at the fine display the troops made, and the next week he repeated his visit, accompanied by Secretary Stanton.

As it happened, one of the recruiting boats arrived that very day, bringing over two hundred of the usual miserable crowd. Instead of having the men among them inspected at once, the Colonel saved them for his afternoon programme.

The expected visit of the distinguished men became known in the city, and long before the time for parade the road in front of the barracks was blocked with open carriages filled with ladies and gentlemen. The two secretaries, in a landau, were so placed that they had an uninterrupted view of everything.

The bugle sounded and the different companies, with bayonets and every accoutrement glistening, marched in splendid order to their respective positions. As the last company wheeled into line, and while the spectators

were enthusiastically expressing their admiration of its soldierly bearing, the raw recruits who had arrived in the morning filed up and, each one grasping his little bundle, were placed in line with the others. Their tattered garments, shoeless feet, and disreputable appearance generally, afforded a striking and painful contrast to their uniformed brethren. The suggestiveness of the spectacle could not but strike every beholder. Mr. Chase declared it was the most impressive sight he had ever witnessed. Mr. Stanton warmly congratulated Colonel Birney, and expressed his satisfaction and his thanks that so much had been accomplished without embarrassing him.

The vigor with which recruiting had been pushed had taken the Maryland slave-holders by surprise. For some weeks they made no appeal to the government. Then, recovering their self-possession, they set to work to procure a revocation of Colonel Birney's authority.

Their first applications were made singly or by delegations to General Schenck or, in his absence, to his Adjutant-general, Donn Piatt, both of whom had steadily and cordially given their official aid and support to Colonel Birney's operations, though, from the nature of his orders, he was not subject to their command. The General, with quiet dignity, referred the envoys to Secretary Stanton, but held out no hope of change; but the adjutant gave them deep offence by his sturdy patriotism, expressed with the wit and humor for which he has always been celebrated.

Secretary Stanton was deaf to remonstrances. But it was not long before Reverdy Johnson and Governor Swann discovered that the President was not aware of the enlistment of slaves. Petitions, letters of complaint, and charges against Colonel Birney were now poured in on Mr. Lincoln. Finally, Reverdy Johnson and the Governor, at the head of a Maryland delegation of slave-holders, called on him and presented the grievance with all the eloquence they could command.

The President was much disturbed, and supposing General Schenck to be the responsible party, wrote to him intimating a purpose to disavow his acts. Thereupon the General went to Washington and, explaining his position in the matter, protested against censure or disavowal, and tendered his

resignation as commandant in Maryland if such a step against him was intended. Mr. Lincoln listened patiently. Then, after a short pause, he said:

"Schenck, do you know what a *galled prairie* is?"

The general knew every kind of prairie except that.

"The galled prairie," resumed Mr. Lincoln, "lies on the slope back from the narrow river bottoms, and is so called because the waters from higher levels cut gulches in it. But it is rich land. On it grow oak trees of a peculiar species. Their wood is almost as hard as iron, and their roots grow deep down. You can't cut them or dig them up. Now, general, how do you suppose the farmers treat them?"

This was a poser.

"Well," said Mr. Lincoln, "they just let them alone and plough around them."

With this the President arose and shook hands, and General Schenck returned to Baltimore, pondering over the parable of the "galled prairies."

Nothing further was said about censure, but Mr. Lincoln was troubled on the score of his "pledge," and did not let the matter drop.

Colonel Birney was very busy one day issuing the final orders for despatching three boats to a point where, from information received, several hundred good recruits were waiting. He was interrupted by a telegram direct from the White House, as follows:

"How many slaves have you enlisted?"

(Signed) "ABRAHAM LINCOLN."

The answer reached the President while Governor Swann and his friends were making another call on him.

"About three thousand," it said. ^[3]

A short and, according to the report of the committee, a pretty sharp discussion followed the reading of this answer, ending in the despatch of

another telegram to the colonel:

"Hold on and care for what you have; enlist no more until further orders.

(Signed) ABRAHAM LINCOLN."

Colonel Birney's disappointment can be imagined. In another hour his boats would have been off and out of reach of telegrams. Now, all orders had to be countermanded and the boats tied up.

The next day the colonel went to Washington and had an interview with Mr. Stanton, always his friend, and ready to do for him all that his position towards the President permitted him to do.

The latter Colonel Birney did not see, but the encouragement, protection, and aid he received from the great war secretary, with whose patriotism mingled no selfish ambition, enabled him, after a few weeks, to reorganize his plans and continue the work which led to emancipation in the State of Maryland.

A new order was issued, by consent of the President, authorizing the enlistment of slaves of rebels and of consenting loyal masters.

The final details of this novel recruiting business will be given in another chapter.

CATHERINE H. BIRNEY.

THE OLD TUNE.

With sad face turned aside, lest sudden comers see her weep,
 She sits, her fingers softly trying, on the ivory keys,
 To find a half-forgotten way—that memories
May soothe her yearning spirit into dreamful sleep.

And now the old tune rises,—trembles,—slowly stealing
 round
 That empty room, where often in the other years
 It sang its love and tenderness, and gathered tears
To eyes that weep no more,—ah, sweetest, hallowed sound!

IRENE PUTNAM.

BOTH SIDES OF THE COUNTER.

ALMOST A TRAGEDY.

CHARACTERS.

Mrs. ETHEL NEVERBY,	<i>A Shopper.</i>
Mrs. MAUD SAMPELLE,	<i>A Shopper.</i>
Mr. NEWCOME,	<i>A Salesman.</i>
<i>A Chorus of Seven other Salesmen.</i>	

SCENE:—*The principal aisle of a fashionable shop. Mrs. Neverby and Mrs. Sampelle discovered sauntering along near a prominent counter strewn with rich woollen dress-goods. Mr. Newcome, as they pause for an instant, makes a dash forward toward the ladies: the seven other salesmen for a moment seek to restrain his ardor; but he refuses to be restrained, and instantly holds up to the gaze of the shoppers a piece of cloth with a most alluring air. They pause—halt—whilst the chorus, withdrawing, sing, in a low, melancholy voice—*

Chorus.

Poor Newcome!

Nay, we must not seek to prevent it;
If we should, he would only resent it:
Let us then be all silent anent it.
Let him say of his breath, "I have spent it;"
Of his patience, "Behold! I have lent it;"
Of his will, "Woe is me! they have bent it;"
Of his garment, "Aye, lo! I have rent it;
Because I believed that they meant it:
Meant to buy—
Heigh-o-heigh!

O—O—"

[Chorus retire and busy themselves with other remote customers and goods, keeping, however, a wary and observing eye fixed upon Newcome.]

NEWCOME (*gushingly*). What can I show you this morning, ladies?

ETHEL (*sweetly*). Oh, thank you, we are merely looking as we pass by.

MAUDE. Oh yes, that is all.

NEWCOME. It will do no harm to show you these goods, I am sure, ladies. These double-width, all-wool, imported French suitings, in all the latest shades, reduced, marked down only half an hour ago from two dollars and a half a yard to—one-fifty!

ETHEL (*takes a step nearer to the counter*). That blue is lovely, isn't it, Maud?

MAUD (*also taking a step counterward*). Yes, it is lovely.

NEWCOME. Is blue the color that you are looking for, madam?

ETHEL. Oh, not specially.

NEWCOME. Now just allow me to show you these blues: ten different tones,—the navy, Marie-Louise, slate, Russian, Princess of Wales, robin's-egg, army, cobalt, indigo, steel,—all of them exquisite, and very fashionable!

[Brings down pieces of goods and displays them.]

MAUD. They are lovely.

NEWCOME. All at the same price, one dollar and fifty cents, reduced from two and a half only this morning.

ETHEL. Why are they so low? (*Fingers goods*). Is there any imperfection?

NEWCOME (*ecstatically*). None in the world, madam—none in the world. They are just an importer's surplus stock that our buyer got at a tremendous

reduction, and we are selling them at this absurd price merely to get rid of them before taking stock.

MAUD (*eying the goods behind the counter on shelves*). Ethel, that gray is too sweet for anything; it would just match your chinchilla furs perfectly!

ETHEL. So it would!

NEWCOME (*tossing aside the blues with a jubilant air*). Gray, did you say, madam? We have a line of grays not to be found anywhere else in the city; every possible tint and tone. Is it for yourself, madam?

[Gazing at Ethel as he moves heavy pile of grays from shelf to counter.]

ETHEL. Oh no; we are, as I told you, merely looking (*glances at Maud*) for a friend.

[Chorus of clerics, softly and with a semi-sarcastic, semi-melancholic demeanor, advance and sing:]

They are looking for a friend,
Who is ill, and cannot spend
Any strength, but must depend
On their offices, and send
For some samples that may tend
To assist her health to mend.
So their time they gladly lend
To so laudable an end
As is "looking for a friend."

[Chorus retire and again busy themselves with other customers.]

MAUD. Yes, an invalid lady who is unable to go out at all; we thought if we could take her some samples.

[Chorus groan weakly.]

NEWCOME. Certainly, madam.

[Opens drawer and hands forth any number of packets of samples.]

ETHEL. Oh, how good you are! Thank you. Say, Maud, isn't that green, up there, the top of that left-hand pile, isn't it too lovely and chic for anything?

MAUD. Perfect.

NEWCOME (*abandoning the search for more samples*). Green—did you say green, ladies?

ETHEL. Oh, never mind!

NEWCOME (*struggling with the greens, which threaten to topple over on him*). No trouble at all, madam—none (*lands the greens successfully on the counter*). We have, as you see, a complete line of the greens—the most fashionable and stylish color of the season. Do be seated, madam, and just let me show you these unparalleled goods, one-fifty only a yard, reduced from two and a half, all-wool, warranted imported French dress material. We sell no domestic goods in this establishment.

MAUD. We might look at them, dear.

[Approaches seat.]

ETHEL. Well (*approaches seat*)—I suppose we might; we promised her we would look at everything, you know, and report this afternoon.

NEWCOME (*displaying goods*). There, ladies! I am sure there is not to be found anywhere in the city, or indeed out of it, such a selection of greens; all tones and shades to suit every taste and complexion. Is it for yourself, may I ask, madam?

MAUD. Oh no, no, no—for a friend.

NEWCOME. And what complexion is the lady, light or dark? We have tints to suit all.

MAUD (*to Ethel*). Would you call her fair or dark, dear?

ETHEL. Oh, dark, of course.

MAUD. You would! Why, I thought she was just about my complexion.

ETHEL. So she is, love, exactly.

MAUD. Why, darling! I am not dark, surely; I am considered to be very, very fair for a person with such dark hair and eyes.

ETHEL. Now, I would call you a perfect brunette, dear.

MAUD. How funny! Why, I'm just exactly your complexion.

ETHEL. Oh, my love, only reflect—my hair is yellow and my eyes are blue!

MAUD. I know, dearest, but you have an olive skin.

NEWCOME (*who has been patiently holding up the greens at the risk of breaking his arms*). There, ladies! I am sure we have a selection of shades in these greens that must suit the most fastidious.

ETHEL. They are beautiful!

[Sits.

MAUD. Lovely!

[Sits.

NEWCOME (*warmly, and much encouraged by the ladies having taken seats*). Oh, I can always tell at a glance what will suit a customer. Now, what you desire is not the common grade of colorings, but something elegant and yet not conspicuous—like this new reed-green, for example.

[Holds up the goods.

ETHEL. How sweet!

MAUD. Isn't it?

ETHEL. Do you really think she would like green?

MAUD. I don't know; she is so particular, you know.

ETHEL. Yes, I know. Didn't she— It seems to me she said something or other about brown—didn't she?

MAUD. Why, yes, to be sure, I believe she did.

NEWCOME (*casting the greens into a reckless oblivion*). Brown? We have a selection in all the browns that is not to be found elsewhere, I am confident. (*Struggles with great pile of browns; grows warm with effort; pauses to mop his brow with handkerchief; finally brings down huge number of browns and lands them on counter*). Our—assortment—of—browns—is (*heaves a deep sigh*), I may say, unequalled.

ETHEL. What a sweet shade that is!

MAUD. Isn't it?

ETHEL. Are these the same price as the others?

[*Fingers the browns.*]

NEWCOME. Exactly the same, madam; one dollar and fifty cents a yard, reduced from two and a half; all-wool.

MAUD. Are you sure they are all-wool? This piece feels rather harsh to me.

NEWCOME. Every thread, madam; that I will guarantee. We are not allowed to misrepresent anything in this establishment. You can see for yourself.

[*Recklessly frays out a few inches of the brown.*]

ETHEL (*also fingering goods*). Yes, they are all-wool; French, did you say?

NEWCOME. Every piece imported. We keep no domestic woollen goods whatever. We have no call for anything but the foreign goods.

MAUD. How wide did you say?

NEWCOME. Double width, madam—forty-four inches.

ETHEL. Five, seven—let me see, it would take about—how much do you usually sell for a costume?

NEWCOME (*with hilarity, holding up the browns*). From eight to ten yards, madam, according to the size of the lady. For your size I should say eight yards was an abundance—a great abundance.

ETHEL. She is just about my size, isn't she, Maud?

MAUD. Just about. It wouldn't take eight yards, I shouldn't think, of such wide goods made in Empire style.

ETHEL. No, I suppose not; but then it's always nice to have a piece left over for new sleeves, you know.

MAUD. Yes, that's so.

NEWCOME. An elegant shade, ladies, becoming to anyone, fair or dark. I am sure any lady must be pleased with a dress off of one of these—serviceable, stylish, the height of fashion.

ETHEL. Is brown really so fashionable this season?

NEWCOME. I am sure we have sold a thousand yards of these browns to ten of any other color.

MAUD. Is that so?

ETHEL. I do wonder if she really would prefer brown. What do you think, dear?

MAUD. Well, it depends somewhat, I think, on how she is going to have it made.

ETHEL. True. Well, I think she said in *directoire*.

MAUD. Plain full skirt?

ETHEL. Yes, smocked all around—no drapery at all.

MAUD. Candidly, love, do you like a skirt without any drapery at all?

ETHEL. Well, no, I can't say I do. Do you?

MAUD. No. I like a little right in the back, you know—not too much. But I think a little takes off that dreadfully plain look. Don't you?

ETHEL. Yes.

MAUD. How are y— I mean how is she going to have the waist?

ETHEL. I don't know. I heard her say that she was going to have a puff on the sleeve.

MAUD. At the elbow?

ETHEL. No, at the shoulder.

MAUD. And revers, I suppose.

ETHEL. Yes, those stylish broad ones.

MAUD. Of velvet?

ETHEL. Velvet or plush.

NEWCOME (*who has been manfully holding the browns up above his head, permits them to gently descend*). We have a full line in plushes and velvets, ladies, to match all these shades.

MAUD. How nice!

ETHEL. So convenient!

NEWCOME (*mildly*). Do you think you'll decide on the brown, madam?

ETHEL. Oh, dear! I don't know. It is so hard to shop for some one else!

MAUD. It is horrid.

ETHEL. I vow every time I do it that it shall be the last. I am always so afraid of getting something that the person won't like.

[*Sighs.*]

NEWCOME. Any lady must like this brown, madam. Just feel the texture of this piece of goods, and take the trouble to examine the quality. Why, I have never in all my experience sold a piece of goods of such a class at a cent less than two dollars a yard—never.

MAUD. It is very fine.

ETHEL (*vaguely eying the goods behind the counter on the shelves*). Is that a piece of claret-colored that I see up there?

NEWCOME (*lays down the browns with a faint sigh of reluctance*). Yes, oh, yes.

ETHEL. Never mind to get it down.

NEWCOME. No trouble in the world to show anything; that's what I am here for. (*Sighs as he attains the clarets and fetches them to the counter.*) Rich shades; ten tints in these also, calculated to suit any taste.

MAUD. I always did like claret.

ETHEL. Yes, it is so becoming.

MAUD. It has such a warm look, too!

ETHEL. Now, that—no, this one—no, please, that darker piece—yes. Maud, dear, that made up with plush and garnet buttons and buckles—Oh, did I tell you I saw some such lovely garnet trimmings at Blank's last week, only seventy-five cents a yard, just a perfect match for this. Wouldn't it be too lovely for anything?

MAUD. Indeed it would. I am almost tempted myself. Claret is my color, you know.

NEWCOME. A splendid shade, madam, and only just two dress lengths left.

ETHEL. Is this the same goods as the others?

NEWCOME. The very same; all-wool imported suitings, forty-four inches wide, reduced from two-fifty a yard to only one dollar and a half.

MAUD. Wouldn't that be just perfect with that white muff and boa of mine, dearest?

ETHEL. Too startling, love. Do you know, I think you made a mistake in getting that white set.

MAUD. Why?

ETHEL. Too striking.

MAUD. Do you think so?

ETHEL. Yes. Of course it's lovely for the theatre and opera.

MAUD. It's awfully becoming.

ETHEL (*to Newcome*). Now, do you really sell as much claret color as you do green or brown this season?

NEWCOME. Oh yes, madam; if anything, more. You see claret is one of the standards, becoming alike to young and old. Why, a child might wear this shade. Claret will always hold its own; there is a change in the blues and the greens and the browns, but the claret is always elegant, and very stylish.

MAUD. I think so too.

ETHEL (*meditatively*). I do wonder if she would like claret better than brown.

NEWCOME. I can show you the browns again, ladies.

ETHEL. Oh, never mind.

NEWCOME. No trouble in the world. (*Holds up browns and clarets both.*) Now you can judge of the two by contrast.

MAUD. Both lovely.

ETHEL. Which do you like best, love?

MAUD. My dear, I don't know.

NEWCOME. You can't go amiss, madam, with either of those, I am sure. Any lady must like either of them.

ETHEL. Oh, dear! I wish people would get well and do their own shopping; it is so trying!

MAUD. Horrid!

NEWCOME. An elegant piece of goods, madam; will wear like iron.

ETHEL. What would you do, dear?

MAUD. I really don't know what to say. When does she want to wear it?

ETHEL. Dinner and theatre.

MAUD. By gaslight, then?

ETHEL. Yes, of course.

MAUD. Does the gaslight change the shade much?

NEWCOME. Just a trifle, madam; it makes it richer.

MAUD. Darker?

NEWCOME. Just a half a tone.

ETHEL. Then that must be considered. Oh, dear!

[Sighs plaintively.]

MAUD. Why not look at it by gaslight, love?

ETHEL. Oh, I hate to give so much trouble!

NEWCOME. No trouble in the world, madam—a pleasure. I will gladly show you these goods by gaslight, for I am confident you will only admire them the more. Here, boy (*calls boy, and hands him a pile of goods*), take these to the gaslight-room. This way ladies, please. (*They cross the aisle and enter the gaslight-room, preceded by the boy, who sets down the goods and retires.*) There! look at that! Isn't that a rich, warm, beautiful color!

[Displays clarets.]

MAUD. Lovely!

ETHEL. Yes, lovely—but (*dubiously*) I am so afraid she won't like it.

MAUD. It is very perplexing.

ETHEL. Yes. Oh, how sweet those browns do look in this light! Don't they?

NEWCOME. Ah, I just brought over the browns, madam, for I thought you might care to see them too.

[Displays browns.]

MAUD. How they do light up! Don't they?

NEWCOME. Newest tints, every one of them. Not been in stock over a few weeks, and those browns have sold like wildfire.

ETHEL. For my own part I always did like brown.

MAUD. Yes, so do I.

ETHEL. It's so ladylike.

MAUD. Yes, and it's a color that is suitable to almost any occasion.

ETHEL. Yes. Now that lightest piece would be just too sweet, wouldn't it, made up with that new Persian trimming?

MAUD. Exquisite! Say, do you know I priced some of that trimming the other day.

ETHEL. Did you? how much?

MAUD. Awfully expensive! Five dollars a yard.

ETHEL. How wide?

MAUD. Oh, not more than four inches.

ETHEL. It wouldn't take much, would it?

MAUD. That depends on where you put it.

ETHEL. Well, just on the bodice and sleeves and collar.

MAUD. About two yards and a half.

ETHEL. Fifteen dollars?

MAUD. Yes.

NEWCOME. This brown trimmed in the manner you mention, ladies, would be very elegant.

MAUD. Yes, so it would. I wish now that I had looked more particularly at the browns out by the daylight.

NEWCOME. It is easy to look at them again, madam, I am sure. Here, boy, carry these goods back to the counter where you got them. (*Boy crosses, laden with goods; Newcome and ladies follow.*) That's it. (*Boy retires.*) Now, madam, just look at that shade by this light. Isn't that perfect?

ETHEL. Yes, it's lovely, but—

MAUD. Did she say she wished a brown especially, dear?

ETHEL. No, she left it to me entirely.

MAUD. How trying!

ETHEL. Yes. I—I really, you know. I don't dare to take the responsibility; would you?

[*Newcome's arms falter slightly in upholding the goods.*]

MAUD. Frankly, my love, I think shopping for anyone else is something dreadful.

ETHEL. It is so trying and so embarrassing. I don't dare really to get either (*Newcome's arms fall helpless; he sighs*) one of them.

MAUD. They are lovely, though; aren't they?

ETHEL. Yes, if (*Newcome revives a little*) I thought she would really be satisfied.

[*He essays once again to hold up the browns.*]

MAUD. But, dear, they never are.

[*His arms again droop.*]

ETHEL. No, never. No matter how much trouble you take, or what pains you are (*he sighs feebly*) at (*he totters*), they are so ungrateful.

MAUD. Yes, always.

ETHEL. Well, I believe we can't venture to decide this morning (*he staggers*) about the shade. We will very likely return to-morrow.

[He raises a weakly deprecating hand.]

MAUD (*aside, as the two ladies are going*). Well, we got off quite nicely.

ETHEL. Yes, didn't we! I wouldn't be seen in either of those horrid things; would you?

MAUD. No.

[Newcome falls to the earth with a groan of despair; the Chorus rush forward and gently raise him in their arms. As they bear him off, they sing, in a doleful and yet half-malicious fashion:]

Chorus.

Poor Newcome!

You are not the first man they have ended,
And left on the cold ground extended;
Or to whom they have sweetly pretended,
On whose taste they have weakly depended;—
Whom they've left on the cold ground extended,
Minus money they never expended,
On goods that they never intended
 To buy,
 Heigh-o, heigh,
 O—O—!

[They retreat, C., as the ladies exeunt, R., L. Music pianissimo as curtain falls.]

FANNIE AYMAR MATHEWS.

IRISH NORAH TO ENGLISH JOHN.

(Her theory of Home Rule under the Union.)

"It manes, and shure and where's the harm?"

Said Nora to her spouse;

"It manes: if you must mind yer farm,

That I shall mind me house."

BELLA'S BUREAU. ^[4]
A STORY IN THREE SCARES.

SCARE THE FIRST.

I almost flung myself into Dick Vandeleur's arms when he entered my library that evening.

"Can you imagine why I sent for you in such a deuce of a hurry?" I blurted out, embracing him effusively in my pleasure at seeing him.

"Well, I did think there might have been a woman in the case," he drawled, in his deliberate way, stopping to adjust his neck-tie, which had worked its way over his ear during the struggle. "But then, as I happened to have acted as your best man only two months ago, when you married the most charming of women, why, b'Jove, I—"

"Well, it is a woman," I groaned, cutting his speech short.

"The devil!"

"Yes, and the very worst kind, I fancy, if thoroughly aroused."

"But, my deah boy, with such a wife it's—it's—it's—"

"Yes, it's all that and a good deal more," I growled, gloomily. "Don't add to my misery with your ill-timed reproaches. Richard, a back number of my unsavory career has turned up to deprive me of my appetite and blight my being. You remember Bella Bracebridge, of the nimble toes, at whose shrine I worshipped so long and so idiotically? Well, I received a letter from her only yesterday."

"No!"—incredulously.

"Yes."

"What!—little Bella who used to caper around in such airy garments at the Alhambra?"

"The very same. I only wish I could be mistaken," with a despairing groan. "It seems she married money and retired from the stage. By some means she disposed of her husband, and is now a rich and probably good-looking widow. She has purchased an estate within half a mile of here, and is going in heavy for style. She wants to make me the stepping-stone to social success; she sighs for the purple penitentialia of the plutocracy. See what a predicament I am in! To introduce her in this house would plant the most unjust suspicions in Ethel's Vassarian mind, while her mother, Mrs. McGoozle, might institute awkward inquiries into the dear, dead past"—with a shiver of anticipation. "Now, my dear Vandeleur, that woman means mischief. She has got about a hundred of my letters breathing the most devoted love: if dear Ethel got a glimpse of a line she would go into hysterics. Bella has hinted, even politely threatened, that unless I show her some attention, which means introducing her to my wife's circle of friends, she will publish those letters to the world or send them to the dramatic papers. Now you must help me out of this scrape."

"Delighted to be of any service, I'm sure," tapping his boots impatiently with a jaunty little cane. "But, really, you know, I don't see—"

"Why, it's easy enough. Don't you remember we were once the pride of the school because we robbed watermelon patches so skilfully? What a narrow shave that was in the apple orchard the night before commencement, when you—"

"Yes, yes, I remember, dear boy; but what have those childish pranks got to do with the present case? We don't want to rob an apple orchard"—by way of mild protest.

"It is another kind of fruit that we are after—the fruit of youthful follies. Here," opening a cupboard and throwing out two pairs of overalls somewhat the worse for paint, two jumpers ditto, and several muddy overshoes, "Vandeleur, if you love me put these things on."

I fancy I can see him now adjust his glass and survey me with bulging eyes. I certainly did have nerve to ask that famous clubman, so irreproachable in

his dress, to assume such inartistic and plebeian garments.

It took a great deal of palavering before I could persuade him that I was lost unless he consented. How he grunted as he reluctantly laid aside his silk-lined white kersey coat and evening dress, and tried to put on the overalls with one hand while he held his aristocratic aquiline nose with the other.

"Really, I hope I shan't be found dead in these togs," he remarked ruefully, as he surveyed himself in the glass. "What would Flossy say? and how the chaps at the Argentine would wonder what I'd been up to!"

I cut short his speculations by thrusting a soft slouched hat on his head and dragging it down over his eyes.

"There now!" I said, standing off and contemplating him critically and admiringly; "you have no idea, my boy, how becoming this costume is. One might imagine you had been born a stevedore."

He looked rather sour at this doubtful compliment, and hitching up his baggy trousers, asked, "Well, what is the next misery?"

"It is twelve o'clock," I said, referring to my watch. "My wife has gone to bed. Like Claude Duval, we will take to the road."

After a stiff libation of brandy and soda we stole softly downstairs and found ourselves in front of the house. Only one light glimmered in the black pile, where Ethel was going to bed.

"Where away?" asked Vandeleur, as I turned the path.

"To storm Bella's bureau," I cried, leading the way through the dark.

SCARE THE SECOND.

With much difficulty we found ourselves at last in the spacious grounds of Bella's estate. I had laid my plans carefully the day before, and there seemed no possibility that they would miscarry. By liberal fees I had learned from her butler that she was to spend that night in New York with a friend, and for a further consideration he offered to leave one of the drawing-room windows open so that we should have a clear field.

Everything seemed to be working beautifully, and I already felt the coveted letters in my grasp. We found the French window ajar, and with tremulous hearts stepped over the sill and into the room. After several collisions with the furniture, of which there seemed to be what we thought an unnecessary amount, we finally scraped our way into the hall.

Here was a quandary. We were in a hall, but what hall? Whether the stairs led in the right direction there was no one present to consult. We walked or rather crawled up them, nevertheless. I tried the first door on the landing, and was rewarded with "Is that you?" by a female voice that sent us scuttling along the passage in undignified haste.

Well, at last, after many narrow escapes from breaking our necks, we reached Bella's room. I knew it the moment I saw the closet full of shoes. Bella was always proud of her feet, and had, I believe, a pair of boots for every hour of the day.

To make things even more sure that I had arrived at the chaste temple of my former flame, there was the famous bureau of ebony inlaid with ivory—that bureau which contained enough of my inflammatory letters to reduce it to cinders.

"Can you regard that bureau with equanimity?" I exclaimed, unconsciously assuming a dramatic attitude. "Does it not recall your vanished youth—the red horizon of your adolescence? Ah," I cried, overcome by the sight of that familiar bit of furniture, "how often have I slid a piece of jewelry into that top drawer as a surprise for Bella! Her delighted shriek which followed the discovery rings in my ears even now. Oh, halcyon days of happy holiday, mine no more, can a lifetime with a funded houri wholly fill your place?"

"That's all very well," cried Vandeleur, who can assume a disgustingly practical tone when he wants to. "While you are rhapsodizing here over your poetical past, some stalwart menial may arrive with a blunderbuss, and fill our several and symmetrical persons with No. 2 buckshot. Perhaps Bella may have missed her train or her friend. She might return here at any moment and surprise us"—looking around him uneasily.

"Anybody would think that you had never been in a boudoir at this time of night," I retort savagely.

I begin to pull out the drawers of the bureau, breaking locks in the most reckless way, and tossing the contents of these dainty receptacles about in the most utter confusion. Vandeleur, with his eyeglass adjusted, is poking into everything in the closet as if he were looking for a mouse, only pausing now and then to glare around with an apprehensive shiver.

"Dear me," I soliloquize, while the contents of those bureau drawers are tossed here and there in the fever of my search. "How everything here reminds me of the past! She has even preserved the menu card of that memorable dinner at Torloni's; and here—here is a lock of brown hair tied with a pink ribbon! I really believe it must be mine!"

"My deah boy," howls Vandeleur, shaking me by the arm vigorously, "will you cut short your soliloquy? Is this a time for poetry, when we might get ten years if we were found burglarizing this house?"

I pay no attention.

"And here is the steel buckle from her shoe that fell off the night we danced together at the French ball. Poor dear Bella! that was not the only dance we led where folly played the fiddle!"—with a thrill of reminiscence.

"If you don't find those letters in just two minutes," interrupts the dreadful Vandeleur, "I shall post for home."

"In one second, my boy—one second."

Now I examine the bureau carefully for a concealed drawer. I seem to have ransacked every corner of that precious article in vain. Visions of Bella's vengeance flash before my eyes. I can see the demoniac smile on her face as she gloats over my downfall. The white wraith conjured up by the thought of those fateful letters fills me with a mad fury, and I long to dash that hateful bureau into a thousand pieces and flee the house.

But the demolition could not be executed noiselessly, and the situation is perilous enough already for a man of my delicately organized constitution, with a heart that runs down with a rumble like a Waterbury movement; so I think I won't break the bureau.

I renew my mad search for the missing drawer, that seems to be of a most retiring disposition, as drawers go. I bethink me of stories of missing treasure: how the hero counted off twenty paces across the floor, and then dropped his dagger so that its blade would be imbedded in the wood, and then dug through several tons of masonry, until he found a casket, sometimes of steel, sometimes of iron, and sometimes of both.

And then he did a lot more mathematical calculating, and pressed a knob, and there you are! Ah! a thought—I had forgotten to apply myself to the moulding of the bureau, as a hero of the middle ages would have done under the circumstances.

I begin from side to side, up, down, and around. Ha! ha! at last! A little drawer shoots out almost in my face, startling me like a jack-in-the-box.

A faint perfume of crushed violets salutes my nostrils. The letters—they are there in the bottom of the drawer! I know them too well by the shape of the square large envelopes. They cost me many a dollar to send through the stage-door by the gouty Cerberus at the gate when Bella trod the boards.

I reach out my hand to seize them, when an awful scream causes me to stagger back in dismay.

Bella Bracebridge, in a jaunty travelling dress, stands in the doorway in the attitude of a tragic queen—her eyes flashing, her bosom heaving, just as she looked the day she asked for a raise in salary and didn't get it.

She steps towards me: I retreat, transfixed by her defiant attitude. She fear a common burglar? Never!

I know she intends to seize me and scream for help, and I am afraid, too, that she may recognize my face. So I step back—back, edging towards the window.

She reaches out her hand to seize me, then totters and falls in a dead faint.

I look around for Vandeleur. He has lost all presence of mind; is staring at the figure on the floor, with wild, dilated eyes, and an expression of hopeless idiocy on his face. I can hear people moving below stairs. Her scream must have aroused the house. "Vandeleur," shaking him by the arm,

"we must run for it. Do you understand? Ten years! Hard labor!"—the last words hissed excitedly in his ear.

"What? where? who?" he mumbles, with a face as expressive as that of codfish.

I rush to the balcony to see if we can make the jump below. It is dark, but the leap must be made. Better a broken leg than a ball and chain on a healthy limb for years and years.

I drag Vandeleur in a helpless condition out on the balcony, boost him up on the railing, and push him off. Then I leap after him.

Fortunate fate! We fall into a clump of blackberry bushes, and not a moment too soon. Lights flash out from above. I hear the hum of excited voices, Bella's calm and distinct above the rest, as she gives the ominous order, "Let those bloodhounds loose!"

Ugh! We scramble out of the bushes in the most undignified haste, leaving most of our outward resemblance to human beings on the thorny twigs. Then helter-skelter over the fields and hedges, stumbling, staggering, and traversing what I suppose to be miles of country.

Vandeleur is snorting like a steam calliope in bad repair, and I am breathing with the jerky movement of an overworked accordion. "I can go no farther," he exclaims, dropping down in a huddled heap at the foot of a scrubby pine-tree like a bag of old clothes.

I don't feel much in a hurry either, but I try to infuse some life into him by hustling him and shaking him in a brutal and unsympathetic manner.

"Do you hear that?" I howl in despair as the baying of the bloodhounds rolls towards us over the meadow like muttered thunder. "There is nothing to do but climb this tree, unless you want to furnish a free lunch for those brutes."

"Free lunch? get me some," he mumbles, relapsing into his old idiotic state again. Then I fall upon that unfortunate man in a fury of rage, and pound him into a consciousness of his danger.

He consents at last to be pushed or rather dragged up in a tree, whose lowest limb I straddle with a feeling of wild joy and ecstasy just as the

hounds rush past below, their flashing eyes looking to me just then as large as the headlights of a host of engines.

"Let's go home now," again murmurs the helpless creature at my side, shaking so on the limb that I am compelled to strap him there by his suspenders.

"Ain't we going home?" he chatters. "I want a good supper, and then a bed—*bed*," lingering on the last word with soothing emphasis.

"Oh, you'd like a nice supper, would you?" I growl. "Well, those bloodhounds are after the same thing. Perhaps you had better slide down the tree and interview them on the chances. Then one or the other of you would be satisfied."

"But they've gone away."

"Well, you needn't think you have been forgotten, just the same. Don't you see, wretched man, that the morning is breaking," pointing to the east, where the sun had begun "paintin' 'er red." "Once in the high road we should be discovered at once; here at least we are safe—uncomfortably safe," as I moved across the limb and impaled myself on a long two-inch splinter with spurs on it.

He fell into a doze after that, only rousing himself now and then to utter strange croaking sounds that frightened me almost as much as the baying of the bloodhounds. I think I fell asleep too for a few moments, for when I was roused by an awful yell proceeding from my companion I found that he had burst his bonds and fallen out of the tree, while the bright sun was shining in my eyes.

Visions of Ethel's face over our charming breakfast-table rose before me, and I seemed to scent afar off the steam of fragrant mocha in a dainty Sèvres cup as she held it towards me. The thought of that morning libation settled the business.

I would march stalwartly home—yea, though a thousand bloodhounds with dangerous appetites barred my way!

I slid down the tree and found Vandeleur still asleep. I don't believe that even the fall had waked the poor fellow up.

I had only to whisper the word "Breakfast" in his ears to have him start as if he had received a galvanic shock.

"Where?" he asked, with tears in his eyes.

"Home."

We crawled along through the bushes in the wildest haste our poor disjointed and almost dismembered bodies would carry us; like a pair of mud-turtles who had seen better days did we take to all-fours.

Fortunately, my place was not far away, and we had just strength enough to crawl up on the porch and fall against the door heavily.

"Breakfast," I gasped, as Ethel's lovely face appeared suddenly at my side like a benignant angel's.

"What—what can I get you?" murmured the dear girl, in an agony of mind, hurrying here and there, her eyes suffused with tears.

"Bloodhounds!" murmured Vandeleur, relapsing into idiocy.

SCARE THE THIRD.

If you have ever had the fortune to be married to a Vassar graduate of the gushing and kittenish order, between nineteen and twenty, you will understand how difficult it was to explain my dilapidated appearance that memorable morning.

The ingenuity of my fabrications would have stocked a popular romance writer with all the modern conveniences; and I am sure the recording angel must have had difficulty in keeping pace with my transgressions unless he or she understood short-hand.

Vandeleur took an early opportunity to escape to the city, knowing very well that he would be held accountable for my degraded and dilapidated

condition. The friends of a married man always are held responsible by his wife for any of his moral lapses, no matter when or where they may occur.

If I had only succeeded in my undertaking I might have viewed even my wounds—of which there were many—with some equanimity. But to have suffered in vain was enough to try the strongest soul; and I am afraid I was unnecessarily brusque to Ethel when she insisted on soaking me hourly in the most horrible liniments of her mother's decoction. I was pickled for about a week by her fair hands, and had become so impregnated with camphor and aromatic compounds that I exhaled spices like an Eastern mummy or a shopworn sachet-bag, and longed to get away from myself and the drugstore smell that clung to me closer than I ever want my brother to cling. I consented to the embalming process, because I wanted to look respectable when Ethel's mother, Mrs. McGoozle, put in an appearance. I knew I could not so easily satisfy her mind regarding that night of folly without the sworn affidavits of half-a-dozen reputable citizens. She said I wrote so much fiction that it had become a habit with me never to tell the truth.

My eyes had just begun to lay aside mourning when I received at the dinner-table one stormy night the local paper. I took it for my wife, who had a penchant for reading the patent-medicine advertisements; but on the present occasion I displayed an unholy eagerness to get at its contents. More misery! More horrible complications!

Almost the entire sheet was given up to a description of the burglary. There was a picture of Bella's house and of Bella herself; of the cook, of the coachman—yes, and even of the bloodhounds.

I had puzzled my brain since that night in trying to imagine why the hounds had sped past our tree, our noble tree, instead of gathering in convention at its base and talking the matter over among themselves while we starved to death upstairs. The paper gave the solution of the problem. They were pursuing the trail that led to our milkman's farm—the poor creature of whom I had basely borrowed our suits and overshoes.

The worthy man had been arrested and haled before the nearest justice of the peace, and had he not been able to prove an *alibi* to the effect that he

was watering his cows at the time, he would have been summarily dealt with.

But he had held his peace about my share in the transaction—bless him! and being a thrifty man, had brought a suit against Bella for threatening his life with her dogs.

Yet I had no cause for congratulation, for now I was in the milkman's power as well as Bella's; and the very next day the honest fellow put in an appearance, very humble and yet very decided, and insisted that I should present him with Ethel's prize Frisian cow as a premium on his silence.

And I had to consent, though my wife had hysterics in parting with the animal, and sobbed out her determination to tell Mrs. McGoozle everything when that lady arrived in a few days.

This may not sound very terrible to you, but I knew the dreadful import of her words.

There was a flash of light through the gloom of my suicidal thoughts the next morning that made my heart beat high with hope.

I read in the morning paper that Bella, the cause of all my trouble, was dead, and that there was to be a sale of her effects at a New York auction-room the next day.

Of course that dreadful bureau was in the lot, and I knew that if it fell into unscrupulous hands there was enough material in that little drawer to stock a blackmailing establishment for years and years.

I took the first train for the city on the day of the sale. The bureau—Bella's bureau—was just being put up as I entered the place.

I had a thousand dollars in my pocket, so I felt rather contented in mind. The bidding on the bureau began in a discouraging way. The hunger of the crowd had been appeased before I came, and they displayed a lukewarm interest in the bureau. I bid two hundred dollars finally to settle the argument. I was tired of the delay. I wanted to settle forever the incubus that preyed upon my spirits. "Two hundred," I cried exultantly.

"Three hundred dollars," came in quiet tones from the corner of the room. The words seem to ripple in an icy stream down the back of my neck. Could it have been the echo of my voice that I heard?

"Four hundred," I cried uneasily. The terrible thought flashed over me, that perhaps another lover had turned up, who believed that his letters were in the bureau, and was just as anxious to get it as I. Horrible!

"Four hundred is bid for this beautiful Louis Fourteenth bureau," howled the auctioneer, repeating my bid. "Why, gents, this is a shame: it's—"

"Five hundred," said the voice from the corner, in calm, cold tones.

Ah, if I could slip through the crowd and throttle his utterance forever.

"Six hundred," I screamed, in desperation.

Then my unseen foe woke up and we began to bid in earnest. Six, seven, eight hundred, ran the bids.

In one of the lulls of the storm, when the auctioneer began to wax loquacious regarding the beauties of that bureau, I slipped secretly around to the cashier's desk.

Would he take a check? I implored. No, he would not; and I thought he wore a triumphant glitter in his fishy eyes. The terms of the sale were cash: it was to conclude that day. I turned away, sick at heart.

"A thousand!" I cried, in desperation, staking my last dollar. There was a moment's ominous silence. I began to feel encouraged. I watched the fateful gavel poised in the air, with my heart in my teeth. It wavered a moment, then began to slowly descend. Never had I seen such a graceful gesture defined by man as the freckled fist of the auctioneer described at that moment of hope.

"Twelve hundred," croaked the demon in the corner.

The crowd blended into a pulp of color. I fainted.

I lingered about the city all that night, searching in vain for a lethean draught at the haunts where consolation is retailed at two hundred per cent

profit. I did not find the nepenthe I sought for anywhere on draught, so I went home in disgust.

Ethel received me in her usually effusive manner. She knows I object to being hugged at all hours of the day, yet I have never been able to cure her of that affection-garroting process so much in vogue with young wives of the gushing order.

"What do you think?" she chirped, when I had staggered to a chair in a half-strangled condition. "Dear mother has just sent us the most beautiful present —"

"Oh, I suppose so," I sneer savagely. "She generally does present us with something beautifully useless. Perhaps this time it's a dancing-bear, or a tame codfish"—with a wild laugh.

"Oh, how can you talk so!" lifting a dab of cambric to her nose with a preliminary sniff that is generally the signal of tears, according to our matrimonial barometer. "You know dear mother is so fond of you."

"Well, it's a case of misplaced affection," I growl, lounging out of the room just in time to avoid the rising storm.

I dash upstairs and smoke a cigar in my own room. Then I feel better, and stroll into Ethel's boudoir, resolved to pitch her mother's present in the fire if it doesn't suit me. She ought to be suppressed in this particular. "Wha—what! No—yes, it is!" The bureau, Bella's bureau, stands in the chaste confines of Ethel's satin-lined nest. I fling myself upon it, tear the little drawer open—hurl the bundle of letters into the grate with a cackling laugh.

Ethel enters timidly just then, and looks first at me and then at the burning papers with doubt and wonderment in her blue eyes.

"I have been paying some old debts," I say, with an uneasy laugh. "These are some of the I.O.U.'s you see burning."

She lays a soft little arm around my neck and a curly head on my immaculate shirt-front. Oh, spotless mask for such a darksome heart! I wonder she cannot catch the sound of its wicked beating.

"I have been worried about you lately, dear," she whispers, with a tender tremor in her voice. "I thought perhaps you might—you might—have become entangled with some other—other—" Then she burst into tears.

"How often must I tell you, darling," patting her cheek softly, "that you are the only woman I ever loved?"

"Oh, Jack!"

ERNEST DE LANCEY PIERSON.

A SHOT ON THE MOUNTAIN.

An eagle drifting to the skies
To gild her wing in sunset dies,
 To float into the golden,
To swing and sway in broad-winged might,
To toss and heel in free-born right,
 High o'er the gray crags olden.

A dark bird reaching on aloft,
Till far adown her rugged croft
 Lies limned in misty tracing—
Till, riding on in easy pride,
Her cloud-wet wings are ruby pied,
 Are meshed in amber lacing.

An eagle dropping to her cave
On dizzy wing through riven air,
 A bolt from heaven slanted;
A startled mother, arrow-winged,
A mountain copestone, vapor-ringed,
 An eyry danger-haunted.

An eagle slanting from the skies
To stain her breast in crimson dyes
 Beneath the gilt and golden;
A shred of smoke—the gray lead's might—
A folded wing—the dead bird's right—
 Abreast the gray crags olden.

The blush light fades along the west,
The night mist rolls to crag, to crest,
 To cowl the ghostly mountain;
Black shadows hush the eyry's calls;
Below, a broad brown pinion falls—
 The last light from the fountain.

J. W. RUMPLE.

EDITORIAL DEPARTMENT.

PURIFYING THE POLLS BY LAW.

The edifying efforts made by Congress to throw guards about the ballot would be encouraging were they based on a little knowledge of the fact, and the reason for it. As it is, the *be-it-enacted* agreed on is little better than a solemn protest. Our learned law-makers would enjoy greater progress if they would remember that we have had for a century all the law necessary to punish such corruption, and that the trouble lies in our inability to enforce its provisions.

What is really wanted is a tribunal to try and enforce the stringent enactments already in existence. This does not now exist. When a candidate for Congress corruptly purchases enough votes to secure his return to either House, he knows that such Chamber, being the judge of such applicant's qualifications, forms a court without a judge to give the law or an impartial jury to render a verdict. The Committee on Elections in either House is made up of the Democratic or Republican party, and so the jury is packed in advance.

This is not, however, the only evil feature in the business. There is probably no organized body so ill-fitted for adjudication upon any subject as Congress. Returned to place by parties, the members are necessarily partisans. Their tenure of office is so brief that they have no time in which to learn their legitimate duties through experience, and these duties are so numerous, to say nothing of being encroached upon by services entirely foreign to their positions, that they have no opportunities for study. The consideration then of any subject from a judicial point of view is simply impossible. It is "touch and go" with them, and the *touch* is feeble, and the go hurried. It seems that a case of purely judicial sort has no place in Congress; and yet we have seen an instance—for example, in the New Idria contention—where the courts had been exhausted, from an Alcalde to the Supreme Court of the United States, and yet the complainant, worsted in

every one of these tribunals, came through the lobby into Congress, and for over ten years kept that body in a tumult. Of course this was kept alive by the corrupt use of stock to the extent of ten millions, based on the credit of a company that would be such when Congress gave its illegal approval. This fact alone proves the dangerous and uncertain character of a legislative body that takes on judicial functions.

When a contested election goes before the standing committee called into existence as a court, it passes into a secret committee-room, where the so-called evidence, put on paper, is supposed to be considered. What would be said of a jury impanelled avowedly from the party of one side, and then made into a court to sit and deliberate with closed doors against the public?

It is true that the finding is shaped into a report and goes before the House. But no member of that body, especially of the House of Representatives, has either time or opportunity to read the evidence, or even to listen to the arguments made by contestants upon the floor. That tribunal has lost all power in its loss of public confidence. It not only brings the law into contempt, but itself into such disrepute that its findings are worthless. This is the condition of Congress in public opinion. So far as contested elections are concerned, it is regarded with contempt. To make matters worse, and pay a premium on vice, the losing party is allowed the same mileage and pay given his successful competitors.

If all contests were turned over to the United States courts, to be tried in the locality where the wrong complained of was done and the witnesses live, there would be few contested elections, and some chance given to punish bribery and other corruption.

Again, the prohibition against the subscription or payment of money has exceptions that open wide the doors to corruption. To say that money may be used for any purpose is to leave the evil precisely where the law-makers found it. It were better to have the government furnish the tickets, as the government supplies the ballot-boxes, rents the polling-places, and pays the officials for their services. The ballot is as much a necessity to the machinery of election as the boxes; and because it would be difficult and troublesome to supply them is far from saying that it is impossible.

Then, to punish both bribe-giver and bribe-taker in the same way is to throw a guard about the iniquitous transaction. The bribe-taker should go acquit. Of course this would be in a measure opening a door to blackmailers, and make the candidacy extremely dangerous. Such it ought to be. The sooner we put a check on the shameless solicitations for office the better it will be for the Republic. Let the offices, as of old, in the purer days of the fathers, seek the man—and not the man, as now, the offices. If the effect of this would be to drive timid, decent men from office, it would not be worse than the present system. A candidate for the House of Representatives must not only pay his two years' salary in advance to "heelers," as they are called, but must get drunk in every saloon in his district. We cannot make matters worse, and there is a chance in a change for an improvement.

True reform to be effectual must be radical. A compromise with evil is a surrender to hell. To cut a poisoned shrub even to the ground relieves the eye for a time, but the root is made more vigorous by the trimming. The constitutional governments of Europe have rid themselves of bribery and other corruption by digging out the roots. This is the only course open to us. When members of the House can bribe their way to place, when Senate chairs are sold in open court, when it calls for only two millions to purchase the Presidency, and all done by men of high social position, we have reached the lowest level, and our great Republic is a mere sham and a delusion. We are not menaced with the loss of liberty and guaranteed rights. They are gone.

THE MUGWUMP ELEMENT.

The purchase of the Presidency in open market, now generally recognized, is less disheartening than the apathetic indifference in which such corruption is regarded by the people. In all communities men may be found to buy, and men to sell, the sacred privilege upon which our great Republic rests; but it is rare—so rare that this experience is almost without precedent—that good citizens, knowing the nature of their free institutions, are willing to have them destroyed without an effort in behalf of their preservation.

To get at not only the fact but the reason of it we must remember that politics to the average citizen has all the fanaticism of religion, and all the fascination of gambling. We have the country divided in two hostile camps, and in these organizations themselves we have lost the objects for which they were organized. This is the tendency of poor human nature the world over. It is probably more pronounced in religion than in any other form. A man will not only fight to the bitter end, but die as a martyr, for a sect whose dogmas he has never read, or, if read, fails to comprehend. Politics is our popular religion. Taking the great mass of our citizens, we are pained to write that it is about our only religion.

We say that we have two hostile camps, in both of which the objects for which they were organized have been entirely lost. The ordinary Republican can give no reason for being such save that he is not a Democrat, and the Democrat has the same reason, if it may be called such. Each will avow, without hesitation, that the other camp is made up of knaves and fools. The folly of thus designating over half our entire voting population does not strike the partisan.

Parties, however, are not called into existence and held together through intellectual processes. They are founded on feeling. For years and years the brightest minds and purest characters preached, with burning eloquence, upon the wrongs of negro slavery, and got ugly epithets and foul missiles in return, if indeed they were listened to at all. At a moment of wild frenzy an armed mob at Charleston shot down our flag. In an instant the entire people of the North rose to arms, and a frightful war was inaugurated. The flag sentiment outweighed the Abolition arguments.

It is not our purpose to give the philosophical view of that contest. We use it only, so far, in illustration. The sectional feeling that brought on that armed contest continues in another direction, and divides the two great parties. It is so intense that each is willing to see the republic under which we live utterly destroyed, so that one may be conquered or the other defeated.

We are all agreed that the ballot is the foundation-stone of our entire political structure. On this was built the form of government given us by the fathers, and was the grand result of all the blood and treasure, of life and property, so patriotically poured out in the Revolution that made us

independent. Yet this ballot is openly assailed, its processes corrupted with money, and its usefulness entirely destroyed, without arousing the indignation of an outraged public. Men of wealth, of high social position, members of churches, and leaders in what are called the better classes, subscribe and pay the money knowingly that is to be used in the purchase of "floaters in blocks of five" or more, while voters, well-to-do farmers, and so-called honest laborers are organized willingly into blocks and shamelessly sell that upon which they and their children depend for life, liberty, and a right to a recompense for toil. When the result is announced bonfires are burned, and loud shouts go up amid the roar of artillery, expressive of the joy felt in such a triumph.

These men of means—it makes no odds how the means are accumulated—are not aware that in this they are cutting away the foundations under their feet, and that, too, with ropes about their necks. Their only security, not only to the enjoyment of their property but to their lives, lies in the very government they are so eager to destroy. We have called attention to the fact that humanity suffers more from an inequality of property than from an inequality of political rights. These last are rapidly getting to be recognized and secured in constitutions throughout the civilized world. Kings and emperors have come to be mere figure-heads above constitutions, and the political dignity of the poor man is generally acknowledged. But the poor man remains, and the castle yet rears its lofty front above the hovels of the suffering laborers. Humanity is yet divided between the many who produce all and enjoy nothing, and the few who produce nothing and enjoy all. This is the inequality of property, and governments yet hold the sufferers to their hard condition. It is called "law and order," as sacred in the eyes of the Church as it is potent in courts of justice.

There is no government so poorly fitted to the execution of the hard task of holding labor down as this of the United States. In Europe through the dreary ages the masses have been born and bred to their wretched condition. With us, on the contrary, there has been a great expenditure of toil and treasure to teach labor its rights. In Europe great armies are organized and kept upon a war footing for police duty. We have no such conservative force upon which to rely in our hour of peril, and yet so far our government has held sway through our habitual respect for that which we created. These wealthy corruptors are rapidly destroying this respect. They are teaching the

people that their ballots are merchantable products, and their ballot-box a rotten affair.

Violence follows fraud as surely as night follows day, or a thunderstorm a poisoned atmosphere. The day is not distant when these millionaires will be hunting holes in which to hide from the very mobs they are now so assiduously calling into existence. God in his divine mercy forgives us our sins when we are repentant, but the law that governs our being—called nature—knows no forgiveness. The wound given the sapling by the woodman's axe is barked over, but that cut, slight as it seems, remains, and may hasten decay a hundred years after. The wrong done the body politic may fester unseen, but it festers on all the same.

Fortunately for the people there is yet a feature in the situation that gives us hope. We are blessed with no inconsiderable body of men of sufficient sense and conscience to rise above party control and vote in support of good measures and honest, capable men. These are not men dominated by one idea, and devoted to some one measure that is to remedy all our political ills. These are "cranks," so called, because they believe that human nature is constructed like machinery—something like a coffee-mill that has a crank that, if turned and turned vigorously, will put the entire machine in good running order. To some this is temperance, to others the tariff, to a third our common-school system: and so they give their lives to a vociferous demand for help to turn the one peculiar crank.

We refer, not to such as these, but the thoughtful, patriotic few who rise above party obligations to a consideration of their country's good. These men are not organized into a party,—unless the fact of two men thinking and feeling alike make a party,—and, as compared to the Republican and Democratic camp-followers, are few in number. But, in the evenly divided condition of the two organizations, these men hold the balance of power, and are dreaded in consequence. Had it not been for the money used by Republicans, and the treachery practised by a few leading Democrats, these independents would have given New York to the Democracy, and Grover Cleveland would be President for the next four years.

These men are derided, scoffed at, and held in high disdain by the partisans of both parties. They are called Mugwumps; and when this strange epithet

is hurled at them the assailant seems to feel relieved. This is no new thing. Among the traditions of the Church is one to the effect that as the devil talks he spits fire. All reformers are treated to this. It is well remembered that in the troublous times of '61 the Mugwumps, then denounced as Abolitionists, came to the front and carried the government through its dark hour of peril to a triumphant close. They were brave, brainy, patriotic men, not disturbed by the abuse heaped upon them.

We are comforted to observe the power of these few men as proved in the debate on the civil-service law of the House when an appropriation was called for to sustain the Commission. The debate proved what we all know—that probably not a member of the House but regards the reform in utter loathing and wrath. And yet, when the vote was taken, but a small minority were willing to put themselves on record in opposition. The same clear appreciation of the evil consequences attending this corruption of the ballot, and the conscience that makes itself felt as that of the people, are forcing a reform in that direction. The time is not distant when the now much-reviled Mugwumps will be regarded, as are the Abolitionists, as the true patriots of the day. God would have forgiven Sodom and Gomorrah could five righteous men have been found in either city: this not out of regard for the five, but from the evidence afforded that if that number existed, these wicked places could not be altogether lost.

OUR HOUSE OF LORDS.

The dignity of this unnecessary and disagreeable body was somewhat disturbed by a Senator in a wild state of intoxication, who from his place in the Chamber assailed in unseemly language the presiding officer.

Great consternation fell upon the British House of Commons when the discovery was made that an entire session had been gone through without "that bauble," as Oliver Cromwell called it, being upon the table. When Doctor Kenealy, friend and attorney of the Tichborne Claimant, was about being sworn in as a member of Parliament, it was observed that he had a cotton umbrella under his arm. A horror too profound for utterance fell upon the House, and all proceedings were arrested until the obnoxious compound of cotton and whalebone was removed.

We refer to these events for the purpose of impressing upon our delegated sovereigns from sovereign States, that unless the proprieties are preserved their dignity cannot be maintained. What would be thought of the British House of Lords if Lord Tomnoddy, for example, were to roll in very drunk, and make personal remarks touching the integrity of the presiding officer? The thought of such an event threatens insanity. The British Empire would totter, the throne shake, and the House of Lords disappear forever.

The inebriated Senator was not arrested, or even rebuked. We all know why. On his one vote depends the Republican control of the Senate. To seize upon, arrest, and cart away, under charge of drunken and disorderly conduct, the Republican majority of the Senate was so preposterous as not to be entertained.

As force could not be used, strategy was resorted to, and the inebriate Solon was invited out to take more drinks, in the hope that a little more liquid insanity would render him *hors de combat*.

This is not the first instance of embarrassment of like sort. When the men who organized the Star Route dishonesty of the Post-office Department were indicted, it was found that the head and front of this offending was a United States Senator. He held the one vote that gave his party its supremacy in the Senate. To send the Republican majority vote to the penitentiary was not to be thought of—and so the court was packed to acquit.

A body that subordinates its dignity to the supremacy of a party cannot long retain that awe-inspiring respect so necessary to its existence. Our House of Lords should bear in mind that the only reason—if such it may be called—for its existence, is in this dignity. If the Senate is not the holy, embalmed mummy of a dead king once known as State sovereignty, it is naught; therefore, when a Senator endangers this title to existence by unseemly conduct, either as an inebriate or as a bribe-taker, he should be incontinently expelled. The expulsion should be conducted with great ceremony. He should be divested of his robes in the presence of the august body—robes being procured for the occasion. One might be borrowed from the Supreme Court. Then the culprit should be conducted by two assistant Sergeants-at-Arms, one having hold of each arm. The Sergeant-at-Arms should march

behind, bearing the mace. We believe the Senate has that utensil; if not, that of the House of Representatives could be procured. At the main entrance the Sergeant-at-Arms should fetch the mace into a charge, and planting the eagle in the small of the culprit's back, thrust him out. All the while the chaplain, in a solemn but distinct voice, should read the Service for the Dead. After, the presiding officer should give three distinct raps of his ivory gavel, and say in joyous but decorous voice, indicative of triumphant yet seemly satisfaction: "The expurgated Senate will now proceed with the business of legislating for the House of Representatives."

So necessary is dignity to the existence of this august body, that the presiding officer should have an eye continually to it; and when a Senator, in debate, makes himself ridiculous, he should at once be called to order. When, for example, the Hon. Senator from Vermont (Mr. Edmunds) gave his grotesque picture of a common American laborer being possessed of a piano, and a wife in silk attire, in his own cottage home, he should have been promptly called to order. The presiding officer should have remarked that the picture, being imperfect, was in a measure untrue, and as such could not be entertained by the Senate. The Senator, however, has the privilege of amending his sketch by saying that the laborer has not only the luxury found in a piano and silk-clad wife, but a mortgage on the premises. This, although improbable, is not impossible for a common laborer; and if the Hon. Senator will vouch for the fact that he knows one such, his statement may go on record for what it is worth.

This would serve to abridge the liberty of speech guaranteed to us by the Constitution. But we must remember that the same larger freedom exercised in a bar-room, or upon the streets, or on the floor of the House of Representatives, is a menace to the dignity of the Senate; and in view of this, freedom of speech is somewhat circumscribed. When, therefore, the Hon. Senator from Indiana (Mr. Voorhees) shakes his senatorial fist at the Hon. Senator from Kansas (Mr. Ingalls), and calls him an anathematized offspring of a female canine, or words to that effect, he fractures the dignity of the Senate, and further adjudication does not turn on the truth of the utterances as in a court, for we are forced to remember that it is one-half of the sovereign State of Indiana shaking its fist at one half of the sovereign State of Kansas. This is very like the old story of the sheriff of Posey County, Kentucky, who being agitated in a robust manner by an angry

citizen, called on his assailant to desist, as he was "shaking all Posey County."

How long the practical common-sense citizens of the United States will submit to this worn-out superstition of a Senate is a question that strikes every thoughtful mind. The body was born of a narrow sectional feeling, long before steam navigation and railroads made the continent more of one body than was a single colony before the Revolution; and was a concession to State sovereignty, with the new and accepted principle of home rule found in State rights. It further confuses and demoralizes the civil rule of the majority under the Constitution, as it gives to Rhode Island or Delaware the same power held by New York or Pennsylvania.

It was believed by the framers of our government that it would be a conservative body, and serve as a restraint upon the popular impulses to be expected from the House. This has not proved to be the fact. The tenure of office given a Senator is of such length that it weakens the only control found in public opinion, and this august body is more extravagant, corrupt, and impulsive than the more popular body at the other end of the Capitol. If any one doubts this, let such doubter follow any appropriation bill, say that highway robbery called the River and Harbor Appropriation, or pensions, from the House to the Senate.

The Senate has long since survived its usefulness, if it ever had any; is to-day an object of contempt; and the sooner we have done with it the better off we shall be.

OUR DIPLOMATIC ABSURDITY.

There is a deep-felt apprehension indulged in by a class of our citizens over the grave diplomatic complication found in the dismissal of Lord Sackville West, and the refusal on the part of Her Gracious Majesty of England to refill the vacant post at Washington with another lord. Our national dignity is menaced so long as Mr. Phelps, envoy extraordinary and minister plenipotentiary residing at or near St. James's, is permitted to remain. As soon as Sackville "got the sack," to use a vulgar but expressive phrase, a reasonable time should have been given Her Gracious Majesty to fill the place; and failing, the Hon. Phelps should have been promptly recalled.

This would have been hard on the Hon. Phelps, but with our flag insulted and our eagle scoffed at by an empty legation at the national capital, the Hon. Phelps should have been prepared to wrap the star-spangled banner about his diplomatic body and die—if need be—to the fierce screams of the eagle. He might, after such a glorious demise, have been consigned to that corner of Westminster Abbey that Dean Stanley reserved for a distinguished American. It is true that we, in common with the American people, have designated Senator Ingalls as the one selected for that honor, and we are prepared to kill him any time, and forward his remains to the spot, provided the Westminster people are willing to receive them. But this is carrying us from our diplomatic mutton.

Under the circumstances, it is a comfort to know that all this apprehension of these sensitive citizens is quite uncalled for. This because we have no diplomatic service, no diplomatic agents, and therefore no complications to speak of.

The framers of our government, through some oversight, neglected to supply us with a diplomatic service. They saw, it is true, no use for such; nor was it possible to have a government as a trust, and give it such powers.

The diplomatic service pertains exclusively to a personal government. It originated in a sovereign delegating certain powers, attributes of the crown, to official agents whose duty was to reside near the courts of other sovereigns, keep a watchful eye upon their movements, report the same to their masters, and, from time to time, negotiate treaties of advantage to their own sovereigns. To give these diplomatic agents dignity and influence they were clothed with sufficient power to commit their sovereigns to their official acts. This is not possible with us. The sovereignty in our great republic is in the people; and it finds expression, in this direction, through the Executive and Senate. It cannot be delegated. When, therefore, a treaty is negotiated between us and any foreign power, it is necessary to send a special envoy to Washington to deal with the Executive. This has to be sanctioned by the Senate: and our absurd House of Lords has served notice on the world that the President himself cannot commit our government to any treaty.

Why, then, are our diplomatic agents, so called, sent abroad as ministers? Ministers resident and *chargés d'affaires* are merely clerks of the State Department—no more, no less—who are sent abroad to play at being diplomatists and get laughed at by the courts they approach.

The diplomatic corps of Europe, being an important part of their several governments, is made up of men possessed of fine intellect and great culture. To meet and associate with such, we send prominent politicians who, being such, are ignorant of their own government, its history and character, let alone those of Europe; and they are tolerated from a good-natured wish to be agreeable, where there is no profit in being otherwise. We do not suffer in this so much from our lack of good breeding—for it is difficult for a prominent American to be other than a gentleman—as we do from the ignorance of our official agents. Ex-President Grant, for example, in his famous trip round the world, posed at every court he approached as a royal personage. General Badeau ("Adjutant-in-waiting"), acting as grand master of ceremonies, arranged the household, and exacted from all comers the etiquette due a sovereign. If our good citizens could have known the ripple of laughter and ridicule that followed the result, in which our great man was spoken of as "the King of the Yankee Doodles," they would be more ashamed than proud of the performance.

It is this ignorance of ourselves and our political fabric that places us in a false position before the world. The clerk of the State Department sent abroad by our government as a diplomatic agent, instead of putting up at a hotel and opening an office in a common business way, sets up an establishment and "takes on airs." As most of the diplomatic business is done in a social way, he attempts to entertain on a salary entirely inadequate to such work. As a court costume is necessary—which means the sort of livery the diplomatic agent affects in the presence of his own sovereign—and as we, having no king, have no livery, our department clerk borrows one, either from some European court or the theatre, and dances attendance in that.

No man ever stood higher in the estimation of the world, on account of his genius, than James Russell Lowell. That esteem was considerably shaken, in the eyes of an admirer, when, calling on his minister at London, he found the poet's slender legs encased in tights, and his little body clad in a

gorgeous coat covered with gold buttons. Of course, Mr. Lowell could masquerade in any dress and remain the brilliant poet and patriot; but the significance of this livery, its shallow pretence and humble admission, made the admirer sick.

The clerk of our State Department sent abroad under this state of facts finds nothing to do. He is not interested in the business of the foreign diplomatic corps; and if he were, his government has no hand in the game, nor is the agent sufficiently instructed to take part even were he interested. He is tolerated by those with whom he comes in contact, and his strange associates repay their good-nature by the amusement they get out of the poor fellow.

There is no provision in our government for such an absurdity. The framers of our Constitution provided none; and if our recollection serves us right, it was not until 1856 that Congress recognized its existence by a law fixing the rank and compensation.

The thing ought to be abolished. When Andrew Jackson was first elected President, he went to Washington fully resolved to put an end to the absurd business. The politicians were too much for Old Hickory—and so they are to-day too much for common-sense, the letter and spirit of our government, and the dignity of our people. With a House of Lords at home and a so-called diplomatic corps abroad, we are an object of contempt from the rising of the sun till the setting thereof.

THE PASSING SHOW.

Sensationalism in art, as in literature, no doubt has its uses. It serves to present old truths in a new light, and by a startling grouping of ascertained facts helps to overcome the inertia of the average man and make him think. There is a value in novelty, provided it is rightly used, which is an important aid to the playwright or scenic artist. But where sensationalism is manifested by a distortion of facts, a falsification of history, or a violation of the principles of human nature, its effect is demoralizing both to the artist and the spectator, the author and the reader. Such an innovation has been attempted by Mr. Henry Irving and Miss Ellen Terry in their presentation of "Macbeth" at the Lyceum Theatre, London. It is excellent acting, faithful reproduction of historic costumes, exquisite scenery, but—it is not Shakspeare. Nor is it human nature.

Had it been only occasional alterations of the dramatist's lines, or even the unnecessary division of the play into six acts instead of five, or the cutting out of some of the characters, the genius of Irving and Terry might have been pardoned the perversion. But when they attempt to represent the ambitious, plotting, fiendish murderess whom Shakspeare has depicted, as a loving, devoted wife, who only seeks to further a little job of killing for the purpose of promoting her husband's interests, they meet with an infallible critic in the heart of every intelligent spectator. It is against human nature, and no amount of wonderful declamation or scenic magnificence can gloss it over. The purpose of art is to portray nature, to refine it if you will, but never to contradict. Lovers of the drama will be bitterly disappointed that Mr. Irving, after having devoted the best years of his life to the former, should at this late day, for the mere sake of innovation, resort to the latter.

Shakspeare, the great philosopher of human nature as well as the greatest dramatist of the centuries, knew full well that unlawful ambition which includes crime excludes the tender, womanly devotion of the true wife, and, far from picturing Lady Macbeth as an admirer of her husband, shows her as sneering at him for his want of courage:

"Yet do I fear thy nature;
Is too full o' the milk of human kindness."

"Hie thee hither,
That I may pour *my* spirits in thine ear."

And this:

"We fail.
But screw your courage to the sticking-place."

Irving and Terry's play is not human nature and is not Shakspeare; but, overlooking these points, their conception is well carried out. It is a wonderful spectacle. The resources of stage machinery have been taxed to their utmost, and the English press is one chorus of admiration at the marvellous landscapes, and at the quaint ornamentation and the low, groined arches of the old Saxon castle. It is a pity that these valuable adjuncts were not called unto the aid of a more correct interpretation of the great ideal.

And now we are likely to have an epidemic of Macbeths. Margaret Mather has tried it at Niblo's, and Mrs. Langtry has been incubating a new presentation, like Terry's, with a "few innovations." Irving's reputation as a stage manager is such that when his "Macbeth" comes to America everyone will want to see it.

But will it ever come to America? For now, forsooth, there are some members of the dramatic profession in this country who avow their intention of appealing to Congress to regulate American taste by law, and to exclude foreign actors under the contract-labor statute. This brilliant idea originated in the fertile brain of Mr. Louis Aldrich, and was nursed by the Actors' Order of Friendship. Into this Order Messrs. Booth and Barrett were initiated with darkened windows and mysterious rites, for the express purpose of fixing the stamp of their approval upon the scheme. A delegation appeared before Congressman Ford's Immigration Committee and begged that the proposed undemocratic exclusion law shall contain a provision against the landing of foreign pauper actors.

But these gentlemen lacked in logic what they possessed in assurance. They were willing to except "stars" from the operation of the law. Well, why not exclude "stars"? Do they not compete quite as much with American talent as the humbler aspirants of the stage? Even a "star" of the magnitude of Louis Aldrich himself would probably find his rays outshone in the presence of the brighter effulgence of an Irving or a Coquelin. It is the "stars" who compete most with native talent, and on this principle they should be the first excluded. Besides that, if they are excepted, who is to define a "star"? It would be amusing to see the Supreme Court of the United States gravely sitting in judgment on such a question. By all means, Mr. Aldrich, return at once to Washington and amend your petition. Let Mr. Ford include "stars" also in his bill. And then let every protectionist crank in the country have absolute exclusion of every possible competitor and of all kinds of goods that he wants to sell, and pay a bounty to the farmers for their crops, and then we shall all be able to raise ourselves by our bootstraps into a region of perfect happiness.

Of course there are two sides to every question, and, not wishing to do an injustice, we will give the one maintained by the petitioners. We have a law prohibiting the importation of labor contracted for abroad. This law the courts hold is applicable to cooks, coachmen, and ministers of the Gospel. Now why should an exception be made in behalf of a theatrical manager who contracts for a lot of actors, more or less cheap, in London, to play for him in the United States? Mr. Aldrich does not ask that the man, be he star or stock, who comes of his own motives shall be prohibited; but he does protest against the importation of the cheap histrionic labor which is brought here, precisely as other skilled or unskilled labor is got over, to compete with the same labor in the United States. In other words, it is not a question of taste, but one of bread.

Another fact is overlooked that has a decided bearing on the question. In all matters of art we are such a set of snobs that we cannot recognize any merit in our artists until after they have been indorsed by English critics and English audiences. If any law can be enacted to correct this miserable condition, let us have it at an early day. We know that the greatest actress known to the English-speaking world—our Clara Morris—has failed to secure the fame and fortune to which her genius entitled her simply because

she neglected to secure English approbation—which would have been heartily given her had she ever appeared in London.

Nor is it true that English stock is preferred to the American product because of its superior excellence. Mr. Daly has shown the absurdity of this claim by taking his admirable company to London and carrying off the honors. In the face of this and every other fact, we are told that the English comedian doing the society drama is superior to ours because of his superior social position. That is something to be relegated to the things which amuse. There is an adaptability about the American that makes him at home in all conditions. It is possible for an American actor to wear a dress suit with an ease that is rivalled only by the French. What is the good of calling on an Englishman to do on the stage what no Englishman can accomplish in private life? If there is a John Bull on earth who can wear a dress suit with ease and elegance, he has not yet been discovered.

There now, we have given both sides.

Mr. Edwin Booth offered his brother-actors a much better kind of protection when, on New Year's Eve, he presented to them "The Players'" club-house, with its fine library and its treasures of dramatic art. After all, education and self-development are the only legitimate means of attaining success; and he who offers his fellow-beings facilities for improvement and self-help is a far greater benefactor to them than he who endeavors to apply restrictive methods. Such an institution has been Mr. Booth's dream for years. It is a spacious house at No. 16 Gramercy Place, adjoining the residence of the late Samuel J. Tilden. Mr. Booth purchased it for \$75,000, and spent \$125,000 in alterations. The library is probably the finest collection of dramatic literature in the world. Twelve hundred volumes were presented by Mr. Booth, and two thousand by Lawrence Barrett, besides a large number of rare works given by Augustin Daly, T. B. Aldrich, Laurence Hutton, and others. It was a touching scene when, a few moments before the old year died, Mr. Booth placed in the hands of Augustin Daly for the Players' Club the title-deeds to this magnificent property, and blushing like a girl before the assembled actors, listened awkwardly to the simple words which Mr. Daly spoke in reply. Then just after the midnight bells had rung he turned and lit the Yule log, and the players began the enjoyment of their new home.

A few days afterwards Mr. Booth closed his very successful metropolitan engagement at the Fifth Avenue Theatre with "The Fool's Revenge," Lawrence Barrett appearing in "Yorick's Love," and both the tragedians started on a Southern tour.

Miss Mary Anderson appears in a late issue of a sensational publication as a severe censor of society ladies addicted to attempts upon the stage. We say Mary Anderson; for her name appears at the end of the article, and as she is a woman, we will not venture to say that the property claimed is not her own. Some rude critics have charged that Mary did not make this up out of her own fair head; and throughout the profession a state of mind exists that is not complimentary to the would-be authoress.

The queerest part of the business, however, is, that such strictures should come from Miss Anderson. She raided the stage as a society woman, and struck at once for the honors. There was, if we remember rightly, no long, weary preparation and laborious training for the footlights. She went from the parlor to the greenroom, and she went in with a flourish. She was of Kentucky birth, and Henry Watterson, whose bright intellect is only surpassed by his good heart, not only indorsed the ambitious society girl, but made up his mind to put Mary down the American throat whether the people would or not. Mary was not unpalatable to the American taste, but Watterson is her father—that is, dramatically speaking.

Then Stepfather Griffin came in. Stepfather Griffin was born a theatrical advance and advertising agent. He did not know this. If we were to dwell on what Stepfather Griffin does not know, we should fill all the space of this magazine for the year.

P. Griffin "caught on" to the provincial condition of our artistic, literary, and dramatic life, which makes the approval of England necessary to American success. So Poppy G. transported his American star to London. He found the Prince of Wales necessary; and Labouchere, M. P. and proprietor of *Truth*, taught the paternal agent how to work the oracle. The Prince of Wales is a corpulent, good-natured son of Her Gracious Majesty who rules all the earth save Ireland. He is ever open to the advances and blandishments of an American woman, or African woman, or any sort of woman, provided she is lovely; and being approached, he expressed his

desire to know the star of Columbia. "Now," said Labouchere, "having got that far, the thing to startle England and capture Americans is for Mary to decline an introduction on high moral and republican grounds." This was done, and Great Britain was startled and the Yankee Doodles were captured. She returned to her native land with an English troupe, and made Yankee Doodle go wild.

Now Mary is absolutely the worst actress ever sent sweeping from the drawing-room to the footlights. Possessed of a tall, angular figure, and blessed with a sonorous and in some respects pliable voice, she has the fatal gift of imitation. No actor can win the highest honors of his exalted profession who is a mimic. The actor capable of giving expression to the thought of his author really assists that author in the creation of a character. He or she is the creator. Now the mimic is one who reproduces second-hand the work of others. We are cursed with a traditionary assortment of characters that have come down to us from the Kembles; and any one capable of filling what Shakspeare or Bacon or somebody called the rôle of "a poor player who struts and frets his hour upon the stage, and then is heard no more" can win applause through mimicry, but never be great. We first saw Mary as Meg Merrilies, and the reproduction of Cushman was something marvellous. And so we have had it ever since. As Fechter said of Booth's Hamlet, that "he played everybody's Hamlet but his own," so it may be said of Miss Anderson, that she reproduces in an acceptable way the wearisome line of old characters that have come to be stage properties.

Mrs. James Brown Potter, who has been playing to New York and Brooklyn audiences in Tom Taylor's heavy drama, "'Tiswixt Axe and Crown," shows considerable improvement over her acting of one year ago, but she chose a very inappropriate piece for her reappearance. Mrs. Potter reads her lines very well, is a very beautiful woman, and possesses that indispensable adjunct of the modern actress, a very handsome wardrobe. But she is not fitted for the part of Lady Elizabeth, who in her youthful prison exhibits the same wilful capriciousness and headstrong pride that she afterwards showed on England's throne. Mr. Kyrle Bellew as Edward Courtenay, the romantic lover of Elizabeth, played his rôle quite well. Mrs. Potter is naturally better suited to fragile, feminine, girlish parts than she is to the heroic, and there is plenty of room for improvement; but she is painstaking, persistent, and has time before her.

Edward Harrigan's drama of "The Lorgaire," the only new play of the month, is a passable sketch of Irish life. It is much more ingeniously devised than any of his previous efforts in this line, and since it was first put upon the stage has been much improved, many offensive lines being eliminated.

Adolph Müller's new comic opera, "The King's Fool," was first witnessed by an American audience in Chicago at the Columbia Theatre on Christmas Eve. Its scene is laid at the court of Pampeluna, and the plot is the development of a conspiracy to secure the succession to the throne, the rightful heir being brought up as a girl, the Salic law forbidding the accession of females. The king's fool discovers the imposition, the young prince regains his throne, and the conspirators are punished.

A very enjoyable selection of pieces has been put on the boards at Daly's Theatre, including "The Lottery of Love," "Needles and Pins," "She Would and She Wouldn't," and "Rehearsing a Tragedy." Ada Rehan scored her usual successes. Daly's Theatre is one where the spectator is always sure of a pleasant evening's entertainment. At the Standard "Miss Esmeralda" replaced "Monte Cristo, Jr." The new play was in every way brighter and wittier, and offered more opportunities to the talents of Nellie Farren and the admirable Gaiety Company. Margaret Mather in her repertoire produced at Niblo's Garden shows steady improvement. She makes a lovely Juliet, but in the difficult part of Peg Woffington she is a failure. The "Yeomen of the Guard" is withdrawn from the Casino, not from any lack of popular favor, but because Manager Aronson has been obliged by a contract to restore "Nadja" to the stage. Herr Junkermann has been giving several very creditable presentations at the new Amberg Theatre, to the delight of our German citizens.

Most admirable, yet most difficult and incomplete, was the first production in America of Wagner's "Rheingold" at the Metropolitan Opera House early in January. The stage machinery was very complicated, and the illusions were perfect. As the curtain rose the depths of the Rhine waters appeared to fill the scene, the sun's struggling rays caused the precious gold to gleam; and the three Rhine maidens appointed by Wotan to watch it were seen gracefully swimming about the treasure. From this novel opening to the close, when the gods cross the rainbow bridge that leads to Walhalla, the

scenery was a marvel of spectacular effect, but it did not rise to the excellence of the displays at the Bayreuth festivals. The orchestra was in best form, and the singing was the best that has been presented this season—much better, for instance, than in the previous performance of "Siegfried," where Herr Alvary's voice showed signs of wear, and Emil Fischer actually became hoarse before the close.

"Faust," "The Huguenots," "L'Africaine," and "Fidelio" were among the musical triumphs of the Metropolitan. Handel's "Messiah" was beautifully given at the same theatre by the Oratorio Society, with the Symphony Society's orchestra, under the direction of Walter Damrosch; while concerts by the Boston Symphony orchestra, by Theodore Thomas, and by Anton Seidl complete the list of delightful musical entertainments of the season.

REVIEWS.

THE CLOVEN HOOF UNDER PETTICOATS: *The Quick or the Dead*; *Eros*; *Miss Middleton's Lovers*.—The characteristic American novel of the day might be described as an episode clothed in epigram. It is commonly little more than an incident, slight as to plot, startling in contrasts of light and shade, and too often avowedly immoral in tone—a fragment of canvas, with ragged edges, cut at random from a picture by Gérôme, with figures questionably suggestive, and volcanic in color. It affects a myopic realism in details, not seldom of the sort which, with non-committal suavity, we have agreed to call "improper." It is nothing if not erotic. It deals with humanity from the anatomist's standpoint, and describes, with insistence and reiteration, the physical attributes of its characters, leaving the spiritual to be inferred from their somewhat indefinite actions, and that sort of mental sauntering which is termed analysis, for want of a better name. It sets its women before you in the language of the slave-market. It leaves no doubt in your mind that they are female—female to a fault. "You could not help feeling in her presence that she was a woman; the atmosphere was redolent with her. You never so much as thought of her as a human being, a sentient, reasoning personage like yourself. She was born to be a *woman* solely, and she fulfilled her destiny." "She was sensuous and voluptuous. You received from her a powerful impression of sex." "She was a naked goddess—a pagan goddess, and there was no help for it." Realistic this may indeed be, but it is hardly chivalrous, or consistent with that respect which well-bred and sound-hearted men feel, or, for the convenience of social intercourse, affect to feel toward that half of human nature to which the mothers, sisters, and wives of the race belong. A woman must be philosophical indeed who can accept as a flattering testimony to her personal graces such a phrase as "She is the most appetizing thing I have seen." To be regarded in the light of a veal cutlet may possess the charm of gastronomic reminiscence, but as a metaphor it is scarcely poetic.

In reading this class of fiction one is constrained to wonder what these ingenious weavers of verbal tapestries would have done for plot and

incident—such as they are—had the Seventh Commandment been eliminated from the Tables of the Law. It is a never-failing well-spring, a Fortunatus' pocket, a theme more rich in variations than the Carnival of Venice; and it is amazing as well as instructive to the uninitiated to discover in how many original and striking ways a wife may be unfaithful to her husband, and what startling and dramatic situations may be evolved out of the indiscretions of a too confiding society-girl. But even the unmentionable has limits: the glacial smile of the nimblest ballet-dancer may lose somewhat of its fascination in the course of time; and in the overheated atmosphere of the "passionate" novel may lurk the faintest intimations of a yawn.

The fact is, this multiform, many-worded element in current fiction is not true passion at all. It is a theatrical presentation, often well set and brilliantly costumed; but too frequently you see the paint and hear the prompter calling forgotten cues from the wings. It is keen, witty, cynical; but it is not real. It is daring, flippantly defiant, paroxysmal, and redundant in explosive adjectives; but it is not true to nature. It is as different from the genuine, living human emotion as the impetuous, fervid, and unpremeditated love-making of a youth is from the cold-blooded, carefully-rounded, and artificial gallantries of an aged suitor. Real passion is always poetic; there is a delicacy in its very vehemence, and if reprehensible from the moralist's point of view, it is never contemptible. Simulated passion, on the other hand, is always coarse and undignified—even when, as in the case with many of these novels, expressed in graceful and smoothly-flowing sentences; often absurd and flavored with covert cynicism, as if it despised itself and its object. Actual passion is almost entirely wanting in American fiction. The purer school of James and Howells makes no pretence of it,—ignoring its existence in human nature, as if men and women were sentient shapes of ice,—and wisely, too; for though the lack of it in romance is a fatal defect, it is better than a poor imitation. Nathaniel Hawthorne, that isolated giant, drew from the mysterious depths of his own great soul almost the only example of true passion in the literature of this country. "The Scarlet Letter" towers aloft like the Olympian Jove among terra-cotta statuettes, perhaps the noblest work of fiction ever written. Here is passion, almost awful in its intensity; suppressed, confined; struggling like a chained Titan, and at length breaking loose and overwhelming itself beneath its own

agony and despair—passion, beautiful with youth and hope, star-eyed, crowned with amaranth and clad in blood-red garments; led onward by his dark brothers, Sin and Death, in swift tumultuous flight, toward his unknown goal in the land of eternal shadows.

Compared with this lordly poem, the erotic novel of the day, with its prurient platitudes, is as a satyr to Hyperion. Putting aside all question of the moral law in the relation of the sexes, is there not something foolishly undignified in these gasping, gurgling adjectives? "Soul-scorching, flesh-melting flame of his eyes." "Flammeous breath, sweeping her cheek, stirred her nature with a fierce, hungerous yearning." "Ignescent passion." "Gloating upon her hungerly." "Gives her whole body a comprehensive voluptuous twist." "All entangled in her sweet sinuous embrace." "Languorously inviting."—But we pause upon the verge of the unquotable, daunted, stifled, in this mephitic atmosphere.

This is called Realism!—this affected posturing, at which good-taste veils the face to hide the smile of contempt or the blush of common decency—these ale-house stories transplanted to the drawing-room! Is there—*is there* nothing in that love, whose very name lingers upon the lips like a song—that love which has inspired all poetry, all romance from the beginning of time; which has thrown down embattled walls, taken strong cities, changed the boundaries of empires, marshalled armed thousands upon memorable fields of blood; which in every age has nerved men to great deeds and rewarded them for great sacrifices; the sunrise hope of youth, the evening meditation of the old, the spirit of home, the tender light which gleams about the hearth-stone, the glory of the world;—is there nothing, then, in this but the blind impulse which draws animal to animal—which attracts the groping inhabitants of the mire and the shapeless swimming lumps of the sea? If it be so, then thrice sacred is that art which has power to throw a mist of glamour about this hideous reality, and make it seem beautiful to our eyes! Far better the divine lie than such truth! But it is *not* true: for real love, even though it pass the pale of the law, and real passion, though it tempt to sin, have about them always an inexpugnable dignity; and if condemned, it is not with laughter or disgust.

The erotic in American fiction is a recent and exotic growth, not native to the soil. It is therefore unhealthy and unwholesome. It is out of place in this

cold northern air. In its own climate it is a gaudy flower; in this temperate zone it is a poisonous, spotted lily, rank of smell and blistering to the touch. The licentiousness of Théophile Gautier is elevated by the power of his transcendent genius to the plane of true art. In America it sinks into a denizen of the gutter.

A remarkable feature of this noxious development is the prominent part taken in it by women. It is somewhat startling to find upon the title-page of a work whose cold, deliberate immorality and cynical disregard of all social decency have set the teeth on edge, the name of a woman as the author. We are so accustomed to associate modesty of demeanor, delicacy of thought and word, and purity of life with woman, that a certain set of adjectives, expressive of virtue and morality, have come to include the idea of femininity in their signification. It is certainly surprising, if not repellent, to find women the most industrious laborers in the work of tearing down the structure of honor and respect for their sex, which has so long been regarded as the basis of social existence. If this breaking of the holy images be but another manifestation of the revolt of women against the too narrow limits of ancient prejudice, it is only additional proof that misguided revolution easily becomes mere anarchy. While the dispensation which would confine women to the nursery and kitchen, and exclude them from broader fields of action, is happily a dead letter, it is quite certain that no condition of civilization, however liberal, will ever justify loose principles or lax manners, or what is almost as reprehensible and much more despicable, the cynicism which sneers at virtue while it prudently keeps its own skirts unsoiled. But it is probable that the women who write this kind of fiction are misled by vanity, rather than actuated by evil impulses. They imagine that in thus throwing off all restraint they are giving evidence of originality of thought and force of character; whereas they are, in fact, courting unworthy suspicion and winning only that sort of applause which is thinly veiled contempt.

In America social licentiousness is not inherent as a national characteristic, nor inherited from a profligate ancestry. Whatever his practice may be, the ordinary American is theoretically moral. He recognizes moral turpitude, at least to the extent of dreading exposure of his own backslidings. If he break the law, he nevertheless insists upon the sanctity of the law. In a word, the social atmosphere is pure and wholesome, though perhaps a little chilly;

and if anyone happens to be the proprietor of a nuisance, he is very careful to keep it well concealed from his neighbors, and neutralize the evil odor with lavish sprinklings of perfumery.

With us Licentiousness is not a gayly-clad reveller, a familiar figure at feasts and pleasure parties, taking his share in the festivities, dancing, laughing, and frisking as bravely as any. He is not a jovial Bohemian, of too free life perhaps, but not half a bad fellow—a careless, reckless, roaring blade. On the contrary, he is a dark, shadowy, saturnine personage: a loiterer in lonely places, a lover of the night, skulking around corners and hiding his face in a ready mask. He dreads the law, for he knows that if detected his companions of yesterday will bear witness against him to-day, and lend their aid to set him in the stocks, to be jeered at by all the world. He is thin-blooded and pale; he shudders at the sound of his own footsteps, and shrinks from his own shadow. He knows no songs in praise of Gillian and the wine-cup, and if he did he would never dare sing them. He dresses in the seedy remains of a once respectable suit; he is an outcast, a beggar, a vagabond, down at the heels and owned by nobody. Altogether, he is as miserable and forlorn a wretch as one would care to see, and his *alter ego* is hypocrisy.

For this reason the licentious in American literature is and must be cold, artificial, and repugnant. The erotic becomes mere bald immorality, without grace, gayety, color, or warmth to lend it dignity or render it tolerable. In the opulent, fervid period of the Renaissance, art was born of passion and inspired by it to greatness. The erotic was a legitimate element of all works of the imagination, because it was a part of the social life of the day, and because, being genuine, it could be made beautiful. When, after the Revolution in England and the spread of Calvinism on the Continent, the minds and manners of men were brought under closer restraint, licentiousness in art began to be no longer natural and spontaneous, and therefore no longer legitimate, until in the last century it degenerated into simple indecency. When the erotic ceased to be quite as much a matter of course, in fiction or poetry, as hatred, jealousy, or revenge, and the reader learned to pass it over with a frown or pick it out with a relish, according to his natural disgust of or morbid craving for the impure, it became a blemish. It was no longer real, but an indecent imitation. Compare "Romeo and Juliet," that divine poem of passion, with the abominations of Waters and

Rochester, popular in their day, but now happily forgotten, or even Wycherly, not yet quite forgotten, and mark how wide the difference between the true and the false, the natural and the unnatural.

To-day, in America at least, the physical is subordinate to the spiritual. The mind is master, and the body in its bondage, if not enfeebled, has at least become trained to passive obedience. All impulses are submitted to the severe scrutiny of reason. Categories of right and wrong, or perhaps the politic and the impolitic, are strictly adhered to. Caution is largely in the ascendant. The world's opinion is an ever-present restraining element. All these are results, or at any rate concomitants of a loftier civilization. A society guided by moral and intellectual forces is unquestionably upon higher ground than one dominated by the physical. The world is, moreover, a more comfortable place to live in than it used to be when, on account of the color of the feather in one's hat, one must unsheathe and go at it, hammer and tongs, to save one's skin.

Passion does still exist in the human heart, but it is restrained and modified by the necessities and conditions of the social life of the day. To be a fit element of fiction it must be depicted in its nineteenth-century guise—in other words, decently. To be a truthful picture it can be depicted in no other way. To exhibit it posturing, writhing, and gasping in mere hysteria is to lower it beneath the standard of wholesome and worthy art. License without love, and immorality without passion, are as unpardonable in a novel as they are in human nature.

Political Oratory of Emery A. Storrs, by Isaac E. Adams (Belford, Clarke & Co.).—The compiler of Mr. Storrs's political speeches begins his introductory chapter with some questionable generalizations which are belittling and somewhat unjust to the large class of true orators to which his hero belongs. He says: "Few examples of political oratory have been embalmed in literature. Men, too, remembered for oratorical power are easily reckoned, and tower conspicuously along the shores of time. There was once a Demosthenes, once a Cicero, once a Burke. The time will come when, looking back upon the centuries of American history, it will be said there was, also, once a Webster and once a Lincoln."

We must be permitted to observe that the line cannot be clearly drawn between political and other oratory. In a broad sense, all the great orators known to history have been political orators, because they gained their fame chiefly in discussing the great and absorbing public questions of their day.

To these belongs Emery A. Storrs. Let a few extracts from this volume of speeches suffice to show the style of his oratory. At Chicago, in the darkest hours of our civil war, he said: "I have no doubt but that this, the most wicked rebellion that ever blackened the annals of history, will be ground to powder. I have no doubt but that our national integrity will be preserved. I have no doubt but that the union of these States will be restored, and that the nation will emerge from the fiery trial through which it has passed, brighter and better and stronger than it has ever been before. It would be impossible, however, that a conflict mighty as that from which we are now, I trust, emerging should not leave its deep and permanent impress upon our future national character. It will give tone to our politics, our literature, and our feelings as a people, for ages to come."

At Cleveland, in the campaign of 1880, he said: "Have you seen any trouble with the pillars of the government? The trouble was not with the pillars—they did not rock; the trouble was with the gentlemen who were looking at the pillars of the government. They were like the gentleman who had been attending a lecture on astronomy. Going home loaded with a great deal of Democratic logic, with a step weary and uncertain, with the earth revolving a great many times upon its axis, he affectionately clasped a lamp-post and said, 'Old Galileo was right about it: the world does move.'"

The logic of Mr. Storrs's speeches on war topics, which were immensely popular, is embraced in the single sentence: "I think there can be nothing more suicidal than to intrust into the hands of these men, who sought the destruction of our national life, the direction of our national interests."

Hence the convenient 300-page volume under review will be valuable to political speakers and writers who want their party zeal warmed up by the earnest appeals of an impassioned, conscientious, and clear-minded orator. The diction of Mr. Storrs is admirable, his language is almost always felicitous, and in his logic there is a happy blending of grace and force. If his range was not wide, he was always able to concentrate learning and

ability enough on any given occasion to show a masterful oratorical power over immense masses of men.



A STORM ASHORE. [\[5\]](#)

BY JAMES H. CONNELLY.

I.

WHERE THE DEED WAS DONE.

Three quarters of a century ago, when Sag Harbor was an important whaling port, and before railroads were even dreamed of on that remote part of Long Island, there were dotted along the eastern shore only a few quaint little villages, already old, with a small population scattered in their vicinity, consisting almost entirely of a hardy race, who, though professedly cultivators of the soil, in reality drew most of their subsistence from arduous and often perilous toil upon the sea. Among the curiously inscribed tombstones in the graveyards, where even then six generations were lying, were not at all unfrequent those that bore the legend "killed by a whale." Of the younger men in the community, there were few who did not aspire to go abroad as whalers, and their elders, though settled agriculturists nominally, or even petty tradesmen, had generally "been a-whaling," loved to spin yarns about their cruises, and were still more than semi-nautical in speech, manners, and industries. They naturally spoke of "the bow" of a horse, or his "port-quarter," as occasion might require; belonged to shore whaling companies; fished for the New York market to a limited extent, and perhaps did some smuggling; as shore-living people, in those days, generally seemed to think they had an inherent right to. In their little "sitting-rooms" were many curious and interesting things, brought from far distant lands, such as broad branches of fan coral, stuffed birds of brilliant plumage, strange shells and sperm whales' teeth adorned with queer rude pictures scratched upon them by sailors whose thoughts of loved ones at home had prompted them to such artistic endeavor.

Between the villages were long reaches of woodland, or perhaps it would be more correct to say thicket--broken here and there, where the sandy soil

seemed to give most promise, by tilled fields. Fierce gales, through the long hard winter months, dealt cruelly with the scrubby cedars and knotty little oaks in those woods, gnarling their boughs, twisting their trunks, and stunting their growth, so that not all the genial breath of spring, nor the ardent summer's sun could quite repair the damage wrought them in the season of ice and storm. But the hardy trees stood close together, as if seeking support and consolation from each other in their hours of trial, when they creaked and ground complaint to one another; so close that their interlaced foliage kept always damp the leaf-strewn ground beneath, where the fragrant trailing arbutus bloomed in earliest spring, and the tangled whortleberry bushes later bore their clusters of bluish-purple fruit. Here and there the dwarfed forest sloped gently down to broad expanses of salt meadow, where snipe and plover found their favorite feeding grounds among the rank rushes and long grass, or the soft marshy slime, except when the full moon tides came rushing through the little inlets between the white round sand dunes on the beach and, whelming the lowland, snatched brown-leaf trophies from the very edges of the wood. On the knolls between these meadows were favorite places for the location of the homes of the earlier settlers, among whom were the Van Deusts.

The Van Deust homestead was one of the oldest dwellings on that portion of the island, and those who at this time inhabited it were the direct descendants of other Van Deusts, whose remote existence and remarkable longevity were alike attested by the quaintly graven tombstones in the ancient graveyard of the village, a mile away.

It was a rambling one-story house, built of small logs covered with boards now warped and rusty from age, but both roomy and comfortable as well as picturesque. Those by whom it was erected loved better the sea than the land, for they had not only sought out this, the most commanding site they could obtain for its location, but had turned its back upon the forest and the lane, and reared its broad porch upon the side facing the ocean. Here, in the ample shade, the two old bachelor brothers, its present occupants, inheriting as well the feeling as the property of their ancestors, loved to linger. The ceaseless roar of the waves was in their ears a wild tumultuous music, and their eyes were never weary of the ever-changing beauty and glory of the world of billows, blushing with the dawn, laughing with the noon, and frowning beneath storm and night. Three broad and rugged elm trees shaded

the porch, and one gable of the house was rasped by the boughs of the nearest tree of a thickly grown and badly cared for little orchard. Bats and swallows flitted undisturbed in the summer evenings to and from the low loft of the old homestead, through its various chinks and refts; native song-birds build their nests and reared their young under the eaves, and in the swinging branches of the venerable elms; bees buzzed among the thick honeysuckle, and clematis vines that twined about the pillar of the porch, and threw their long sprays in flowery festoons between; and when the busy hum of those industrious little toilers ceased at nightfall, the crickets' cheery chirp, from among the rough stones of the old-fashioned fireplace within, took up the refrain of insect melody. Neither insect, bird, nor beast feared the two kindly old men who inhabited that home. One of the brothers loved all living things, and was at peace with all, and the other was like unto him, with the sole exception that he liked not women, nor was willing to be at peace with them. Yet he had never been married!

Peter, the elder by a couple of years, was the woman hater, and to such an extent did he carry his antipathy toward the sex, that he would tolerate no other female servant about the house than old black Betsy, who was the daughter of a couple of slaves his grandfather had owned, and who thoroughly considered herself one of the family, as indeed her indulgent masters regarded her. The three old people occupied the house alone. Brother Jacob once hinted to Peter that perhaps it might be as well to get a young woman to assist old Betsy in her work, and his so doing brought on what was more like a quarrel between him and Peter than anything that had disturbed the monotony of their uneventful lives up to that time. A compromise was finally effected, by virtue of which a neighbor was engaged to come over for a couple of hours daily to do such chores about the house as the brothers felt beyond their strength, and to bring his wife along on Tuesdays to do the week's washing and scrubbing. But on Tuesdays Peter always went a-fishing, regardless of the weather, and was gone all day, so avoiding sight of the neighbor's wife. Whatever the secret cause for his bitter and contemptuous aversion to women may have been, he kept it to himself. That they were fair to look upon, he denied not. "But," said he, "they are wrecker lights, and the truer and better a man is, the brighter they shine to lure him to the breakers. And look at yourself, Jacob," he would add, when his brother ventured to mildly expostulate against the

vigor of his denunciations of the sex; whereupon Jacob would turn away with a sigh, and the discussion would be at an end.

Back of the house a narrow lane, bordered by a neglected garden and a cornfield beyond, led out to the distant highway. The Van Deust brothers were not poor, as the humble style of their home might seem to indicate; indeed they had the reputation, in all the country around, of being wealthy, and were, at least, well off. The neglect and indifference of age in its owners was the sole cause that the surroundings of the old homestead, which might easily have been made charming, presented such a picture of disorder and decay.

Up the little lane, at a very early hour one bright summer morning, two men might have been seen, driving in a light gig, approaching the Van Deust mansion. One of them was a stout, ruddy-faced gentleman, of fifty, or thereabouts, known to everybody in the county as Squire Bodley. His companion, who held the reins, was a handsome young fellow of twenty-four or twenty-five years, rustic in personal appearance and garb, with a good frank open countenance that bore a pleasing expression of intelligence and good nature.

"Of course it's only a form, my going to be your security," said the older man, as they jogged along, "for the Van Deusts know you as well as I do, and knew your father, Dave Pawlett, before you, and a good man he was. But still, Lem, I don't know any young fellow in all the country round about that I'd take more pleasure in serving, even in a matter of form, than you."

"Thank you, sir," replied the young man warmly, with a grateful flush upon his sun-burnt cheeks. "It's very kind of you, I'm sure, and I can't tell you how much I feel it so. You know I want the lease of that lower farm, but you don't know how almightily much I want it; and nobody does but me and—one other person, perhaps."

"Aha!" responded the Squire, with a chuckle, "I can make a guess about who the other person is. And some day you and that other person will be coming to me for a little business in my line, I reckon,—a sort of mutual life lease, eh?"

"Well, maybe so, Squire. I hope so," answered Lem, confusedly, and with a little deeper flush, "But here we are at the gate. Wait a moment, while I jibe the bow wheels and make the horse fast."

As he spoke, he jumped lightly out of the vehicle, turned the horse a little to one side, so as to make the descent of his companion more convenient, and, after hitching the reins to a fence-post, accompanied the Squire to the door of the house. There was no sound, or sign, as yet, of any of the inmates of the old homestead being astir.

"Well, they must be late risers here," soliloquized the Squire, as Lem rapped and called at the door.

At the end of a few minutes, a voice answered indistinctly from within: "Who's there? What d'ye want?" And almost immediately after, the shutters on the window of a little extension of the house, at the end farthest from the orchard, were pushed open, and the head of an aged black woman appeared with the echoing query, "Who dah? Wha' dy'e wan'?"

"It's me—Squire Bodley," responded that gentleman, answering the first inquirer.

Presently the door opened and Peter Van Deust appeared in it; a weazened, thin little man, with a fringe of gray hair surrounding a big white bald place on the top of his head, with a well-formed nose and eyes still bright enough to suggest that he had been a good-looking young fellow in his day; with lips that quivered, and long lean fingers that trembled with the weakness of old age; but, withal, a pleasant smile and a cheery ring, even yet, in his cracked old voice.

"Why, Squire!" he exclaimed, as he threw open the door, "I'm real glad to see you. And Lem! You, too? Well, this is a pleasant surprise-party for us early in the morning!"

"It's not so very early, Peter," answered the Squire. "It is almost seven o'clock."

"Is that so? Well, I declare! I wonder why Jacob isn't up. He's mostly an early riser, and as he's the boy amongst us, why we old folks—Betsy and me—rely on him to wake us up in the mornings. Old people, you know, get

back to being like babies again for wanting their good sleep. But Jacob has overslept himself this morning, sure. I'll soon roust him out, though."

As he spoke he went to a closed door at one side of the central sitting-room, which was flanked by the separate apartments of the brothers, and pounding upon it with his bony knuckles, called:

"Come, Jacob, bounce out, boy! You're late! It's breakfast time, and we've got visitors. Get up!"

There was no answering sound from within. He waited a moment, then knocked again, shouting: "Hello, Jacob! Jake! I say, get up! What' the matter with you?"

Still there was no response. The three men waiting, held their breath to listen, and a vague sense of uneasiness crept over them. The songs of the blue-birds, and the chirp of the martens; the humming of the bees; the stamping of the horse hitched to the gig, and the clatter old Betsy made in opening her door, were all sharply distinct in the quiet summer morning air; but from the closed room there was no sound whatever. Peter tried the door, but it did not yield.

"He's locked his door!" exclaimed the old man, with an intonation of surprise in his voice.

"Maybe something has happened to him," suggested Lem.

"What could happen to him? He was all right last night; never better in his life. And he's younger than me. But it's queer he should have locked his door. He don't mostly." He continued rapping and shouting "Jacob, wake up!" in a more and more anxious tone.

"The key isn't in the keyhole, I guess," he muttered half to himself, fumbling at the lock with a bit of stick he picked up from the floor, "but," stooping down and trying to peer through, "I can't see anything, because it's all dark inside."

"Haven't you some other key about the house that will fit the lock?" asked the Squire.

"Yes. Mine does, I guess. But I didn't think of it at first. I'll try it."

It fitted: the bolt was thrown back, and the door pushed open. The sunshine darted in and fell, broad and clear, upon a still and ghastly thing that laid in the middle of the floor—the corpse of an old man, surrounded by a pool of blood.

Peter gave a wild cry of horror, and fell back senseless into the arms of Lem Pawlett, who was close behind him. They laid him on the old hair-cloth sofa in the sitting-room, called Betsy to attend to him, and then passed into the chamber he had opened.

Murder had been done. Jacob Van Deust's skull had been beaten in by some heavy instrument. One terrible crushing blow had mashed in his left temple, and let out his little weak old life; but, as if for very lust of killing the assassin had struck again and again, and the skull was fractured in several places. The old man, it appeared, had risen from his bed to meet his murderer, and had been struck down before he could utter a cry of alarm. The window curtains were down, so that the room was as yet only lighted from the door; but when those in front were opened, and a flood of sunlight poured in, there were no evidences apparent that there had been any struggle between the slayer and his victim, nor were there at once visible any indications that robbery, the only cause readily conceivable for the brutal murder of such an inoffensive old man, had been the purpose instigating the crime. The contents of the bureau drawers were much tumbled and disordered, but it was presumable that they were so usually, through the careless habits of the occupant of the apartment. There were no marks of blood upon anything they contained, but it was evident that the murderer had made some attempt at least to wipe his crimsoned hands upon the old man's shirt after killing him, and that was probably before he searched the bureau, if indeed he had troubled himself to ransack it at all. On one pillow of the bed they found the mark of a bloody hand. Perhaps the assassin was in such haste for plunder that he groped where the old man's head had lain before thinking of his bloody hand. Beyond that nothing appeared to them to show that robbery had been done.

But when Peter Van Deust had sufficiently recovered to be able to speak coherently, he said that his brother habitually kept, somewhere in his room, a wallet containing something over three thousand dollars, and a bag of coin; how much he did not know. These were nowhere to be found.

Lem Pawlett was hastily dispatched by the Squire, soon after the discovery of the crime, to summon some near neighbors; and as he drove rapidly along the road, shouting to every person he saw—"Jacob Van Deust has been murdered!"—it was but a very little while before a dozen or more men were assembled at the scene of the crime. They were all innocent, simple-minded folks, who had never seen a murdered man before, had even been a little skeptical that such an awful thing as murder was ever really done, except in the big cities where extreme wickedness was naturally to be expected, and were actually stunned by the shock of finding themselves in the presence of the evidences of the perpetration of such a deed. From them, of course, no aid in finding a clue to the perpetrator of the crime, or divining its real motive, could have been expected. Yet every man of them was wise in his own conceit, and among them were furtively exchanged whispers of such hideous significance that the Squire, when they reached his ears, felt himself compelled to take notice of and reply to them.

"The old men have been all the time quarrelling for two months past," said one to another.

"Yes," replied he who was addressed. "I've heard 'em myself, cussing each other over the fortune that was left them."

"Sam Folsom," added a third, "told me that he'd heard that Peter had threatened to knock Jake's head off more than once."

"Oh! I've heard that myself," chimed in another. "And I did hear that they'd had a regular fight and Jake got the best of it."

"It's awful that two old men like them, on the edge of the grave, as you may say, and brothers at that, should quarrel about money."

"And one for to go and kill the other."

At this point the Squire, who had overheard much of the preceding conversation, interposed: "How do you know," he demanded abruptly, turning on the last speaker, "who killed him?"

"Well, I dunno exactly, of course," whined the fellow, hesitatingly, "but it looks mighty like it."

"Ah! And that pimpled nose of yours, Rufe Stevens, looks mightily like you were a hard drinker; but you are ready to take your Bible oath it's nothing but bad humors in your blood."

There were a few suppressed chuckles at the Squire's retort from those in the vicinity—for men will laugh even at the smallest things, and in the very presence of the King of Terrors—and Rufe moved away, muttering indistinctly. But the Squire's interference and well-intended reproof had only a momentary effect in diverting the attention of the neighbors from the evil bent of suspicion their minds had taken; and they continued exchanging, and possibly augmenting, the rumors they had heard of differences between the Van Deust brothers, until the sentiment was general among them that Peter Van Deust should be at once arrested for the murder of his brother.

II. ON INFORMATION AND BELIEF.

That the reader may be properly informed of certain antecedent events which, as will hereafter be seen, were intimately connected with, and indeed leading directly to the murder of Jacob Van Deust, it will be necessary for us to make a brief retrogression in our narrative and to introduce various other members of that little seaside community who bore their several important parts in the eventful drama of real life here in progress of recital.

Near the close of a day in earliest spring, when the sun, that had not yet sufficient power to melt the lingering patches of snow that still laid here and there among the thickets and on northern slopes, was throwing its last red rays upon the lowering, leaden-tinted masses of the western sky, two young girls wandered, with their arms about each other's waists, in the shadows of the woods not far distant from the village of Easthampton. One of them, somewhat above the medium height of women, possessed a slender and graceful figure, and a face that, seen under the large, crimson-lined hood of the cloak with which her head was covered, appeared almost pure Grecian in its regularity of feature and delicacy of outline. Her complexion was pale, but the clear roseate flush of her cheeks, and the brilliancy of youth

and health sparkling in her eyes, demonstrated sufficiently that that pallidity was simply the added charm with which kindly nature at times enhances the loveliness of the most beautiful brunettes. The sentiment expressed by her countenance was serious and earnest, but not sad, for a faint smile, like the blossoming of some sweet hope, rested upon her small red lips. Her companion, who seemed to be of about the same age—not more than eighteen or nineteen years—was of a different mould; possibly less beautiful, but hardly less bewitching. She was somewhat shorter of stature and rounder of form, with a face in which vivacity and determination were happily blended. Her laughing lips were red and full, a merry mischievous light danced in her blue eyes, and her hood thrown back upon her neck, left bare a round head covered with a wavy wealth of brown hair.

"Now, Mary," said the brown-haired maid, bending forward and looking up archly in the face of her friend, "let us drop this nonsense of pretending to look for trailing arbutus, when you know, just as well as I do, that it will be a week, if not two, before there will be a sprig of it in bloom; and I know, just as well as you do, that you called me out for this walk to tell me something about Dorn Hackett, and for nothing else. Isn't that so, now?"

"Yes, you sharp little thing. You have guessed rightly, as usual. I have received another letter from Dorn."

"A letter from Dorn? The first for over a year, isn't it?"

"Yes."

"Well, dear, it must seem almost like getting one from a stranger."

"Whalers have so few chances to write home."

"He has been gone a great while, hasn't he?"

"It seems so to me, I confess. And three years really is a long time, isn't it?"

"Dear me, yes. I wouldn't let Lem go away from me that way. Who knows but what he might marry somebody else while he was gone? Have you never been afraid that Dorn would?"

"Oh, no, Ruth. Never. He loves me too well for that, I know."

"And you felt just as sure of that when you did not hear from him for nearly two years?"

"Yes," replied Mary, with a little hesitation, however: "for I know the girl whose lover goes a-whaling must have patience; and I have heard Uncle Thatcher tell a good deal about the countries to which the whalers go, and I hardly think—"

"That he would be likely to meet anybody there who would be able to cut you out. Well, there's some comfort in that reflection, anyway. But the letter! What does he say for himself?"

"That he is coming home, Ruth; coming home at last. He is on the way now. A fast sailing packet-ship brought the letter on ahead, and he supposed that he would arrive a couple of weeks after I received it."

"And when he comes you'll get married?"

"I—hope so," replied Mary, in a little lower tone and with tears gathering in her eyes. "But you know we are poor; and besides, Uncle Thatcher—"

"That, for Uncle Thatcher," exclaimed little Ruth, snapping her fingers defiantly. "What has he to say about whom you shall marry? That is a matter which concerns nobody but you and Dorn."

"My mother, when she was dying in the big city, leaving me all alone, put me in his charge, you know."

"Well, what of it? It would be as much as I'd do to let my father and mother interfere with my marrying any nice young man I liked, and I don't believe parents can transfer that right—if it is a right—to anybody. Uncle Thatcher, indeed!" she ejaculated scornfully, with a toss of her little resolute round head. "What does he want you to do, anyway? To live and die an old maid, to please him?"

"No, I have been ashamed to tell anybody heretofore—even you, Ruth—but he wants me to marry Cousin Silas."

"That ugly, good-for-nothing cub of his?"

"Yes; Silas asked me to once, and when I refused him, said that I was only a pauper living on his father's charity, and threatened to tell such stories about me that nobody else would have me. He hurt and frightened me terribly, and Dorn found me in the woods crying about it. In the fullness of my heart I told him all. I couldn't keep it to myself when he asked me why I cried. And do you know what he did? He went right off and gave Silas such an awful pounding that he was laid up for two weeks."

"Good! I like Dorn Hackett better than I ever did before. That's just what I should expect of Lem in such a case."

"That was the time Silas was reported to be so sick, just before Dorn went away. He never dared to talk about me as he said he would, I guess, but as soon as he got well went right off to New York. Uncle Thatcher blamed Dorn for hurting Silas, and has hated the thought of him ever since. And oh, Ruth! you don't know what I've had to suffer from Aunt Thatcher!"

"Now you just take my advice and put your back right up at her; and as soon as Dorn comes home, you two go right off and get married, and if Uncle Thatcher tries to interfere, have Dorn pound him, too—worse than he did Silas."

Mary smiled through her tears and replied: "Dorn says he has done well and talks about buying a share in a coasting schooner—and a house—and—furniture—and I think he said something about getting married right away."

In sympathetic exuberance of joy the two girls embraced and kissed each other, Ruth exclaiming:

"And we'll get married on the same day, won't we? And in spite of Uncle Thatcher, or anybody else, Mary Wallace will be Mrs. Dorman Hackett, and Ruth Lenox will be Mrs. Lemuel Pawlett. But I wish Lem's name didn't rhyme with 'pullet' and 'gullet.'"

The two charming young friends were so busy with their theme that not until they were close before him, in the little bridle path through which they wandered, did they notice the presence of a third person: a smoothly-shaven, little, elderly gentleman, primly dressed in black and wearing a band of crape upon his tall silk hat. He was upon horseback, sitting silent and motionless. He had seen the girls slowly strolling toward him, waited

until they almost collided with his horse's nose and had executed a little concerted scream of surprise, and then addressed them in a slow, measured and precise manner, saying:

"I am endeavoring to find the residence, or residences, of two persons known as Peter and Jacob Van Deust, supposed to be brothers, who, according to my present information and belief, reside somewhere in this vicinity. Can either of you young ladies direct me definitely upon my way, and if able, will you be so kind as to do so?"

"Follow the path you are on," answered Ruth, "until you enter the main road; turn to your right about a quarter of a mile, then go up a lane that you will see on your left—the first that has an elm tree on each side of its entrance—and it will lead you straight up to the Van Deust homestead."

"I am very much obliged to you for your apparent courtesy and the seeming accuracy of the details of your information," responded the little gentleman, with grave deliberation, bending almost to the horse's mane as he spoke. Then straightening himself, and shaking the reins, he urged his steed into a gentle trot and soon disappeared in the gathering evening shades at a bend of the path.

"'Supposed to be brothers'—indeed!" exclaimed Ruth, when he was out of sight. "I'm sure their faces will afford him sufficient 'information and belief' on that score when he sees them."

III.

A GOLDEN RAIN.

The Van Deust brothers sat smoking their pipes in the twilight on the wide porch of the old homestead overlooking the sea.

"I met Thatcher to-day when I was over at the village," said the younger brother, Jacob, "and he wanted to put the ten acre lot in corn on shares."

"Well," responded Peter, "I suppose he might as well have it as anybody. Somebody will have to work it. We are getting too old, Jacob, for ploughing

and such-like hard toil ourselves, and a third will be all we'll want. What did you tell him?"

"I didn't give him any definite answer. I wish somebody else would offer to take the lot. I don't like that Thatcher."

"Why?"

"He is a hard, severe-looking old fellow, and I'm sure he treats that pretty niece of his badly."

"Oh! He does, eh? And now, Jacob, what the mischief is that to you? And what has it to do with his putting the ten-acre lot in corn on shares?"

"I've seen her crying."

"Bah! Girls are always crying. They like it. They do it for practice."

"Peter, you'd kick a boy for throwing stones at a wild bird, wouldn't you?"

"That's another matter. Birds are birds, and they're God's creatures; but women are the devil's creatures, and you'll never see Peter Van Deust trouble himself to lift his foot to a boy that throws stones at them. If the girl don't like the treatment her uncle gives her, I suppose she can find some fellow fool enough to marry her. 'Most any of 'em can do that."

"Peter, you shouldn't talk that way. A poor girl has her feelings about marrying where her liking goes, just as much as a man has."

"Yah!" snarled Peter, contemptuously, vigorously puffing his pipe, and for some minutes both men were silent. The younger of the two sank into a reverie, and awoke from it with a start, when his brother resumed the conversation, saying:

"I tell you what it is, Jacob. You were spooney on Mary Wallace's mother forty years ago, and I'm blessed if I think you have got over it yet. She threw you overboard then, not for a better looking man—for you were a fine, trim, sailor-built young fellow in those days—but for a richer one. She thought—"

"No, no, Peter! No, no! Don't say that! Don't say that! She didn't want to marry Wallace. I know she didn't. But her father and mother compelled her to it. She loved me best, I know she did. But you are right in saying I haven't got over it, Peter. I never shall. I'll love her just the same still, if I meet her in heaven. And when I see Mary's sweet young face, the love that is in my heart for her mother's memory cries out like a voice from the grave of all my hopes and joys, and I can hardly keep from taking poor Lottie's child in my arms and weeping over her."

"Which, if you were to do, she would think you were crazy, and right she would be," commented Peter, snarlingly.

"Hello!" sounded shortly, in a sharp wiry voice, from the little lane at the back of the house.

Peter, rising from his bench and going to the end of the porch, replied with a sailor-like "Aye, aye, sir," to the hail of the stranger, who was none other than the little elderly gentleman already encountered by Ruth and Mary in the woods. Without dismounting, the visitor asked, in a slow and cautious manner,

"Am I justified in presuming that I am upon the premises of the parties known as Peter and Jacob Van Deust?"

"This is where we live," replied Peter, a little puzzled by the stranger's manner.

"Pardon me, sir, but your reply is not an answer to my question. Am I to understand that you are one of the said parties?"

"I'm Peter, and this is Jacob," responded the elder brother, pointing with the stem of his pipe at the younger. "But come alongside before you get off any more of that lingo."

Methodically and carefully the rider dismounted, fastened his nag to the fence, and pushing open the little gate, stepped upon the low porch-floor, where, after an elaborate bow to each of the brothers separately, he continued:

"Assuming your affirmation to be correct and capable of substantiation by documentary evidence, and believing that you are, as you represent yourselves—or, rather, as one of you has represented—Peter and Jacob Van Deust, permit me, gentlemen, to have the pleasure of offering you my congratulations."

So saying, he raised his tall hat with old-time courtesy, repeated his bows to the brothers severally, and replaced his beaver with such exactitude that not a hair of his nicely-brushed wig was disarranged.

"Congratulations upon what? Upon being Peter and Jacob Van Deust?" demanded Peter, who began to look upon his visitor as a probably harmless lunatic.

"Naturally, sir. For reasons which you shall presently apprehend. Have you, or have you had, sir, to your knowledge, an uncle named Dietrich Van Deust?"

"Yes. It was Uncle Dietrich who went away to the Indies when we were boys, wasn't it, Peter?" said the younger brother.

"Yes, and settled somewhere there; I forget where. Batavia, I think, was the name of the place; but I ain't sure, for it is an age since I heard from him."

"Your remembrance is correct, nevertheless, sir," responded the stranger. "It was in Batavia that he took up his residence, and in Batavia that he died, at an advanced age, an old bachelor, possessed of large wealth, as I have been given to understand; and I offer my congratulations to you, gentlemen, for the reason that you are his fortunate heirs to the extent of one hundred thousand dollars."

The mere mention of that stupendous sum, as it seemed to them, fairly, stunned the two simple-minded old men who received this intelligence.

"Oh, Peter! It can't be there's so much money," gasped Jacob.

"Let me turn it over in my mind. Take a seat, sir," said Peter, pushing forward a stool for the visitor, reseating himself on his bench and slowly rubbing his forehead. Jacob went out to put away the little gentleman's horse, and while he was gone Peter relighted his pipe and smoked in

silence. When the younger brother returned, the visitor resumed the conversation.

"My name," said he, "is Pelatiah Holden, and my profession that of counsellor-at-law. Here is my card," presenting one to each of the Van Deusts, and then continuing: "Four months and fourteen days since, I received from the firm of Van Gulden & Dropp, of Amsterdam, Holland, information to the effect that a client of theirs named William Van Deust was joint heir in the estate of Dietrich Van Deust, deceased, of Batavia; and they desired me, in order to facilitate the partition of the estate, to discover two other heirs, nephews of the deceased Dietrich Van Deust, named respectively Peter and Jacob Van Deust, sons of Jan Van Deust.

"That was father's name," interpolated Jacob in an undertone.

"As I have been already informed, sir, and do not doubt your ability to establish by legal proof," replied Mr. Holden, bowing gravely to him and going on with his narration. "Since that time, until three weeks ago, I have been seeking you, and it has only been during four days past that I have been satisfied that your claim to be the sons of Jan Van Deust, and nephews of Dietrich—and consequently inheritors under the will of the latter—could be legally established. Hence the apparent delay. But you will perceive, gentlemen, from my explanation, that I have notified you of the gratifying fact of the bequest, at the earliest practicable and proper moment."

Peter nodded silently, not having yet completed, seemingly, the serious task of "turning it over in his mind." But Jacob effusively stammered:

"Oh, we were not in any hurry, sir."

The lawyer resumed, speaking with the deliberate precision of one who reads an indictment: "Under the terms of the will, you are to enjoy this inheritance jointly while you both live, and expend it all, if you please, but by mutual consent. And should any of it remain at the time of the demise of either of you, it must descend to the survivor, untrammelled by any right of bequest on the part of the first decedent. And no contract, bargain, agreement, stipulation, or understanding whatever between you, concerning its disposal shall be made, by which the one surviving may be bound, or influenced in its administration; and to the fact that he is in no wise so

bound, the survivor must make oath when entering into sole possession, else the sum so remaining must lapse to residuary legatees belonging to a remote branch of your family in Holland. What your uncle's intentions may have been in framing his will in this unusual manner, I do not pretend to say; nor is it, indeed, my province to inquire; but the facts are—as I know from an attested copy of the will in my possession—as I have had the honor of presenting them to you. And now, gentlemen, permit me to renew my congratulations and express the hope that you may long be joint possessors of this handsome inheritance."

IV. TRUE LOVE.

"The winds are fair, the sky is bright,
The sails are drawing free,
And loud I sing, my heart is light,
My loves returns to me.

To the no'nothe east and the sou'sou' west,
And every other way,
He's sailed from the girl that loved him best,
But he comes back to-day.

"Land ho!" "Land ho!"
"Land on the starboard bow!"
"Land ho!" "Land ho!"
He's in the offing now.

The nights were dark, the days were drear,
When he was on the deep,
Now night is gone, the day is clear,
And I no more shall weep.

To the no'nothe east and the sou'sou' west,
And every other way,
He's sailed from the girl that loves him best,
But he comes back to-day.

"Land ho!" "Land ho!"
"Land on the starboard bow!"
"Land ho!" "Land ho!"
He's in the offing now."

So sung pretty Mary Wallace, as, sitting at the foot of a little tree, her favorite haunt and old time trysting-place in the woods, she abandoned herself to happy anticipations of her lover's return. Each hour might bring him now. Her bonnet was thrown aside and her black curls rippled down loosely over her shoulders. Her head was thrown back into the palms of her hands interlocked behind it, and her beautiful face, thus upraised, beamed with innocent gladness. And she sang, as the birds sing, from sheer happiness.

"He's in the offing now," sang a full, rich, manly voice, joining hers in the last line of her song, and with a little inarticulate cry of surprise and joy she sprang to her feet, to be the next moment enfolded in the strong arms of her sailor lover, back from the sea.

Dorn Hackett was a fine-looking young fellow, of a size worthy of a woman's liking, with a handsome, expressive face, hazel eyes, brown hair, broad and well-balanced head, square shoulders, deep chest, and such powerful arms as might have served for the model of a Hercules.

"Why, darling, you are crying!" he exclaimed, as with gentle force he raised her face from his breast and looked into her eyes.

"Ah, Dorn, they are happy tears. Do you not know that a woman weeps when her heart is full, just because it *is* full, whether it be filled with joy or sorrow?"

"Well, you shall never cry for sorrow again, if I can prevent it."

"Then you will never again leave me for so long a time. Oh, Dorn, it seemed as if you never would come back; and my heart ached so with longing for you. You don't know how unhappy I have been sometimes, while you were away."

"Why? Has that rascal Silas been making you any more trouble?" demanded the young man, his eyes blazing, and his hands involuntarily

clenching in sudden anger.

"No, no, Dorn. He went away very soon after you did, and has not returned since."

"Then that uncle of yours, I suppose—"

"He has been no worse than before; rather better, perhaps as Silas was not here to be urged upon me and you were gone—none but I knew where—and, as he no doubt hoped, never to come back. But I begin to think, sir, that you didn't love me at all as much as you professed, or you would have felt something of the loneliness that I suffered and understand better why I was unhappy."

"Darling, I—"

"What a foolish girl I have been! Crying my eyes out for one who was no doubt very merry without me and well contented."

"Ah! You only say that to make me tell you again how much I love you, little Mollie. I've felt lonely enough, sometimes, it is true; but never enough to cry about it, I must confess; and I rather think the fellow is soft-headed as well as soft-hearted who pipes his eye and gets down in the mouth when he can say to himself that every day that passes, and every new exertion he makes, brings him nearer to the girl he loves. Why, instead of getting blue with thoughts of my far-away little Mollie, they gave me courage, and strength, and happiness. They warmed me as I lay along the yard furling sail in the icy gale; they made short the long hours of the night when I took my trick at the wheel; they nerved my arm when I struck for the life of a whale."

"I find myself beginning to believe again that you really did love me."

"Love you? Why, I couldn't live without loving you."

"And you never thought that while you were so long away I might learn to love somebody else?"

"No. Never even dreamed of such a thing," he replied simply.

"Ah! Now I know you loved me, for only perfect love, knowing but its own fullness and truth, is so trustful. And you were right, dear Dorn. I could love no one but you."

"Well, my pet," continued Dorn, after the natural ceremonial of due recognition of such a sweet avowal—the form and manner of which youthful readers may readily figure to themselves, and older ones perhaps find suggested by memory—"we'll not have much longer to wait now. Our cruise was a good one, and when the shares are figured up and paid off, I'll have a handsome little sum coming to me. Then an owner in New Haven, Mr. Merriwether, wants me to take immediate command of a schooner trading between that port and the West Indies, and has offered me such a pretty share of the profits that I have agreed to make a few trips for him. Then I shall have enough to build a cage for my bird, and to buy, not simply a share in a schooner, but a whole schooner—all by myself, I hope, and we will be made folks for life."

"Oh! You're going away again, Dorn?"

"Yes, but only for short voyages of a month or so at a time, and I'll be over to see my little Mollie every time I'm in home port; and in the fall, if not before, we'll be married. No more long voyages for me."

"I'm so glad to hear you say that, dear; and I can wait patiently, even happily, when I may see you sometimes." And, possibly for happiness still, the girl began crying softly again.

"Come, come, little Mollie," said her sailor lover, consoling her with a kiss, "there's no occasion to rig the pumps in such fair weather as this."

Mary smiled through her tears, and dried her eyes.

"Now," he continued, "let me hear your voice, darling. Tell me something."

"What shall I tell you?"

"Tell me again if you still love me."

For answer she put her arm around his neck, drew his face down to hers, and kissed him. What words could have been so complete and eloquent an assurance as that chaste and tender caress?

"My own dear little wife," he exclaimed, embracing her passionately.

"Don't call me 'wife' until I am one," she said, with assumed earnestness, "for I'm told it's unlucky."

"Well, maybe it may be," he answered slowly and doubtingly. "There's no denying that there is something in luck. Every sailorman knows there are unlucky things, such as sailing on a Friday, and drowning a cat, and lots more, and that may be so. Well, I won't take any chances on it. But I've thought of you for eleven hundred days and nights as my little wife, and the words sprang naturally to my lips. Still I'll try not to call you so any more until we are married."

"And to prevent any harm from your indiscretion I suppose I must use the counter-charm."

"And that is—?"

"To call you," and winding her arms again about his neck she whispered in his ear, "my big husband."

And then, of course, there were more suitable ceremonials, endearments and caresses, and mutual protestations of undying affection, such as young people so circumstanced have always made, make yet, and doubtless will make to the end of time.

How very short the time seemed to the lovers from the moment of their meeting until by a glance at the stars, the true sailor's clock, Dorn saw that it was near the hour for him to leave Elysium and hasten to join a shipmate, who was waiting for him in a light sail-boat off Napeague Inlet, to take him back to New London and the stern realities of life. And so, after a final settlement as to the probable time of his return from his first West Indian voyage; and a little more previsionary talk about the happiness of which they were so well assured the enjoyment in the coming autumn; and consequently more love-making and caressing, all of which could have no interest for anybody but themselves, the lovers parted.

V.

THE POISON OF GOLD.

There was no difficulty whatever in establishing the identity of the Van Deust brothers, and no obstacles were interposed to prevent their entering into possession of their fortune as speedily as the forms of law and the time requisite for communication with Holland would permit; for in those days it had not yet become a branch of the legal business to stir up vexatious will contests, based upon the fictitious claims of presumptive heirs, in order that lawyers might fleece the real inheritors. Even before the money arrived from Holland Peter wanted a few thousand dollars of it in the house as a tangible evidence of the reality of their wealth; and Mr. Holden very cheerfully humored his whim by making him an advance of the required amount. The old man had no idea of investing the money, or buying anything with it; but he loved to run his fingers through the glittering coins from time to time and listen to the mellifluous music of their chinking; to count, and recount, and pile the yellow discs, and think what he could do with them if he had a mind to. The unhappy fact was that this sudden acquisition of wealth had developed a really miserly disposition in the elder brother. As is very common, especially among those who only acquire large fortunes late in life, possession begat in him a longing to possess. He even felt it an injury that he had been all those years without that money, the existence even of which he had not known, and for which, now that he clutched it, he really had not the slightest use. He had never been one at whom the tongue of scandal might have wagged the reproach of prodigality, even in his youth; but his jealously careful economy was greater now than it had ever before been.

Jacob proposed one day that they should purchase two black broadcloth suits and crape-bound hats, to be worn as mourning for Uncle Dietrich; but was completely discomfited by the look of pained surprise with which Peter regarded him, and the tone in which he replied:

"Now, Jacob, would you go to making ducks and drakes of our little money in that way, and at your time of life?"

No, Jacob resigned his idea of a tribute to Uncle Dietrich's memory, and penitently declared he really had no notion of becoming a spendthrift; and thereafter he uncomplainingly and unquestioningly left his elder brother to the sole administration of their joint wealth.

When the bulk of their inheritance arrived and was placed in the hands of Mr. Holden for investment on bond and mortgage in New York, that it might yield more dollars to covetous Peter's longings, then the old man's troubles indeed began. When he heard of a fire, he trembled to think that perhaps it was property mortgaged to the Van Deust Fund that was burned. When he read of a bankruptcy he shuddered for fear that the delinquent might have been indebted to the Van Deust Fund. When he had no bad news, then his anxiety was even greater, for at times he was capable of thinking it possible that worthy little Mr. Holden might have run away with the Van Deust Fund bodily. All this made him a very uneasy and unhappy old man. Jacob's kinder and more trustful nature gave place to none of those anxieties, and Peter resented his seeming indifference to the Van Deust Fund.

"Jacob," said he, one day, "we might live to see the Fund doubled."

"Well, Peter, if it were, what more good would it do us?"

The elder brother felt almost sick with disgust at that unambitious reply, and said that he felt so.

Thus it was that Peter's temper, never a remarkably sweet one, became so sour that meek old Jacob grew to look upon him with actual dread and would shun him, or sit looking askance and timidly at him, when they smoked together on the porch in the evenings, in the habit but not the content of former days. And, seeing this, a new suspicion entered Peter's soul to plague him.

"I suppose," said he, one day, with a grim smile, "that you think because I'm the oldest, I'll die first."

"Now, now, Peter, my dear Peter! I assure you I never had such a thought," protested horrified Jacob.

"Oh, it's only natural you should. I don't blame you. But I'm good for a good many years yet, Jacob; a good many years yet."

"I trust and fervently hope and pray, brother Peter, that you may be good for very many years to come." And the tender-hearted old man's voice

trembled, and his eyes were moist as he spoke. "Why," said he, "to think of your dying, Peter, gives me a—a—a—"

"An idea, eh?"

"No, no, Peter, not at all that. No. A cold shudder, I meant; but you startled me so I couldn't think of the word. After all the many years we have lived together, all by ourselves, with no other companions and hardly any other friends than each other! Why, Peter, if I were to lose you, I'd want to die myself, right off."

"Humph. Not you. I know what you'd want to do a heap more. And I don't blame you. Oh, no. It's natural for you. But I know."

"Know what?"

"I know what you'd do with the Fund if I was out of the way."

"Then you know much more, Peter, than I should know, even if I had it in my hands, to do what I pleased with this blessed minute."

"Why, you'd be a special Providence for the women. That's what you'd be, you soft old noodle. You'd give it away to the young ones that wanted to marry, like Mary Wallace; to the middle-aged ones who were sorry they had married, like Mrs. Richards. Oh, you don't think I've noticed and understood your hinting 'how poor she was,' and 'how hard she must find it to get along with her five small children and deserted by her worthless husband;' and I've no doubt, if the truth were known, he had some good reasons for leaving her. And you'd give it to the old ones, just because they were old women. You'd give a lot of it to Mary Wallace, for her mother's sake, I've no doubt. Oh, yes. Beautiful ideas you'd have, and fine things you'd do with the Fund if I was out of the road."

"If I should do all that you have said, brother, I think the Fund would be doing a great deal more good than it does now."

"Aha! There! You admit it! I knew it! But you needn't think you'll ever get the chance. I'll live to bury you yet."

By this time he had worked himself up into a veritable passion; his lean old fingers trembled with the agitation of his wrath, and his perverted senses

were deaf and blind to the loving kindness of Jacob's meek and gentle response, "And I hope, Peter, that you may."

"You don't. You're a hypocrite," he retorted, furiously. Jacob looked at him sadly, shook his head, and after lighting his pipe in silence, strolled away for his evening smoke to the woods, where he was wont to retire when Peter made the house too warm for him.

But the crushed worm, proverbially at least, eventually turns; and one day the younger brother, badgered beyond endurance by those oft-repeated taunts and reproaches, which were always accompanied by cruel raspings of the old wound in his heart, faced his tormentor and replied:

"Well," he said, "take it by and large, and I think if I should do all that you have said with the money I'd make a better use of it than you'd be likely to."

"What do you know about what I'd do with it?"

"No more than you know what I would; but I've got just as good a right to guess as you have."

"Well, what do you 'guess'?" retorted Peter, with a sneering wicked grin.

"Why, I imagine that as long as you lived you would hang on to every penny of it, like an old miser as you are, and when Death loosed the greedy clutch of your avaricious fingers from it, it would be discovered that you had left it all to found a home for worn-out, dried-up, useless, ill-natured old animals such as we are, creatures who have outlived all love but that of self, and deserve no other; men who, like you, have no without a blush for what they are, and a sigh for what they might have been."

"Jacob, you're a chuckle-headed ass."

"Peter, you're a soulless old curmudgeon, and a brute."

"Don't you talk to me like that. For two cents I'd knock your head off."

"For a money consideration I've no doubt you'd try it; but I'll bet you a thousand dollars you can't knock one side of it off."

"You'll bet a thousand dollars! I'd like to know where you'd get 'em."

"Right in the house. Half the money that's there belongs to me. It all belongs to me just as much as to you."

"Oh, indeed! And you'd like to knock me in the head and get possession of it, wouldn't you?"

"No. But I'd like to jam some sense into your thick skull, and bleed out some of the meanness and selfishness that fills your heart."

"Faw de Lo'd's sake. Is you boys a qwa'lin'?" demanded old black Betsy, coming up on the porch; and they slunk away ashamed before her.

But when Jacob had once "read the Declaration of Independence," as he styled his self-assertion against Peter's domineering disposition, he soon fell into the habit of repeating the precedent, and as Peter did not willingly or easily relinquish his sovereignty—the prerogative of seniority in his opinion—they had many a wordy wrangle, and not infrequently uttered to each other such threats as might well have seemed ominous if overheard by strangers. And they were overheard, and their quarrels were repeated and magnified in circulation from mouth to mouth; so that it was not long before it became matter of common notoriety in the community that the two old men had actually had knock-down fights; and once, when Peter was laid up with the rheumatism, and Jacob was nursing him most tenderly and assiduously—notwithstanding the invalid's temper was just then even worse than usual—it was popularly believed that the elder brother had been almost killed by the younger in a bloody combat, and there were those who even talked of "speaking to the squire about it." But the brothers never did come to blows, and the only immediate result of their quarrels was a formal division between them of the money on hand in the house, after which it was allowed to lie in two parts, as useless as it before was in one. Jacob indeed had some idea of giving his share to Mary Wallace, but could not exactly make up his mind upon what pretence or with what excuse to offer it, and feared to offend her.

One day he sat on a little mossy bank by the roadside when she passed him, coming from the woods with a bunch of wild flowers in her hands and going toward her uncle's house. She was close to him, but did not see him. Her thoughts were upon her absent lover, and in the exaltation of her happiness she was oblivious to all about her but her own joy. The old man's

eyes were upon her, however, reading her secret in her countenance transfigured by love and hope. Ah! how her look brought back her mother's face to his remembrance.

"Little she would care," he said softly to himself, "for the money now. She has love; and that is better than gold."

VI.

WHAT WOULD STEADY SILAS.

But when approaching her home, Mary controlled her countenance and was quite demure. The happy ones do well to hide their felicity, lest the envy it would beget should make the world intolerable. And about Uncle Thatcher's house there was an atmosphere that made very easy the repression of joyous emotion. It was a square frame dwelling, two stories high, in a bare sandy yard surrounded on three sides by a rickety fence of rails and on the forth—the front—by palings, with a gate in the middle of them. There were no shutters on the windows, that looked like great staring dead eyes, sometimes with a blaze of fury in them when the sun, low in the west, glared upon them; and there was no porch, but only a big stone for a step at the door. There were no vines trailing against the walls; no flowers in the yard, but only weeds in the fence corners; and no trees. Everything that might have adorned or softened the expression of the place was lacking. The birds always flew swiftly by it and never stopped there to sing.

At one end of this cheerless home was a crumbling well-curb, to which came often, to draw water, a tall, gaunt, sallow and slatternly woman, who continually wore a sun-bonnet and had her sleeves rolled up on her lean sinewy arms. A tangled wisp of unkempt sandy hair never failed to dangle below the curtain of the sun-bonnet on the back of her neck. That woman was Aunt Thatcher.

Behind the house, and separated from it by a stable-yard, knee-deep in time of rain, with muck and foul green water, stood an old barn, from which was diffused a dull but quite perceptible odor of animal decomposition, arising out of a great pile of crude whalebone, or "ballein", and some barrels of whale oil. Uncle Thatcher was captain of a shore whaling company, and in

his barn those articles were generally stored until they could be sent to market. The "ballein" needed to be kept some time, for cleaning, scraping, and splitting before it could be sold.

As Mary reached the gate, she stood still for a few minutes, contemplating the scene of thriftlessness and apparent poverty before her; a picture for which, as she well knew, no good reason existed in fact, for Uncle Thatcher was by no means a poor man. As captain of the whaling crew, his annual gains were considerable. Then he owned a fishing smack and a large share in a big coasting schooner that plied from Sag Harbor, both of which paid him well. But better than either of those to him was an industry, the nature and importance of which Mary little understood, although she suspected something of its mysteries. At certain times each month Uncle Thatcher and one particular neighbor used to go fishing in a stout whaleboat rigged with a sail, on moonlit nights, and upon those occasions they were almost always lucky enough to find one or two casks of rum—doubtless washed overboard from some vessel homeward-bound to New Haven from the West Indies. (It was wonderful how many casks of rum were thus lost overboard in those days, just off Napeague Inlet.) Or, by the accidental use of a grapnel, they would chance to fish up some bottles of valuable "bay-oil" from the bottom. Uncle Thatcher used to bury that treasure-trove in the sand, back of his barn, and it always mysteriously disappeared at night, when nobody was watching it. Yet he never seemed to take those losses to heart, but would find and bury more rum and bay oil, in the same place, to be lost in just the same way. "Smuggling, eh?" Well, yes. But they didn't call it that. They spoke of it as "finding and saving things."

While Mary stood at the gate, Uncle Thatcher himself sat upon the stone door-step, sharpening with a whetstone the edge of a "blubber-spade"—a sort of huge long-handled chisel, used to cut a whale's blubber from his carcass and into strips. He was a tall man, wirily and powerfully built, past middle-age, but still bearing well his years. His gray eyes were overhung by exceedingly bushy iron-gray brows; his nose was large and beak-shaped; his lips, thin and straight; his ears wide and thick; and his hands big and bony, with thick fingers, flat at the ends and having great joints.

Looking up from his work, he demanded of the young girl, in a tone of querulous surprise, "Where on earth have you been? I've been looking

everywhere for you to turn the grindstone."

"I'm ready to do it now, uncle," responded Mary, evading a reply to his question by the prompt proffer of her services.

"Oh, I don't need you now. Your aunt turned it."

He gave a few rubs of the whetstone on the shining blade, in an absent-minded way, and then laying the long spade across his knees, and looking sharply at Mary, said slowly, as if carefully choosing his words:

"You don't get used to our way of living out here on the beach, do you, Mary? You'd rather be back in the city, where you lived when you were a little girl, wouldn't you?"

"Oh, no, uncle. My memories of the city do not make me wish to return to it. Papa and mamma died there, and after we lost papa we had to live in a very poor part of the city, where the tall houses hid the sunshine, and the air was always bad, and there was so much misery, and dirt, and sickness all about us. Oh, I loathed it as a child, and it makes me almost sick to think of it now. No, I do not wish to go back to the city. I like best the bright sunlight and the pure ocean breezes. I love even the storms."

"But if you could live in a nice place in the city?"

"No. I think I would be afraid to go back there now." While talking she had advanced from the gate, and now stood near her uncle.

"Sit down here beside me, Mary. I want to talk to you a little," said he.

She obeyed, trembling slightly, for she felt a vague presentiment that he proposed pressing a subject that she dreaded. But he was slow to begin, seemed to hesitate, and relapsed into thought while he pared his already stubby nails upon the sharp edge of the blubber-spade. At length, he "made out his bearings" and opened the attack.

"You know," he said, "that Silas has been a little wild, perhaps, in days gone by, as a young man of spirit is most likely to be; but I hope you have no hard feelings against him on account of his foolishness that time. You know he was only a boy, then; and he was, as you may say, carried away with you, and all struck of a heap when you gave him the mitten so plainly.

Maybe he deserved all he got that time, and I guess it done him good; so we'll call that square and let by-gones be by-gones. Is that your idea?"

"Yes, uncle," answered Mary timidly, in a low voice.

"Give us your hand on it."

With a little smile the girl extended her hand, which Uncle Thatcher took very seriously, and treated to a solemn pump-handle-like shake.

"And now here's the point," he went on, still holding her fingers; "Silas is going to settle down and be steady. He wrote to me about three months ago, from Boston, and said he'd got work there as a ship-carpenter, and had quit his wild ways, and wasn't going to call on me for any more money. Well, he has kept his own word about the money, and by that I judge he's all right, earning an honest living, and doing as he said. But he likes living in the city better than down here on the beach. And now do you know what would do more than anything else to keep him steady?"

Mary shook her head. She had an idea of what he meant, but did not wish to encourage him in the direction he was tending.

"A good wife would," said Uncle Thatcher very decidedly.

"Then I hope he will succeed in finding one in Boston," replied the girl, with purposeful evasion of the direct attack.

"That's not my idea. I don't want him to marry a Boston girl. I've got my eye on a girl who I know is all that a good wife should be, the very one that Silas ought to have. You know who I mean. It's you, Mary."

"A girl should never marry a man she doesn't love, uncle, and I don't love Silas."

He bit his lips, was silent for a moment, and then resumed: "You're only a girl, yet, and can't rightly be expected to know your own mind; and besides, it's three years since you have seen Silas. You don't know how you might feel towards him if you were to see him again now."

She shook her head, for she thought she did know very well, as she mentally put Silas and Dorn in contrast, but did not answer.

"I hope," he continued, viewing her with a little growing suspicion, "that you've got over that childish notion you had once about that young Hackett chap. He's gone, the Lord knows where, and I'll be bound, never thinks of you any more. Now, if you marry Silas, I can give you a good start in life. I'm not poor, and if you and Silas prefer to live in the city, why I'll furnish a house for you there nicely, and start him in some business, and—"

"Oh, no, no, uncle! Please do not talk any more about it. I can't marry Silas. Indeed, I can't."

Uncle Thatcher's face crimsoned with anger, but he restrained himself, and said: "Ah, I suppose you still think that young Hackett will come back of the same mind that he went away. Aha! Not he! Those young sailor chaps have a wife in every port. And he'd better not come snooping around here, if he does come back, or I'll—"

Suddenly breaking off his speech, he sprang to his feet, clutched his hat from the ground, and started off for the beach, running at the top of his speed. His quick eye had seen, afar off upon the bluff overlooking the sea, a man on horseback, who waved, with excited gestures, a small red flag.

VII.

PURSUIT AND CAPTURE.

As Uncle Thatcher ran, so ran his neighbors. Bounding across fields, leaping fences, rolling down the sandy face of the bluff, they arrived breathlessly before a small wooden hut at the foot of a sand dune, a little distance up from the edge of the beach—the boat-house of the whaling company. Their captain, having good legs and wind, timely notice and the shortest distance to travel, was, as usual, first to reach the goal, and by the time the crew arrived, had already thrown open the large double doors which constituted the entire front of the hut, revealing within a completely fitted whale-boat that stood chocked upon ways that ran down into the surf. There was too much excitement, and too little breath among the eager men who joined him, for waste of words. Each knew his place and busied himself with the duties pertaining to it. One looked to the harpoons. Another saw that the lance was in its place, and the lashing of its wooden

cap thrown off. A third was careful to see that the long line, nicely coiled in its tub, was free from loops or kinks in the coil. By this time all the crew were assembled, and grasping the thwarts of the boat, from beneath which the chocks were kicked out, ran her swiftly down to the water's edge and launched her, springing in over her sides as she rode out upon a receding wave. Uncle Thatcher sat in the stern. The bow oar was held by Lem Pawlett, a sturdy young fellow who had earned by his strength, skill, and courage the envied post of harpooner.

Once launched, the men rested on their oars a few moments, and looked up inquiringly to the man on horseback, as if awaiting a signal from him. During this brief period of inaction, a little good-natured chaffing passed between the younger men in the boat and their disappointed neighbors who came too late to take places at the oars. All belonged to the same company, but only the first comers were, by their rules, allowed to man the boat. The crew would have fatigue, peril, possibly death to encounter, but they would also have the excitement of the chase and a somewhat greater share of the profits, in the event of success, than those who remained behind; so there was always a great effort made by every man to be first to catch the signal of the mounted lookout, who was on the bluffs all day long—and first, if possible, to reach the boat-house.

"Aha! There's Dan!" exclaimed one in the boat. "This is the third time, hand-running, that he has missed going out. It looks as if he was afraid since we tackled that finback."

"If you couldn't run any better than you can row, I'd beat you here every time," retorted Dan.

"I dreamed last night of rolling a bar'l of oil," remarked a middle-aged man in the crew, "and I'd a swore this morning that I'd be after a whale before the day was over. I never knowed it to fail."

"And then," answered one on shore, "you came down and sat on the beach all day, waiting for the signal. It isn't fair to play dreams on the rest of us that way, is it boys?"

"No. We've got to pull him out of bed at daylight hereafter, and swear him on what he dreamed the night before."

"You'd better not try it. I keep a gun."

"But you don't know how to load it. You want to come right out of that boat now, and start fair, Billy."

"I'll run you fifty yards on the beach for your place, Billy."

"That wasn't what the dream meant, Billy."

"What did it mean then?"

"Why, that you were going to find a bar'l of rum in the Napeague sedge next light of the moon."

There was a general laugh, for Billy's operations against the peace and dignity of the customs authorities were, like those of Uncle Thatcher, an open secret among his neighbors.

Suddenly Uncle Thatcher raised his hand, and all were silent, turning their eyes to the man on the bluff, who was looking through a glass out upon the sea, while holding his little red flag extended at arm's length and still. After a few moments he raised the bit of bunting twice above his head, held it motionless for an instant, pointing toward the east, then waved it once.

"She blows and breaches two points south of east, and a mile away," exclaimed Uncle Thatcher, translating the language of the flag. "Pull, boys! Pull away!"

With arrow-like swiftness the boat darted from the shore; but hardly a sound, as the oars plied rapidly in the rowlocks and the ashen blades bent in the heaving billows, could have been heard a half-dozen yards away. Nearer and nearer they drew to the whale, and by this time the rowers were panting with their exertions; but not a man lost his stroke, and not a word was uttered save the captain's low and earnest caution: "Harder a port." Although so close to the monster that they could hear it blow, not one of the crew turned his head.

"Up bow!" commanded the captain.

In an instant Lem Pawlett, throwing his oar into the boat, was upon his feet, with a harpoon poised in both hands above his head, his face toward the

bow. He was within four or five fathoms of the whale. Another stroke of the oars reduced the distance to two; and then, with a mighty effort, he launched the keen-pointed iron into the huge, black, shining mass that lay before him. Quick as thought the harpooner was in his seat, oar in hand, ready to respond to the instantaneously given order, "Back all!" And the boat seemed to spring away from its dangerous proximity to the whale, almost as if its motion was a recoil from Lem's powerful stroke. The huge creature, thus rudely startled, leaped clear of the water, in sudden fright and pain; then darted straight downward toward the bottom. And now ensued the most anxious moments of the chase. The line attached to the harpoon ran out from its coil in the tub abaft of 'midships, around the logger-head astern, and thence forward, between the men as they sat at their oars, and over a roller in the bow, following the fleeing whale so fast that it fairly hissed. Lem sat ready with a hatchet in his hand to cut it, if necessary, as it might at any moment be, to save a man's life. For, should a kink or loop occur in that swift speeding rope, and catch one of the crew by arm, or leg, or neck, it would either kill him at once or hurl him, like a stone from a sling, into the sea, were it not quickly severed.

Fortunately for his hunters, nature has placed the whale under two serious disadvantages. His field of vision is so limited, owing to the position of his eyes, that it is not difficult to approach him closely if his pursuers are cautious to keep back of his flukes; and he must, from time to time, come to the surface to breathe. However deep and far he may plough his way beneath the waves, his enemies know that it is only a question of time when he will have to come up and subject himself to another attack; and however mighty his energies, he must eventually succumb, if the harpoon holds and the line is not cut.

Down, down went the tortured animal, until the men began to cast anxious glances at the supply of line remaining in the tub. But presently the speed slackened. The whale was coming up again. Having once more taken breath, and made a violent but vain effort to shake himself free by beating the waves with his huge flukes and tail, the leviathan started off at his highest speed, swimming near the surface. The boat, following in his wake, dragged along with such velocity that great sheets of water and crests of foam leaped from her bows, and the crew were drenched with spray. Suddenly he again "sounded," as his diving toward the bottom is technically

termed by whalers. But this time his stay beneath the surface was less prolonged. He was becoming exhausted. Still he continued to make prodigious struggles to escape.

At length he lay quivering upon the surface, resting. Swiftly, once more, the boat approached him, and Uncle Thatcher, jumping from his place at the stern, stepped lightly forward upon the seats, carrying the lance, a long, keen-edged and pointed blade of steel. It is the post of honor, which belongs of right to the officer in command of a whale-boat, to give the *coup-de-grace* to the whale, to launch this steel "into his life." With strong and practiced arms Uncle Thatcher drove the weapon deep into the monster's vitals, and so quick was he that he was enabled to strike with effect a second time before the "flurry," or death-struggle, began, and the boat again backed away. As if mad with agony and despair, the dying mountain of flesh beat the water about him into foam; rushed frantically to and fro, seeming to seek his enemies; rolled over and over; all the while, whenever he spouted, throwing crimson torrents of his life-blood into the air. Gradually he became weaker and weaker; at last was still. The victory was won.

Slowly and laboriously the crew towed the enormous carcass to the beach, followed closely by the back fins of several large sharks, attracted to the place by the scent of the whale's blood.

VIII.

SILAS'S FRIEND FROM BOSTON.

A novel and animated scene was presented at the beach the night after the capture of the whale. On a grassy little plateau that sloped gently down between two low sand-dunes toward the sea, was erected a rude shed, beneath which, set in brick-work furnaces over bright wood fires, were two huge kettles for the "trying out" of the oil from the whale's blubber. Aboard whaling ships it is customary to leave the blubber to "ripen" for several days, in close rooms, before it is put into the kettles, as this, it has been ascertained, increases the yield of oil; but the shore whalers rarely do this. They simply begin at once with the tenderest and most easily treated

portions, and by the time they get through, unaccustomed olfactories in the vicinity generally attest that the "ripening" process has been perfected.

Half-a-dozen boys fed the furnaces—first with wood, and later with blubber "scraps," or "cracklings." When not doing that, they scuffled with each other, wrestled on the grass, shouted with gleeful excitement, and unceasingly munched corn and doughnuts cooked in the boiling oil. By the ruddy light of a bonfire before the shed, men cut in strips, with blubber-spades, the enormous masses and slabs of fat, stripped off the whale's carcass down in the surf, and dragged up here on a low, broad-wheeled wagon, drawn by two scraggy horses. Other men carried those strips inside the shed, where one who sat at a raised bench, with a two-handled knife, "minced" them for the kettles. Still others tended the kettles; skimming out, from time to time, the crisp, brown "cracklings," and adding other masses of fat in their stead; sometimes ladling the oil into barrels. When not otherwise busy, they chewed cracklings. Several women came with panfuls of sweet dough, twisted in curious shapes, which, when thrown into the seething oil, were quickly converted into the toothsome doughnuts in which the boys so much delighted.

At one side laid a great pile of black, fibrous, ragged-looking material, dug from the mouth of the whale, the "ballein," which, when carefully cleaned, dried, split, and otherwise prepared, is known as the whalebone of commerce and corsets.

The work went on with unabated vigor all that night, and all the next day, and gave promise of continuing even three or four days longer, for the "trying out" of the oil from a big whale, as this one was, is no light task.

On the evening of the second day a well-dressed stranger appeared at the scene of operations, inquiring for Mr. Thatcher; and upon finding the grim old veteran—who had as yet taken no rest since starting in pursuit of the whale—introduced himself as a friend of Silas's, from Boston, and expressed an earnest desire to meet the young man.

"Why, he is in Boston," said Uncle Thatcher.

"He was, but has left there, and I expected to meet him here," replied the stranger.

"Here?"

"Yes. I was out of town when he went away, rather suddenly, and so did not see him, unfortunately. But he left word for me that he was going to New York to look for a better job, and would pay a visit to his father's on the way."

"So you knew him well in Boston, did you?"

"Yes; oh, yes; knew him very well. He was quite a friend of mine."

"He was doing well, I suppose? Working and keeping steady?"

The father's voice faltered slightly; he hesitated a little, and picked up a bit of crackling, which he munched as a cover to his anxiety, while he looked wistfully at the stranger.

The man from Boston seemed just a little embarrassed, but only for an instant, when he answered very reassuringly: "Steady? Oh, yes. Steady as a deacon." Muttering to himself, "some deacons, at least."

"Working at ship-carpentering, I believe?"

"Oh, yes. Certainly. A fine ship-carpenter he is, too."

"When did you see him last?"

"H'm. Well, let me see. It must have been—yes, it was two weeks ago yesterday. I'm quite disappointed not to find him here."

"He may have stopped over somewhere on the road a day or two; and if you're in no hurry, and will wait for him, you are welcome to stop with me. I'll give you Silas's own room."

"Thank you. Thank you very much, Mr. Thatcher; but I have already made other arrangements. I have promised to go over and stop with a friend in the village, and after I have looked on a little while at your very interesting industry here, I think I'll go back there, and return to-morrow. Silas may have come by that time."

"Very well. Suit yourself, sir, Mr. ——; I didn't rightly catch your name—Mr. ——?"

"Ketchum, Mr. Thatcher, Ketchum."

"Mr. Ketchum. Glad to know you, Mr. Ketchum. Glad to know any friend of my son Silas's."

"Thank you, sir."

"Make yourself as comfortable as you can, and will you have a little something to take, to keep the cold out?"

Mr. Ketchum said he would not object to having "a little of something to take," and Uncle Thatcher brought it out of a fence corner, from among the weeds, in a stone jug, with a corn-cob stopper. But Silas's friend from Boston was surprised to find that the jug contained delicious "double-canned" St. Croix rum, old and of magnificent flavor, and very accurately and shrewdly thought to himself, "These beach-combers never paid the duty on liquor like that; smugglers here, I'd bet my life."

He went over and stood near the kettles.

"Was this considered a very large whale?" he asked the man who was stirring the oil.

"Well, pretty fair-sized."

"What do you call pretty fair-sized?"

"Well, a whale eighty feet long is a pretty fair size."

"Was this one eighty feet long?"

"No."

"How long was he, then?"

"About sixty-five feet."

"Do you ever really get them eighty feet long?"

"Oh, yes. I've killed whales ninety feet long."

"I've seen 'em a hundred feet long," volunteered the man who was mincing the blubber.

"I've know'd 'em to be a hundred and twenty feet long in the Indian Ocean," put in another, lifting a pile of minced blubber on a four-tined fork, and tossing it into a kettle.

"Whales is ketched a hundred and fifty feet long," said a solemn-looking man, who stood leaning on the handle of his blubber-spade just outside the shed.

A little silence fell upon the group, which Mr. Ketchum was the first to break, again addressing the man at the kettle, asking him:

"How much oil will you get out of this one?"

"About eighty bar'ls, I guess."

"He must have been pretty fat."

"Well, so-so."

"How much have you obtained from one whale?"

"I've seen a hundred bar'ls took."

"I've helped to 'try out' one hundred and fifty bar'ls from one whale," said the mincer.

"Right whales, full-grown, not uncommon gives one hundred and seventy-five bar'ls, and sperms has been known to give as high as two hundred and twenty," spoke up the man with the fork.

The solemn blubber cutter once more came to the front, leaning on his spade, and said oracularly: "I've know'd 'em yield two hundred and fifty bar'ls."

The relators of solid facts inside the shed perceived that they had no chance as long as that untrammelled person with the blubber-spade had the advantage of the last call every time, and so relapsed into taciturnity.

Uncle Thatcher did not somehow like the look of Silas's Boston friend, though he could not tell why, and felt relieved when Mr. Ketchum at length took his departure for the village. But when he went home at midnight to take a little much-needed rest, he was almost convinced that he saw the

figure of the stranger near a clump of bushes a little distance from the doorway.

The next morning Mr. Ketchum came, again, with seemingly unabated interest in the process of trying out whale's blubber, and remained about the shed all day, waiting with inexhaustible patience for his friend Silas.

IX.

THE PRODIGAL'S RETURN.

That third evening, at an early hour, Uncle Thatcher said that he felt worn out and believed he would go home to bed, as the little sleep he had caught the night before had not done him any good. Thereupon Mr. Ketchum said that he, too, felt tired, and would go back to the village at once. Yet two hours afterward Mary Wallace saw, near her uncle's house, a man who, from his description, seemed to be Silas's Boston friend. Uncle Thatcher became very uneasy. A feeling like a presentiment of some impending calamity oppressed him and kept him awake.

While he lay thus, silent and watchful, by the side of his snoring spouse, he heard a slight rasping noise, as of a window being cautiously raised, in an adjoining room at the back of the house. Rising noiselessly, and passing to the apartment whence the sound proceeded, he reached it just in time to encounter a man who had that moment entered by the window and, clutching the intruder, was about to deal him a blow, when his hand was stayed by the man saying in a hoarsely suppressed, yet familiar voice:

"Look out, dad, it's me!"

Silas had come home. The unhappy father sank down upon a chair and was silent for a few moments, mastering his agitation before he could control his voice to demand:

"Why do you come in this way, like a thief in the night?"

"I didn't want to wake the family up," answered Silas, in a sulky tone.

"Where do you come from?"

"Boston."

"Why did you leave there?"

"I heard of a chance for a better job in New York, and am going down there."

"Have you been working steadily in Boston, and behaving yourself as you promised me you would?"

"Of course."

There was a ring of insincerity in the young man's voice that did not escape his father's notice.

"Did you expect to meet a friend here?"

"Why of course, dad; I always expect to meet you as a friend."

"I mean a friend of yours from Boston."

"From Boston? No. Why?"

"There is a man here looking for you; has been here two days; says he is a friend of yours."

Silas dropped into a chair and in a low voice muttered an oath.

"Sit still there until I get a light. I want to have a look at you," said Uncle Thatcher, rising.

"No, no, dad. Don't get a light, or—wait a bit. I'll fix it."

Silas quickly stripped of its blankets a spare bed that stood in the room and carefully hung them up over the window upon the shade-roller, so as to prevent any ray of light straggling through to the outside. His father waited patiently until this preparation was complete and then went to the kitchen, whence he returned in a few moments with a lighted candle.

"Silas, you've been lying to me," was his first exclamation at sight of his son.

"Well, what do you want to ask a feller so many questions for?" was the scapegrace's dogged reply.

"You have, you young scoundrel. Your face isn't that of an honest working-man, and your hands—let me see them! Yes, as I expected. Honest toil makes hands hard, and rough, and big, as mine are. Yours are not so. Now tell me the truth about what you've been doing, and what you are up to now—if you can tell the truth—or I'll break your back, you scamp."

"Well. There's no use a-makin' a fuss about it. I was at work. Not at ship-carpentering, but at tending bar. I couldn't get anything else to do. And I got into a little bit of trouble. That's all."

""That's all,' eh? What sort of trouble?"

Silas hesitated; the old man, as he well knew by experience, was almost certain to look through his most adroitly constructed lies, and he did not dare to tell the truth.

"I didn't do nothin'," said he at length, sullenly. "It was some of the rest of the boys, and I was mixed up with them, as they were friends of mine—and—I was afraid of being arrested—by mistake. That's all."

"Ah! And 'that's all,' eh? And what did your friends, 'the boys,' do?"

"I dunno."

Uncle Thatcher gripped his son by the shoulder and stood silently regarding him for a few moments, as if debating with himself whether to carry out his threat or not. Then his hand dropped, and he said:

"Something tells me not to ask you. You'll either lie to me, or you'll tell me some truth that, coming from your lips, would sicken my heart with shame that you are my son."

"I didn't do nothin', I tell you."

"No more uncalled-for falsehoods, Silas. You have come here for money, haven't you?"

"If you have a few dollars to spare, I'd like to have some. I'm broke."

"I don't know why I should waste any more money on you."

"I've always acted like a friend to you, dad. I could have made a good stake turnin' up your smugglin' business here, but I never did," replied Silas in a suggestive tone.

His father looked at him with a countenance full of disgust, and answered grimly: "Oh, it's hush-money you're after, is it?"

"Well, no; I didn't exactly mean that, dad. But I want to borrow a few dollars."

"And when you get them, you'll leave?"

"Yes."

Uncle Thatcher left the room. As soon as he was alone Silas proceeded to make a strange toilette. Drawing a bottle of some fluid from his pocket, he poured its contents sparingly upon a comb that he found on the bureau and vigorously combed his hair with it. From sandy brown his head quickly became an intense black. Then hunting up his father's razor, which he knew was kept in that room, he speedily removed his red moustache and goatee. While doing this before the mirror, he noticed his eyebrows and carefully blackened them. Last of all, he put a false black beard, which he drew from one of his pockets, upon his chin.

His father, returning with a roll of bank-notes in his hand, started with surprise at sight of Silas's transformation, and the look of disgust deepened on his face; but he made no remark upon it and Silas wasted no time in offering any explanation. Greedily the young man clutched the pile of money that was silently extended to him, saying as he did so:

"If that friend of mine from Boston turns up again, try to keep him hanging around here for a few days, if you can, and don't tell anybody that I've been here. And now I'll be off."

"Do you wish to see your mother?"

"No. It's no use. She needn't know I've been here. She'd be sure to chatter about it. Women are never to be trusted."

"How are you going?"

"The way I came."

"Through the window?"

"Yes."

"Why?"

"Well, it's the most direct road to the boat I've left lying in the cove, and I don't care about going out at the front door, which my dear friend from Boston, if he's the man I think he is, will probably be watching at this moment."

He made a movement towards the candle to extinguish it.

"Stop!" said the old man. "Before you go I have a few words to say to you. This may be the last time I shall ever see you. I am almost tempted to say that I hope it may be, for fear I may next have to see you in a felon's cell, or perhaps on the gallows, as I can only expect a dark and terrible fate for you. I have done all that lay in my power to make a decent man of you, and what are you? A hunted fugitive, disguised to evade an officer who seeks to arrest you for some crime, for such I understand now to be the mission of the man who has been here inquiring for you. Now, I never want you to come back here, or remind me of your existence until you can do so in open day, with a clear conscience and without fear of any man. I have given you there two hundred dollars, and it's all you'll ever get from me, alive or dead, if your life does not entirely change. Nor will you ever be able to squeeze any hush-money from me again. I smuggled, because I was eager to amass money to leave to my son. I will never do so any more. That source of income gone will still leave me enough for my lifetime, which will be sufficient, since I have no hope of you; but I will have none to waste on a criminal profligate—not another dollar. I'm not a poor man, it is true, but neither am I rich one, with thousands that I don't know what to do with, like the Van Deusts. All I have—"

"Like the Van Deusts?" interrupted Silas. "Have they got so much money?"

"All I have," continued the old man without noticing the interruption, "has been gained by hard work and risk, and you have squandered viciously enough of my earnings."

"Where did the Van Deusts get their money?"

"A distant relative left them a fortune of I don't know how many thousands. But that is nothing to you. Pay attention to what I am telling you. Hereafter you will have to provide for yourself. Choose your own way to do it, but I warn you that you will find an honest way the best. I did hope to see you marry Mary Wallace. She has a little money coming to her, that I managed to get saved for her out of the wreck of her father's estate, of which she knows nothing. I thought it might as well be kept in the family. But she is a good girl and I can never again have the face to urge her to take the hand of my son until he proves to me that he is worthy of a decent man's, or woman's regard. And now, there's your way. Take it, and go."

"No hard feelin's I hope, dad," growled the young man sullenly, offering his hand.

"'Hard feelings,' no. Grief and shame, yes. Go! And the best blessing I can give you is, may God save you from the gallows."

Silas shuddered, dropped the extended hand which his father had not taken, turned to the light and blew it out. Then he took down the blankets from the window, carefully and noiselessly raised the sash, jumped out into the darkness and disappeared.

Uncle Thatcher stood for a long time at the window listening, waiting, fearing; but no unusual sound reached his ears.

The next morning he found Silas's friend from Boston already at the trying-out shed when he arrived there, although it was yet only dawn; and leading him a little to one side, put to him the direct question:

"What did you wish to arrest my son for?"

Mr. Ketchum started slightly, looked sharply at his questioner, and then as if comprehending that, however the old man's knowledge of his errand was

obtained, further attempts at concealment would be useless, replied: "Burglary."

X.

THE NIGHT BEFORE——

The days grew long and hot; bees came humming in at open windows; wild roses bloomed along the roadsides; the blackberries were turning from red to their riper hue; and the smell of new-mown hay was in the air. But still, though weeks had passed since Silas's disappearance in the darkness, no one but Uncle Thatcher knew aught of his son's visit, not even his lean, hard-visaged wife, who sometimes wondered "why the boy didn't write," but to whom, on that subject, he made no reply. He seemed to grow older and more careworn, day by day, but locked his pain and grief in his own breast closely. Not only did he cease from all attempts to influence Mary in his son's behalf, but even, one day, when he overheard her aunt chiding her sharply for her repulsion of Silas's suit, he said roughly:

"Let the girl alone. She is old enough to choose for herself."

Mary could not understand the change that had come over him, but was very glad of it, from whatever cause it sprang.

Dorn had been back twice from West Indian voyages and was again away. After probably two more voyages they were to be married. It was all arranged. He had picked out the schooner he intended to buy and knew her price. He had selected the place he proposed purchasing to build their home, and already—through Lem Pawlett, who acted under Ruth's directions, at Mary's instigation—knew what it would cost him; a modest sum sufficiently within his means. And he even confessed that he had already bought a lot of furniture and stored it in New Haven, in one of Mr. Merriwether's lofts. Yet in all these negotiations and preparations, Dorn had not once been seen in the vicinity of Easthampton by anybody but his betrothed. Her years of struggle with Uncle and Aunt Thatcher on the subject of Silas had inspired her with an overpowering dread of what they might say or do, if they knew that she actually contemplated the definitely conclusive step of marrying somebody else than their boy; and yielding to

her earnest petitions, Dorn had consented to keep himself carefully out of sight, until such time as he was ready to come for her with a pair of fleet horses and carry her off to Sag Harbor, to make her his wife.

"But I'm sure I don't know what to make of Uncle Thatcher," said Mary to her friend Ruth, in the course of one of their little confidential evening chats in the woods, "for he is kinder to me than he ever was before, and never once speaks to me about Silas. Sometimes I even think he might not make much fuss about it if I were to marry Dorn right under his nose."

"Don't you trust him for that, Mary. There's no telling how these men will act, especially the old ones. As a rule, the quieter a man is the slyer he is, and the more he means mischief. Oh, I tell you, I've studied Lem, and—But I haven't told you what Lem is going to do. You know, I suppose, that poor Mrs. Richards has heard at last from her brother in Philadelphia, and he has sent for her to come to him and bring her children, and she's going away."

"Yes. I heard Uncle Thatcher talking about it to-day."

"Well, that will leave the Van Deust's lower farm without a tenant; though it hasn't had one, as you may say, since Richards ran away; but then the Van Deusts let her live along on it and do the best she could; and I guess that must have been Jacob's doings that she was allowed to, for I believe that old curmudgeon Peter would have turned her out when she couldn't pay the rent, if he'd had his own way about it; and I never did like his looks, anyway, for I never heard of his having a good word or a pleasant face for any woman yet; and I think when a man always looks savage when he sees a woman he—"

"Oh, Ruth! Do go a little slower! You are the wildest talker. And you do get a person so mixed up."

"And I get mixed myself sometimes, too. Where was I? Oh, I was saying that Mrs. Richards was going away, and the Van Deust's lower farm would be to let. Well, Lem is going up to the Van Deust's to-morrow morning to get the lease of it, if he can, and Squire Bodley is going to be his security; and as soon as he gets it, you must try to be ready, dear, so that we can all get married at the same time, for Lem is in an awful hurry—and maybe I don't care about waiting a great while longer myself, either."

"And neither do we," exclaimed a cheery, hearty voice at her elbow, as Dorn stepped forward and put his arm around Mary's waist.

"Oh, you, Dorn Hackett!" cried Ruth, with a little scream. "How you do frighten a person!"

"So you've been eaves-dropping, have you, sir?" said Mary, looking up archly at her lover.

"No. I was just standing here waiting, in hope of seeing you, and you girls were so busy talking that you walked right up to me."

"And how do you come to be at my elbow when I thought you were far away at sea?"

"We sailed three days ahead of time, and made a much quicker trip than usual, so that I am over a week ahead of the time Mr. Merriwether looked for me. As I was in port, of course I embraced the first opportunity, when I could leave the schooner in charge of the mate, and came to see my Mary."

"How good you are, Dorn," whispered the happy girl, pressing his hands, and with the love-light in her eyes.

"And how much I love you!" he whispered in reply.

"I guess I'd better be getting along home," suggested Ruth, stopping in the path, in readiness to turn back.

"Don't let me drive you away," replied Dorn, gallantly. "It has been a long time since we have met, and I have not yet even asked how you are."

"Oh, you see I'm quite well, and you haven't really appeared to me to be gone away at all, so far as I was concerned, for I've heard so much about you all the time."

"Now, Ruth, are you going to tell tales?" protested Mary.

"Oh, no. I'm no chatterer. Not the least bit. But I know when I'm in the road, and I know it now. Two are company and three are not. And I see signs of its getting too warm here for me. So good night, good folks. I'll leave you to make your arrangements."

"So as not to keep you waiting a great while," retorted Dorn, mischievously.

The merry little maiden blushed and laughed as she turned and ran away down the path.

"What a lucky chance that I have found you, darling!" said the young man low and tenderly, drawing his beloved closely to his side and walking slowly with her. "And it was only a chance; for of course you didn't expect me. But if I had not met you here I think I should have stormed Castle Thatcher to get sight of you. I do not believe I could have waited until another evening."

"I wonder if you were so impatient all the three long years you were away?"

"No, of course I was not, for I knew just how long a time I had to look forward to of separation from you, and made my mind up to it. A man should always be able to make his mind up to bear philosophically what he knows is inevitable. It is only when he is disappointed in what he has every reason to expect, that he has any right to growl. I've always had a great deal of sympathy with the old prophet who got so mad about the worm. He had made up his mind, no doubt, to stand like a philosopher the heat of the sun when he hadn't any shelter, though he did feel the heat mighty bad. But when he got a good shade over him, and was comfortable, it was enough to make a saint mad to have a malicious grub come along and cut down his vine."

"Yes, dear; I think you've got the story fixed up your own way, and are, maybe, not altogether sound upon its moral. But no matter now. When do you go away again?"

"We will not sail for a week or ten days, probably, so that I'll have a chance to come over and see you again, once at least, before we go. The owner wants me to wait for the completion of a cargo, and they can't be got together before about the time he expected me back, which, as I have already told you, I have forestalled by a week."

"What is the cargo that you speak of as 'they'?"

"Mules. And I hate 'em," he replied savagely.

"You hate them? Why?"

"Well, of all the satanic brutes, the mule is the worst. He has the cunning and the malice of an imp. Every minute he is awake he is either planning or executing some mischief, and he's always awake. My crew will need a barrel of arnica and an acre of sticking-plaster to cure them of the bites and kicks they'll get from those mules before they are landed in the West Indies. And I suppose we'll have to wear out a wagon-load of hoop-poles on the brutes to keep them from rolling the schooner upside down."

"Why, Dorn! How could they do that?"

"Easily enough. When we are loading them we have to run lines from the mast-heads to the wharf, to keep them from rolling her over there. When they are shipped, they have to be tied, head to head, along a beam running fore and aft, as close as they can well stand. By a concerted arrangement among themselves, those on one side will sway their bodies as far back as they can, and those on the opposite will sway forward. Then they will reverse the motion; and so they'll go alternately—singing with their sweet voices while they are at it—backward and forward, giving their motion to the vessel, and rolling her more and more every moment; and they would very soon have her on her beam ends if we didn't wade in among them with hoop-poles to divert them from their fun. And they are liable to play that game any minute, day or night. Oh, I've taken out one load of mules and know what to expect of them."

"Dorn, 'a man should always be able to make his mind up to bear philosophically what he knows is inevitable.'"

"Come, I give up. Let's don't talk about mules any more, little Mollie. I get mad when I think about them—even if they do pay well. But I have a pleasanter topic. Something to tell you."

"And that is?"

"That immediately upon my next return home, which will be in about six weeks, or seven, at the farthest, we will be married."

When at length Mary's lover left her that evening and she returned home, she was surprised to find Aunt Thatcher sitting on the front door step.

"Mary Wallace, I want to know where you've been all this night?" demanded the shrewish woman in a shrill key.

"I—met Ruth Lenox—and—we talked and walked," answered Mary hesitatingly, and with very natural evasion of the searching inquiry.

"And you've got the face to stand there and tell me that? Well, I expected it of you, and made an errand over to Mrs. Lenox's myself, and Ruth was at home, where a decent young girl should be at night, with Lem Pawlett sitting beside her on the porch. So I've caught you in one story, have I? Now I ask you again where you've been, and I want to hear what you've got to say for yourself. Not that I expect to believe a word you say, but I want to hear what kind of a story a young woman can make up for herself after being out all night, nobody knows where, or who with."

"Oh, aunt! I have not been out all night. It is only nine o'clock."

"It's ten minutes past nine," retorted the shrew, craning her long neck around over her shoulder to see the face of the tall clock that stood against the wall near the bureau, upon which a solitary tallow candle gave a smoky yellow light.

"Where have you been? I want to know," she demanded again. "Gallivanting around with some young man, I suppose. I shouldn't wonder if that Dorn Hackett that you were so much took up with three years ago, had come snooping around again. Has he? Eh? Why don't you answer me?"

"I—I—have nothing to say, aunt."

"Oho! you've 'nothing to say,'" sneered Aunt Thatcher, mimicking the girl. "Well, I shouldn't think you would have, after such goings on. I believe in my soul you've been with that fellow to-night. Can you look me in the face and tell me you haven't?"

No, Mary could not look her in the face, or anywhere else, and lie about it, for she was not accustomed to falsehood, so she held her peace.

"Yes, I thought so," continued the termagent, with a snarl of malicious triumph. "I thought so. And I know what will come of it. Oh, yes. But you needn't think to stay in my house when everybody comes to know of your

disgrace. You can trapse after your lover, who'll be gone far enough by that time, no doubt. And what would Silas think of you if he knew of your conduct? Do you suppose my boy would ever look at a girl that get's herself talked about as you will? You shameless—"

"Shut up! There's been enough of this jaw and too much," suddenly interrupted Uncle Thatcher's rough voice, as he himself appeared in the door, looking in his night-dress of close-fitting shirt and drawers even bonier, longer, and more angular than ordinarily; like the silhouette of a skeleton almost.

"I don't care! I will speak!" snapped his vixenish wife, turning to face him.

"And ef you do I'll choke you."

"You would? You'd raise your hand to the mother of Silas?"

"Yes, and wring your blasted neck if you don't mind me when I tell you to shut up."

Whether Uncle Thatcher had ever found force necessary to maintain his authority in the household or not, was best known to him and his wife; but at all events she did not seem to regard his threat as an idle one, for with a snort of baffled rage she sprang up and rushed into the house, without uttering another word.

Mary was standing with her back toward the door, with her hands covering her face, and crying. Uncle Thatcher laid one of his big hands on her shoulder and patting it gently, as he would have soothed a horse, said to her:

"Come, little girl. Don't cry any more. I ain't a going to have you plagued out of your life about that cuss. Go to bed now. And just tell me if she tries to worry you any more."

He disappeared inside the door, and Mary, wiping her eyes, followed him, passing to her little room, but sleep was slow in coming to her hot eyes and her last waking thought was:

"Who did uncle mean by 'that cuss'? Was it Dorn or Silas?"

But at length the weary lids closed and in happy dreamland, far away from care, and fear, and strife, she wandered with her lover.

The night wore slowly on. Incoming billows of the rising tide moaned sullenly upon the sandy beach and sent a rustling hiss through the shivering reeds and rushes in marshy inlets; whippoorwills piped from the cover of the leafy wood and drowsy cocks, awaking at the midnight hour, called to each other from their barn-yard roosts. All other sounds of motion and of life were hushed, save that an owl darted in sudden fright from one of the Van Deust elms, at sight of a pale-faced man who sprang out of a back window of the old homestead and ran down the lane, looking back over his shoulder and wiping blood from his hands, as he ran.

XI.

WHAT LEM PAWLETT DISCOVERED.

It was on the morning succeeding that night, that Lem Pawlett and Squire Bodley made the discovery of the murder of Jacob Van Deust, as has already been described. As the reader will remember, the neighbors assembled about the corpse of the murdered man, believed that they had grounds for suspecting Peter Van Deust of the assassination of his brother, and even discussed the advisability of his arrest. He, unconscious of the ugly rumors afloat about him, and regardless of the dark looks of those by whom he was surrounded, lay upon his face in his room, weeping as one without hope for the lifelong companion so cruelly reft from his side. He had never known, until death parted them, how dear to him was his gentle-hearted brother and how very lonely the world would be without him. And every unkind passionate word he had uttered, and every selfish thought to which the evil promptings of avarice had given birth in his heart, since that unlucky fortune came them, seemed now to rise up before him like an accusing ghost, so that the old man, burying his face in his hands, sobbed aloud:

"Oh, Jacob, Jacob! I am so sorry for it all."

Perhaps the spirit freed from that weak lump of clay in the crimson pool, might have heard the cry and, knowing the true meaning and the penitence

of the sorrowing heart, have well forgiven; but a neighbor, leaning against the door-post and peering curiously in at the grief-stricken old man, turned quickly to his comrade without the threshold and exclaimed in a low excited whisper:

"Gosh! Joe. He's just as good as owned up that he did it, and says he's 'sorry for it' now, 'cause he's scared of being found out."

And then by the time this had been repeated to a half-dozen—as it was in little more than as many minutes—those who heard the story last, learned that Peter had just made to somebody a full confession of having murdered his brother. But in the very height of the excitement to which this gave rise, Lem Pawlett, who was still prying about the room, with something of an instinctive detective genius guiding his movements, made an important discovery.

Drawing aside the figured chintz curtains that hung close over the back window of the dead man's room, he noticed that a mud-wasp's nest of clay had fallen to the sill, from the place where the insect had stuck it in the angle of the sash and frame of the window, two or three feet above. Knowing how firmly the ingenious little builders of those houses are accustomed to place them, he recognized that some unusual violence must have been employed to break it loose. That it had not been intentionally knocked down was probable, else the clay would not have been left littering the window sill. That the mischief had been freshly done, was manifest. He tried the sash, and found that it could easily be lifted. Its only fastening had been a nail, thrust into a hole in the frame above the sash; but rust had corroded the nail to merely a thin rotten wire. The head of it came off in his fingers, when he felt it, and he observed that it had been broken, with what seemed a fresh fracture, just where it entered the frame. It must, he thought, have been broken by some one lifting the sash from without, as a person opening the window from the inside would have been likely to pull it out first, as a matter of convenience. He raised the sash fully, and uttered an exclamation of surprise, the first sound that had called anybody's attention to his investigations.

There, plain to be seen in the soft black wood of the old sill, were two deep dents that appeared to have been made by some flat, square-edged metal

instrument, an inch wide. The one beneath that side of the sash upon which the nail was broken off, was a little the deepest. Upon the bottom of the sash, on the outer side, were two deep impressions corresponding with the dents in the sill, and seemingly made by the same instrument, which, as Lem judged, was some sort of a stout chisel, used as a lever. All the marks were fresh.

The loose earth of the little garden just beneath the window, where the drip of the eaves had kept it soft and damp, showed the treading there of feet shod in high-heeled and square-toed shoes, or boots, such as might have been made for city wear, and not at all like those worn in the country. Following those tracks, they led Lem, and the crowd now at his elbow, to a point where the weight of a person crossing the rickety old "worm" fence had broken a rotten rail; and, near by, one of the high-heeled shoes had trodden down the stem of a lily that was in its path. The fracture of the rail was fresh, and the lily, broken from its stem and lying on the humid earth, was not yet withered. But the high heel had crushed one of its snowy petals.

In the lane, outside the fence, the tracks were lost.

The importance of these discoveries was at once apparent, even to the dullest of comprehension; and there was no longer a question in the minds of any but that the murder had been committed by some burglar who had entered through the window, and that old Peter was innocent. The reflection that there was in the community some one capable of such an awful deed, or that somebody from the wicked world outside had come among them to strike so terrible a blow, sent a thrill of mingled horror and fear through all present.

"Gracious alive!" exclaimed a very old man, whose hollow cheeks, sunken and bleary eyes, white hair, and tottering limbs suggested that the least possible thing of which he could be robbed was his remnant of life, "we are none of us safe in our beds with such goings on!"

"No. But the man who did this must be found and punished," responded Lem Pawlett, excitedly.

"Sake's a mercy! Who can ever find out such things? The man that did it isn't going to tell on hisself!"

"God's finger will point him out," said Squire Bodley, solemnly.

"Well, maybe so. But—I dunno," murmured the old man, whose faith in Providence seemed somewhat shaky.

Squire Bodley picked out a jury, and announced to all assembled that he would hold the inquest at his office in the village one week from that date, at six o'clock in the afternoon, at which time he hoped any person who might meanwhile become cognizant of any new facts that might have even the smallest possible bearing upon the subject to be investigated, would come before him and make them known. And—as it is always the theory among country people that a crime among them must have been perpetrated by some one from the nearest city—he exhorted all to use their utmost diligence to learn whether any suspicious strangers had lately been seen in the neighborhood.

That afternoon he despatched a message to New York, requesting the assistance of an experienced professional detective, to aid in dissipating the mystery that seemed to overhang the murder of poor old Jacob Van Deust, who, on the second day after his death, was laid away among the dust of many other Van Deusts in the village graveyard.

XII. THE INQUEST.

During the week preceding the inquest, the Van Deust murder was the constant theme of conversation through all the country-side; and when the important day arrived upon which Squire Bodley proposed to begin the official investigation into the affair, people came thronging into Easthampton from all directions; on horseback, afoot, in old-fashioned carryalls, and upon rough farm-wagons; as if every homestead within ten or fifteen miles around had been emptied for the occasion. It was not mere curiosity by which they were actuated, but an earnest and widely-spread desire to aid in the discovery and procure the punishment of the assassin; for in those days there was no community on Long Island, as there has since appeared to be, in which murder would be popularly winked at and

condoned, and its perpetrators, though known, permitted to go unscathed of justice.

Squire Bodley's office was a small, one-story building, without any other partitions than a railing that shut in about one-third of it, where his table customarily stood. The sign "Lumber" over its one door, indicated that the worthy magistrate did not confine his energies to his judicial duties. There were three windows—one opposite the door and one in each end—of such a good convenient height from the ground that a man standing outside could rest his elbows on either of the sills, and witness comfortably all that transpired within. Long before the hour for the commencement of the proceedings, the space outside the railing was densely packed; the lower halves of the windows were filled with elbows and heads; and as many people as could find standing room within sight or hearing, upon wagons drawn up near the windows and door, were already perched and waiting, while many late comers wandered uneasily about, watching for some one in the front ranks to give out through sheer exhaustion, and resign his advantageous place.

As a preliminary proceeding, the Squire had his sashes removed entirely from their frames, and carried away to a place of safety; but even yet the little room was oppressively hot and close. Then candles had to be brought and lighted, for although it was midsummer, when the days are long, this evening was cloudy, and but little of the dull light could penetrate through the crowded windows. So it was that it was almost seven o'clock when the Squire finally got himself seated at his table, with three candles, pen, ink and paper before him, that he might write down the evidence, and called the first witness.

That first witness was Lemuel Pawlett, who was somewhat abashed by his position, and had a little difficulty, at first, in understanding that he was required to give a circumstantial account of the finding of the body of the murdered man, and what followed thereupon.

"Why, you know all about it, Squire, as well as I do. You were with me. What's the use of telling you?"

"But I have to write down your statement, as your evidence, Lem, not simply for my own knowledge, but for others, to promote the ends of

justice. Go ahead and tell your story as if you were telling it to these people here, and never mind what I know about it."

"All right, Squire;" and Lem, turning his back upon the Squire, began reciting the affair to the audience. "Him and I went up to Van Deust's a week ago to-day—"

"Who do you mean by 'him?' Who accompanied you?"

"Why, you! You yourself, Squire, you know you did!"

But at length the little difficulty of starting him aright was overcome, and then Lem went ahead, telling his story in a plain, straightforward way, and the Squire duly wrote it all down.

Two neighbors corroborated Lem's narration of the finding of the traces of the burglarious entry and the flight of the assassin.

Deacon Harkins volunteered testimony as to having overheard quarrels and interchange of threats of violence between the Van Deust brothers more than once. At this old Peter, who sat near the Squire, became greatly excited. Springing to his feet, trembling with emotion, and with his voice pitched to a high, unnatural key, he cried:

"Yes, it is true. I did threaten my brother—God forgive me!—more than once. I was mean enough, cruel enough, wicked enough to say harsh, spiteful things to wound that gentle soul; but I never meant him harm. No. The One above, who reads all hearts, knows well that I would rather my right hand withered, rather put it into the fire and burn it off than raise it against Jacob's life. We wrangled sometimes, as old men will—no, *he* didn't, the fault was all mine. And oh, to think that he is gone, without my being able to ask him to forgive me!"

His voice broke, and he dropped exhausted upon a chair, letting his face fall forward upon his arms, on the end of the Squire's table, where he wept bitterly.

"Arthur Wiltsey!" called the Squire.

A stout, plainly dressed, and honest looking countryman took the stand, and, having been sworn, testified:

"Last Thursday afternoon—"

"The day succeeding the discovery of the murder of Jacob Van Deust?" interrupted Squire Bodley.

"Yes, sir. The day after the murder. I was passing through the neck of woods on the lower end of my place—"

"How far is your place from the Van Deusts'?" asked the Squire.

"Why, you know, Squire, as well as I do! I bought the place off you."

"Never mind about what I know. Tell us what you know. How far is your place from the Van Deusts'?"

"About a mile and a half."

"Very well. About a mile and a half. Go on."

"When near a path that makes a short cut to the Babylon road, I found these things. They were lying among some huckleberry bushes, and the white bag was the first thing that caught my eye. Afterwards I saw the other."

As he spoke he drew from his pocket and deposited upon the Squire's table, two objects: an old worn-out sheepskin wallet, and an empty canvas bag about nine inches long by three in width, and tied around with a bit of fishing line.

"The bit of string," continued the witness, "was a few feet away from the other things; but I judged it might belong to them, and fetched it along."

"Have you ever seen these things before, Mr. Van Deust?" asked Squire Bodley.

The old man who, buried in his freshly-awakened grief and remorse, had paid no attention to what was going on until he was called by name, looked up dazedly. The Squire pushed before him the objects found by the witness. He looked at them for a few moments, silently and without moving, as if fascinated by them; then slowly reached out his trembling hands, and took them up.

"Yes," he said, with an effort, after having carefully examined them, "I recognize them. They belonged to my brother Jacob—his wallet and coin bag. And I know that the wallet, at least, was in his possession the day before he was found dead."

Absolute stillness reigned in the dense crowd from the commencement of Farmer Wiltsey's testimony until the conclusion of Peter Van Deust's identification of his brother's property; and then such a buzz of exclamations, and remarks, and conjectures broke out that the Squire was compelled to rap vigorously on his table, and call "Order!" and "Silence!" more than once before he could proceed with the business. But there was little more to be offered.

One man thought he had heard a horse galloping down the Babylon road about one o'clock on the morning of the discovery of the murder, but he did not know if anybody was on the horse, and was not even positive that it was a horse he heard; it might have been a cow. So his evidence went for nothing.

Peter Van Deust testified, very briefly, that the last time he saw his brother alive was about half-past nine o'clock on the night of his death. An old gentleman, a friend from New York—their lawyer in fact—had visited them in the afternoon on business, and had gone away a little while after supper. Then they sat up somewhat later than usual, talking over what they would do with their lower farm, which would be left without a tenant when the Richards family moved away. He had looked at the clock when he went to bed, and knew it was half-past nine. Jacob was then in his usual health and spirits, except that he complained a little of a slight cough, and it was the witness's impression that his brother, after going to bed, had called old Betsy to prepare him something to alleviate that. But he was not very sure about that, as he was almost asleep at the time, and had not thought to speak to Betsy about it since.

Squire Bodley hesitated as to whether he should press any inquiry about the friend from New York, and cast an inquiring look at a stranger who sat near him. But the stranger, who seemed to understand perfectly what he would have asked, made a slight negative sign. Still the Squire was not satisfied and, leaning over to him, whispered:

"That New Yorker must have been there nearer the time of the murder than anybody else outside the family; most likely knew the old man had money in the house, and just where it was kept; may have laid around until all was quiet, and then gone back to—"

"It's quite possible he did," interrupted the stranger, in a tone audible only to the Squire, "and I'm not losing sight of it; but it won't do to bring out too much on the inquest. He might get wind of the suspicion against him and skip. Never show your hand if you want to win."

"All right," assented the Squire, doubtfully, "if you say so."

"Oh, yes, it's all right. Keep it shady, and I promise you the man from New York will be turned up in good time."

Peter Van Deust's evidence was closed.

Black Betsy was the last witness. She said that on the night of the murder, at about half-past ten o'clock, Jacob called her up to prepare him something for his cough. She was lying down at the time, but not asleep, as rheumatism mostly troubled her a good deal in the early part of the night, and went to him as soon as he called. Having made for him a cough mixture of honey, vinegar, and rum, she gave it to him; he bade her good-night, and she went back to bed. Being asked how she knew it was half-past ten when he called her, she said that she knew it by the line of the full moonshine on her floor, and was positive that she could not have been more than ten minutes wrong at farthest. After returning to her bed the rheumatism kept her awake about an hour, she supposed, or maybe an hour and a half. Then she dropped asleep, and did not awake until called up by Squire Bodley and Mr. Pawlett. Her hearing, she affirmed, was very good, and she was sure that from the time she gave Jacob his medicine until she went to sleep there were no unusual noises about the house.

XIII.

A STAB IN THE DARK.

Squire Bodley adjourned the inquest for another week, in the hope that there might be discovered in the interim some further evidence, and his

sweltering office was quickly cleared of jury, witnesses, and auditors, all save one man, the stranger to whom he had whispered while Peter Van Deust was on the stand. That person, a ruddy, smooth-faced man of medium height, and probably forty or forty-five years of age, with nothing distinctive about his appearance except, perhaps, a pair of very keen gray eyes, was the detective who had been sent from New York to apply his sagacity to ferreting out, if possible, the robber and assassin of Jacob Van Deust.

"Well, Mr. Turner," said the Squire, lighting his one remaining candle by the flickering flame of the last surviving of the three that had melted and guttered down to the sockets of the candlesticks, "I guess this will be light enough for us to see to talk a little by. What do you think of the case?"

"It isn't so blind as some I've had hold of, and cleared up, too; but it is dark enough, nevertheless. All I can see that we may say we think we know is, that the old man was killed, probably after 11:30 or 12 o'clock at night, by a burglar who got into his window by means of a jimmy and who, after killing him and robbing the premises, escaped by the Babylon road, most likely."

"I neglected to bring it out when he was on the stand, but Peter has told me that some other articles besides the money are missing; a set of garnet jewellery belonging to his mother that Jacob always kept in his room; an old silver watch and a heavy square onyx seal, with a foul anchor cut on one side of it. None of them of any great value."

"It's just as well you didn't mention them; just as well or better. Such things, if looked for quietly, and nothing said about them, are sometimes valuable clues. And it is well you didn't ask about the lawyer from New York. All these are things we will have to look into quietly. There's nothing like doing things quietly. The great trouble about inquests, generally is, that they bring out the very things which put criminals on their guard, and so make the detective's work all the harder—sometimes even baffle him altogether."

"Squire, are you busy?" demanded a sharp nasal voice.

The two men looking up, and shading the candlelight from their eyes with their hands, saw standing in the door a tall, thin, scraggy-looking woman,

wearing a sun-bonnet.

"No, not particularly. Walk in, Mrs. Thatcher, walk in. What can I do for you?" replied the Squire.

The woman came forward with shuffling, hesitating steps; paused, made a furtive attempt to poke up out of sight the wisp of unkempt sandy hair, dangling in its accustomed place on the back of her neck; and finally answered, with a doubtful look at the stranger:

"Well, I had something to tell you, private-like, about that murder."

"Indeed! Well, you can speak right out before this gentleman. He is helping me to inquire into it. But why, if you have anything to tell, did you not come up to the inquest?"

"I didn't care to speak before so many folks; and I thought it would be better to tell you quietly."

"And what is it you have to tell me?"

"I expect, Squire, I know who killed Jake Van Deust."

"The deuce you do!" exclaimed the detective, bouncing in his seat.

"Yes, sir; I was told what the Squire said a week ago to-day about suspicious strangers in the neighborhood, and I thought to myself, I know of one, and I ought to tell him."

"Well?"

"Well, it's a young man who used to live in this neighborhood, but who disappeared—ran away, I guess, for some reason best known to himself—about three years ago or a little better. He's been back lately, hiding around in the woods and meeting a foolish girl—"

"Aha!" interrupted the detective, with a chuckle, and rubbing his hands; "if there's a girl in the case, we'll have him, sure."

"Yes, sir, a foolish girl, who don't know the sin and the shame of what she's a-doing. And as far as I can find out, he has kept himself out of sight of everybody but her. But he was about the neighborhood late on the night that

Jake Van Deust was killed—that I'm sure of; and met the girl that night—I know he did."

"And who is the girl?"

"My niece, Mary Wallace, sir. The more's the pity!"

"And the young man?"

"His name is Dorman Hackett."

Squire Bodley gave a gasp of surprise. He remembered Dorn Hackett as a strong, handsome orphan lad who had grown up almost to manhood in the neighborhood; a young fellow with a fine, frank, courageous face, and of whom he had never before heard an evil word; but he remembered, too, now that he came to think of it, that he had not seen the young fellow for a long time; and sighed to think that even the best boys sometimes grow up to be very wicked men when exposed to the temptations of vicious life in the great cities, and it was possible that Dorn Hackett, like many others, "had gone to the bad."

"You say that this young man has been away for three years?" asked the detective.

"He hasn't dared to let anybody here, except that girl, see his face for that long."

"And of course you know nothing of where he has been, and what he has been doing all that time?"

"No; how should I? Loafing around New York, I dare say. Such characters mostly goes there."

"Around New York, eh? If he's a New York thief, I'll be sure to know him. If we only knew what he's been doing."

"What would a fellow be likely to be doing who has no trade, and no money, and no home, and no respectable friends, and nobody to see to him?" snapped Aunt Thatcher.

"He might have told your niece."

"If he did, she wouldn't be likely to tell me. It's as much as I could do to find out that he was sneaking around here in the woods, late on the night Jake Van Deust was killed."

"She met him that night, did she?"

"Yes, she did."

"What kind of a looking person in this Hackett?"

"A big, ugly, red-headed fellow, with a face like a bull-dog."

Squire Bodley smiled gently to himself, thinking how such a description would be apt to assist the detective. He had penetration enough to discern that there was some animus in the woman's mind stronger than a mere desire to aid the ends of justice; but said nothing about it at the time, feeling a little timid about seeming to interfere in the work of the professional detective.

When Mr. Turner and the squire had both thanked Mrs. Thatcher for her "valuable information," she took her departure, and the two men were left alone to discuss the course to be pursued. Squire Bodley had a very good opinion of Mary Wallace; and if he had had his own way would have directly questioned her about her lover; but against that course the detective strenuously protested. Direct ways are never the chosen methods of the professional fishers of men.

"By no means," said he. "Let the girl know that her lover is suspected and she will be sure to get word to him somehow and he'll be off. Not a word about it to anybody. Leave me to work it out my own way, and my name isn't Richard Turner if I don't soon lay my hand on the shoulder of Dorman Hackett."

XIV.

A JOLLY, JOLLY SHIPMATE.

"The Whaler's Haven" was in those days a place of no small pretensions and of no mean fame among the sailormen of New London, which was then quite an important shipping town, especially for the whaling interest.

Railroad tracks now cover the ground it then occupied, and the cutting away of the bluff in that vicinity, to give place for some heavy industries that require to be near the water and the iron road, has completely changed the appearance of all the surroundings, even, of that once favorite resort of the marine element of the population of the town, so that not one trace of it remains, save in memory. But it is not of the present we have to treat, or the many changes—some of them very sad ones—that have been wrought in the maritime interests of our coast. Our story dates back to a time when a big American flag floated above a long and wide two-story frame building where those railroad tracks now lie; a building that was further adorned, as to its peak, by a carved and painted wooden statue of the goddess of liberty, that seemed to have been the figurehead of some vessel; and as to its front, by a very widely-spread and gayly-gilded American eagle, holding in its beak, over the door, a huge and brilliantly red scroll, upon the flaming convolutions of which, in brightest blue, one might read the legend "The Whaler's Haven."

By day, there was little, except its size, to distinguish the Haven, to the eye of the casual observer, from several other establishments of kindred character in the vicinity; but at night, in the figurative language of Jonathan Schoolcraft, its proprietor, "the eagle screamed." Then, until hours that were at once late and early—late for revel and early for labor—the fiddle squeaked out jigs and reels; the thumps and shuffles of dancing feet made the walls vibrate and the windows jingle; glasses clinked merrily; noisy laughter, cheers, and sometimes—but not often—sounds of quarrel, broke upon the night. It was Schoolcraft's boast "that a sailor never was robbed in this house;" and, truth to tell, he made the claim good, farther than most men do who keep such establishments and make like affirmations. Over the little bar, near the front door was a sign in letters so prominent that they

might have been regarded as a sort of painted shout, commanding patrons of the house: "Have your fun in a decent way;" and Jonathan was never weary of repeating that counsel to his guests. He would not let a sailor in his house get too drunk—that is, too drunk to be able to find his money, when the liquor was to be paid for—and he was sternly opposed to fights in the Haven; for, as he said, "they break the peace, and break heads, and sometimes break glasses, which is worst of all."

One sultry evening in July, when it was too hot to dance and almost too warm to drink rum, a cloud of dullness seemed to settle down upon the Whaler's Haven. Jonathan himself went out for a walk, to get cool; the barkeeper languidly leaned over the bar and yawned; only four or five sailors—boarders in the Haven when on shore—lounged between the door and the bar, "swapping yarns" concerning their seagoing experiences, and all feeling so depressed and spiritless, through the heat, that they almost stuck to the truth in their narrations; and two or three of them were talking of going to bed, when a stranger, who was evidently not a sailor, entered, called for a drink, and invited all present to join him. A stranger who was not a sailor was always the object of a little suspicion in the Haven; still none present cared about offending one who introduced himself so courteously, and the waiting sailors took their rum just as naturally as if liking, and not simply complaisance, gave it its relish. Then one of them returned the stranger's treat and soon another; and another, so that in a little while the heat was forgotten, tongues began to wag freely, the yarns became much more spirited, and the impression gained ground that the stranger was a right good fellow.

And so it was that, without his ever being able to tell exactly how it came about, Billy Prangle, a stout old sailor, found himself in almost confidential conversation with the pleasant stranger—a smooth-shaven, gray-eyed, ruddy man of forty or forty-five years—upon the subject of his friend and ex-shipmate, Dorn Hackett.

"A nobler, braver lad never signed articles," said he, "nor a better sailorman. We messed together for three years; and take him by and large, alow and aloft, I make bold to say that of the sixteen men in the fo'cas'le,—and all good men, too, mind you—he was the best."

"I'm delighted to hear you speak so highly of him," replied the stranger, with apparent heartiness, "How long is it since you sailed with him?"

"Only a little better than four months ago. We came off the cruise together, fishing in the North Pacific."

"Fishing? I thought you said he was in a whaling vessel?"

"Well, so I did, my hearty. We calls whales fishes. When we speak of taking a whale we always says taking a fish."

"Ah, excuse me. I didn't understand. And where is your friend now?"

At this moment one of the old sailors called him aside and said to him in an undertone:

"Mind your eye, Billy. I've been a listenin' to you and that lubber that doesn't know a whale's a fish, and it looks squally to me. As I make him out, he's been a leadin' you on to talk about Dorn Hackett, and maybe it ain't for Dorn's good he means it."

"If I thought he meant the boy any harm he'd get his nose rove foul in the shake of a fluke."

"Well, just keep your weather eye skinned on him."

"But, shipmate, it's as good as saying that Dorn may be in some sort of a scrape to be afraid to talk about him."

"And so he may; and small blame to him, either, bein' a likely young fellow as he is. Shore is a mighty dangersome place for a good-looking young fellow like him."

"Right you are, shipmate," assented Billy, solemnly shaking hands before returning to his conversation with the stranger. From that time he did watch carefully; and having a little natural cunning of his own, managed to evade the numerous and artfully-put inquiries with which he was plied, and still to draw the stranger on, with hope of information, until he satisfied himself that his comrade's warning was not uncalled for.

While this was going on the drinks were call on freely, and the stranger unconsciously was falling a victim to the fiery potency of the rum—a beverage to which he was not accustomed. He had tried to evade anything more than a mere show of drinking it, but believed that this was looked upon with such suspicion by all about him, that it was better for him to drink and trust to the hardness of his head to carry the liquor off safely. Little he knew how much he lacked of being a match for that tough old tar, Billy Prangle, in the consumption of that seductive but treacherous fluid. Gradually he lost his customary caution; and finding himself baffled in all his attempts to "pump" the old sailor, conceived that it would be a good idea to offer Billy a hundred dollars if he would conduct him to and point out Dorn Hackett. "That sum," he thought to himself, "would tempt a man like him to do almost anything to gain it." So he made the proffer. Billy heard the proposition gravely, and even feigned to view it favorably; but manifested a great deal of curiosity as to why his ex-shipmate was in such demand.

The stranger felt that he had gone too far for any reticence to be of service, now, and that perhaps a confidence might make him more secure of this valuable ally; so he replied: "I'll tell you; but mind you're not to say a word about it to any living soul until we have captured him."

"Would I be likely to throw away a chance to make a hundred dollars?" exclaimed Billy.

That answer, critically considered, could hardly have been deemed a promise; but the stranger took it for one, and continued in a confidential tone:

"He's wanted for murder and robbery."

"Murder and robbery! Dorn Hackett?"

"Yes, the murder and robbery of an old man near Easthampton, Long Island, where he has been going to see his sweetheart, a girl named Mary Wallace."

"And you tell me that Dorn Hackett is suspected of a thing like that?"

"Yes, indeed, he is. He was in the neighborhood on the night of the murder, and everything points to him; and I bet my head—"

"That you are a lying, landlubberly—" broke out Billy Prangle, in a torrent of quite unreportable expletives, the unregenerate lingo of the fo'cas'le; and before the stranger recovered from his astonishment, the indignant tar had commenced to make good that threat with reference to his nose.

Mr. Turner—for the stranger, now rolling on the floor with Billy, was no other than that experienced professional detective—was a sturdy fellow, well able, ordinarily, to take care of himself, and made as good a fight as he could; but even had he been entirely sober he would hardly have been able to cope with this sinewy son of the sea who smote him so suddenly. While they struggled on the floor, Billy's friends looked on with placid interest; interfering not, nor questioning, and seemingly cheerfully confident of the result. The barkeeper—Schoolcraft being away—seemed to enjoy the excitement, and leaned over the bar to get a better view, while he shouted encouragingly: "Go in, Billy! Wade in, old man!"

And Billy followed the advice so well that it was not long until the detective cried "enough," and was allowed to get up; when Billy led him to the door and dismissed him with a parting kick.

Self-reproachfully, and much humbled in spirit by his defeat, Richard Turner left the Haven. But it was not in his nature to give up a chase for one defeat. If he had not genius, he at least had that which is sometimes almost as good—persistence. He did not even waste time in thinking about the whipping and the kicking he had received, but he did reflect that it was something singular that a poor old chap like that sailor should have thrown a chance away whereby he might have gained one hundred dollars so easily—merely by selling a friend, perhaps to the gallows. Would he, Richard Turner, have been so stupid? "Hardly," he said to himself. But he had to accept facts as he found them, however strange they might seem, and the two most prominent ones claiming his attention were: first, that he had made a blunder; second, that he must work all the more rapidly to forestall the possible chances of his indiscretion leading to the escape of the man he hunted. Fortunately, the whipping had sobered him completely; and having repaired as well as he could the damages he had sustained in person and

raiment, he continued until late at night, in other sailor's haunts, his pursuit of information, but took care to give a wide berth to the "Whaler's Haven." Before daylight he left the place in a fast sloop and with a fair wind, bound for New Haven. There fickle fortune made him amends for her unkind humor at New London, and facts that seemed to go far toward establishing Dorn Hackett's guilt came readily to his knowledge. The most important were these:

On the afternoon preceding the murder of Jacob Van Deust the young man went over to Long Island on Mr. Hollis's sloop. Nobody but himself knew why he went. The men on the sloop expected him to return to New Haven with them that night, but he did not do so. They left the Long Island shore about the hour that it was supposed the murder was perpetrated and, presumably, before he could have run from Van Deusts' to the cove where the sloop laid. When he re-appeared in New Haven the next morning his clothing was dabbled with blood; and his hands, though he had evidently tried to wash them, still showed sanguinary stains. He said that the blood was his own; that he had a severe fall while running through the woods on Long Island. That he had fallen seemed probable, since he had a bad cut on his head and one ankle was lame; but that the blood was all his own, at least admitted of question. Why he had been running through the woods he did not say; but it was natural to suppose that he had been trying to reach the sloop and get to New Haven as quickly as possible, to make ground for claiming an alibi in case he should be suspected of the murder.

The other significant discoveries that the detective made, and what he did in New Haven, will be noted in their proper place. Suffice it here to say, that the agent of justice felt that he had reason to congratulate himself upon a triumph.

Billy Prangle, when he had kicked out the tempter, lost no time in fully imparting to his comrades the excellent cause he had for his suddenly violent conduct, and was heartily censured by all for not hammering the stranger twice as much.

"What?—Dorn Hackett guilty of murder and robbery?"

They who had known him for years; sailed with him; messed with him; faced death by his side in the tempest and the perilous chase of the monsters

of the deep, knew how absurd such a charge must be. Every man of them had belonged to the same crew with Dorn for three years, and there was not one of them who did not groan to think that he had not had Billy's chance at the stranger. In consultation among them, it was unanimously resolved that it was plainly their duty to take the matter in hand.

"Jerry Slate has got a fast little sloop," said Billy Prangle, "that I can borrow to take me over to Napeague. I'll go there and see that girl of Dorn's that he spoke of—Mary Wallace, he called her. Here, you barkeep', log that on a bit of paper for me, so that I won't let it go adrift. You, Sam, go down by Wainright's packet in the morning to New Haven, which it was the last place I heard of Dorn hailing from, and see that you find him and tell him all about it."

Thus the jolly tars arranged it among themselves to serve their friend as best they could. And so it was that, on the afternoon of the succeeding day, a weather-beaten old sailor—Billy Prangle himself—after various inquiries in the neighborhood, "ranged alongside" of Uncle Thatcher's house, asking for "a gal by the name of Mary Wallace."

"What do you want?" demanded Aunt Thatcher, who happened to "answer his hail."

"Be you Mary Wallace?" asked Billy, with an affectation of profound astonishment.

"No, I ain't. But I'm her aunt, and you can tell me your business."

"Right you are, old gal, I can; but I'll see you funder, first," replied the unabashed veteran, who had already been told by some neighbor that she was a "snorter."

"What do you mean, you impudent fellow?"

"I always does my business with the principals, mum."

Mrs. Thatcher slammed the door in his face and retired. But half an hour afterward, when she happened to be out in the yard, she saw that the sailor had lighted his pipe, seated himself on the stone step at the door, and literally laid siege to the house. She reflected that Uncle Thatcher would

soon be home to his supper; and in view of the strange way he had acted of late, did not know how he might take it into his head to look upon her treatment of the visitor. Tartar as she was, she had a wholesome respect for him when he chose to assert himself, and deemed it most prudent to avoid an encounter.

With an ill-grace she went to Mary, who was sewing in her room, and said snarlingly:

"There's an old vagabond at the door who wants to see you."

Mary went out and found Billy calmly puffing his pipe and waiting. He looked up at the sound of the opening of the door, and seeing the tall handsome girl who stood there, sprang to his feet, with a beaming smile and outstretched hand, saying:

"Ah! You're the right one. I thought I'd fetch you."

Mary gave him her hand, smilingly asking:

"Did you wish to see me, sir?"

"Yes; the mate has been out here trying to rig the pump on me, but it wouldn't draw. What I'm here for concerns nobody but you and Dorn. Come out to the gate, for she's a listening beside that window. I just see the curtain shake."

Mary started at mention of her lover's name by this stranger, and unhesitatingly accompanied him as he requested; while Aunt Thatcher, who was indeed listening by the window, could almost have torn her sun-bonnet strings with vexation and rage when they passed beyond range of her hearing.

Billy, like many other maladroits, flattered himself that he had no little skill in conducting a delicate mission, and thought it was rather a neat way of sparing the girl's feelings to affect to be very busy refilling his pipe, without looking at her, as he put the blunt question:

"Be you Dorn Hackett's sweetheart?"

Mary blushed and stammered, not knowing what to reply.

"'Cause," continued Billy, "he's maybe in some trouble."

Trouble! Trouble for Dorn! That thought swept away in an instant her timidity and maiden bashfulness, and anxiously she replied:

"Yes, yes; he is very dear to me. What is it? What has happened to him? Tell me quickly!"

"Don't get excited. It ain't no great matter. But they are looking for him to arrest him."

"Arrest Dorn? For what?"

"Murder and robbery."

Mary gave a little cry and would have fallen, had not Billy caught her; and holding her against the fence, awkwardly enough, but firmly, adjured her:

"Steady, steady! Brace up! Hold hard!"

In a few moments she regained sufficient control over herself to listen while the old sailor related to her, with characteristic circumstantiality of detail, all the events of the preceding evening leading up to his visit to her. She did not for an instant imagine that Dorn could possibly have been guilty of such crimes, but the mere idea of his being suspected of them so horrified her as almost to deprive her of the power of reasoning. How could he have fallen under suspicion? How could it come to be known that he was in the neighborhood on that fatal night? There was but one person, she believed, besides herself who knew of his visit, and that was Ruth Lenox. Ah, yes! There was her aunt, who suspected it at least, and who had questioned her so sharply about him. Ruth Lenox would never have breathed such a foul calumny against Dorn. But her aunt? "Yes, it would be just like her," thought Mary.

Billy had no further information to impart, no advice to give, and no consolations to offer. The latter would have been especially out of his line. It seemed to him enough to give a person warning to look out for him or herself, as the case might be; which, he reasoned, would be all he would require under any circumstances; and so, having discharged his errand to the best of his ability in the manner we have seen, he relighted his pipe and

"got under way," with a clear conscience as to having done his duty by a shipmate.

XV.

AND THE TROUBLE BEGINS.

Ruth Lenox was, just at this time, on a brief visit to the house of a married brother, who lived near Babylon; so that Mary was not able to consult with her only confidante until the second day after Billy Prangle's visit. Who could tell the agony of mind she felt during that time as the leaden hours dragged slowly by? It seemed to her fearful and excited imagination as if at any moment she was liable to hear of her lover's capture and imprisonment, and she was powerless to do aught to save him. One hope only suggested itself to her mind: that he might have sailed away from New Haven before his pursuers could reach him, and that by the time of his return from the West Indies the real murderer might be discovered, and the foul suspicion against Dorn entirely dissipated. But she was not left to cherish in peace even that small germ of comfort, for Aunt Thatcher, with the astuteness and malice of a feminine fiend—and if there is a distinction of sex among the devils, the female ones must surely be far the worst—divined that the sailor who visited Mary had come from Dorn, or in his interest, and embittered every hour of the poor girl's life by the wagging of her venomous tongue. As soon as Billy had gone away she demanded to know what his business was; and receiving no reply—for Mary felt that she would rather have died than give her aunt the satisfaction of knowing the hideous intelligence he brought—proceeded to treat the subject in her own lively fashion.

"Oho! So you don't want to tell! Well, I don't wonder at it. I'd be ashamed, too, if I was in your place. But I can guess without your telling me. It's some word from Dorn Hackett, I'll be bound. Wants you to go and take up with him while he's in port, maybe. If you do, you needn't think to come back here with your disgrace. I s'pose he thinks he's got a heap of money now. Did he let you know how much he got by killing old Jake Van Deust?"

"Oh, aunt!" exclaimed Mary. "You know that is a wicked falsehood! You know Dorn never would have done such a thing!"

"Don't tell me I lie, you impudent, deceitful, good-for-nothing hussy! Don't you dare to talk back to me! I know what I know! Oh, I'll have the satisfaction of seeing him hanged yet!"

Mary burst into tears and left the house. That bit of dialogue was a sample of what the heart-sick miserable girl had to endure constantly when Uncle Thatcher was not present. When he was by, the vixen did not dare to torment her victim, and Mary might have had a stop put to the woman's malignant attacks had she appealed to him; but from that extreme measure she revolted.

When Ruth returned home Mary hastened to her with her load of troubles, and was not disappointed in her expectation of sympathy and consolation.

"Don't you be afraid, dear," said little Ruth, in a very confident and protecting tone. "It will be all right. You'll see that it will. I'll make Lem fix it."

"Lem?"

"Yes. He shall go and find out who did kill Mr. Van Deust, and then I'm sure there can't be any more talk about Dorn. And I know, just as well as anything, that it was all started by that spiteful, wicked old aunt of yours. Lem told me, the night before I went away, that he saw her go into the Squire's office the evening of the inquest, after everybody else was gone but a strange man, and she stayed a long time; and I'd just risk my neck on it that that was the time she put him up to the notion of Dorn doing it. And I think he might have had more sense—a man like him, who has known him from he was a boy, and no stranger to what she is. But don't be afraid, dear. I'll start Lem right out to catch the real murderer, and I'll tell him I won't marry him until he finds him; and that'll bring him to his senses, I guess, for he's getting in an awful hurry about it."

Ruth was very earnest and emphatic, and her friend understood and was comforted by her, although it was not always easy to comprehend the breathless torrent of words that the energetic little maid poured forth, with reckless disregard alike of punctuation and of pronouns, when she became excited, as she now was.

Lem was very reluctant to undertake the task that Ruth sought to impose upon him.

"It ain't my business," he protested, "and I don't know anything about it. I wouldn't even know how to begin. How would I look going around the country asking people, 'who killed Jake Van Deust?' And I swon I don't know any other way to tackle the job. Squire Bodley told me he's got a real sharp fellow from New York at work—a chap that makes a business of catching thieves and murderers, and knows all about it. And I might do no end of mischief if I went to meddling."

"Now don't talk to me that way, Lem Pawlett. I won't have it. You've got a heap more sense than you give yourself credit for, and more than most people would think, to look at you, I must say. Wasn't it you that found the marks on the window, and tracked the murderer out to the lane? Of course it was. None of them gawks standing around saw anything until you showed it to them. And as for that smart chap from New York—why, he's the very one that went and bleated out his business to a lot of sailors in New London,—Dorn's friends all of them,—and they thrashed him, and served him right, too. And that's how we come to know about his being after Dorn, which, if he had any sense, he wouldn't be. And you've got to find some way to clear Dorn for Mary's sake, or I'll never forgive you, and I won't marry you until Dorn and Mary can stand up with us, and—so there, now."

Lem started home that evening, after his interview with Ruth, in a very despondent mood, and at a much earlier hour than usual, almost inclined to rebel against her authority, yet feeling that he must eventually succumb to her will. As he strolled moodily down the village street, wondering "what on earth" he should do, and thinking, as he subsequently confessed, that perhaps it might be as well to amuse Ruth by letting her imagine him very busy in Dorn's affairs, while he simply left matters to take their own course, confiding in Dorn coming out all right somehow, at last, his attention was attracted to the presence of an unwonted number of persons in the principal store, and the prevalence among them of some unusual excitement. Entering to learn what was going on he was just in time to hear the mail-rider, who had arrived but a little before, conclude a sentence with the words "and so he's in Sag Harbor jail already."

"Who's in jail?" Lem demanded, with a sinking at the heart, for he well knew that no idle putting off would do for Ruth if her friend's lover were really locked up.

"Dorn Hackett," replied the mail-rider, proud of his news, and glad to have the opportunity of repetition to a new auditor,— "for the murder and robbery of Jacob Van Deust."

"Nonsense!" exclaimed Lem.

"It's so, I tell you. They caught him in New Haven last night. If they'd missed him until to-day, he'd have been off for the West Indies; but a New York officer, who got on his track in New London, caught him. And they say he fought like a tiger. Both the officer's eyes are blacked; but one of 'em is a little staler color than the other, and I guess he must have been in two musses lately. Anyhow, he had two New Haven constables to help him to put handcuffs on Dorn, and then they brought him over in a sloop; and so he's in Sag Harbor jail already."

"Him that sheddeth man's blood, by man shall his blood be shed. The Lord wouldn't let him escape," snuffled Deacon Harkins from his perch on the sugar barrel.

"That's what comes of young men leaving their homes where they were brought up, and going off to the big cities to make their fortunes and get into evil ways," sagely observed the store-keeper, reflectively, chipping off a bit of cheese for himself.

"Yes." "That's so." "Just what a body might have expected," murmured several voices.

"How do they know he did it?" asked Lem, in an aggressive tone, resenting the willing acceptance of Dorn's probable guilt, which was manifestly the disposition of the group about him.

"Ain't he arrested? What more d'ye want?" retorted Deacon Harkins.

"Oh! That's reason enough for you, is it? That's the sort of a Christian you are! Condemn a man before he's tried! Hang him on suspicion! As if the law never got hold of the wrong person! Well, I don't believe Dorn Hackett was

the chap that ever would have done such a deed, and I don't care if he was arrested a hundred times, I'd bet my life no jury but a jury of Deacon Harkins's would ever find him guilty."

"There goes another young man I don't never expect any good of," remarked Deacon Harkins, in a self-satisfied tone, as though his condemnation quite settled the here and the hereafter of Lem Pawlett, as that young man, having "said his say," strode out angrily, and went on his way.

But Lem heard him not, and would have cared little if he had, for just then his mind was busy with a new and firm resolve.

"I'll do it," he muttered to himself, "to spite that consarned old deacon, who never was known to have a good word for anybody, as much as to please Ruth! I'll save Dorn Hackett; by the great horn spoon, I will!"

XVI.

LEM OPENS THE CAMPAIGN.

Dorn Hackett sat moodily upon his low bed in a little cell of Sag Harbor jail. His elbows rested upon his knees, and his aching brow was supported by his palms pressed against his temples. He might, had he wished to do so, have caught a glimpse of sunshine through the narrow window high up in the wall; might have seen the green branches of the venerable elm that, swayed by the wind, swept its foliage from time to time across that little space of sky; might have heard the blithe carols of the song-birds that flitted among the old tree's boughs, and even perched and sang upon the stone window ledge; but he had no heart to look anywhere but on the ground; no thought for aught but his own misery and shame. It seemed to him a terrible thing that he should be locked in a jail. What would Mary say when she learned of it, as she inevitably must? Ah! She would not believe that he could be guilty, certainly not; but the shame of him would break her heart.

His life had hitherto been one singularly free from reproach, and of the many things to which even passably good men become accustomed and hardened, by contact with the world, he was almost as innocent as his sweetheart herself. He had not gone off to a big city to make his fortune and

fall into evil ways, as the Easthampton storekeeper had said. Out of the three years and some months since he quitted the village, he had spent, altogether, but a few weeks on shore. He had been out at sea, doing bravely and well the manly work to which he had dedicated himself, and from even the ruder and, to some natures, demoralizing influences by which he was there surrounded, he had been protected by the purifying charm of his ever-faithful love. A retrospective view of his whole life brought to his memory no thought of regret or shame for aught that he had done, no remembrance of anything he would have wished to hide from the knowledge of her he loved best, and in whose regard he had most desire to stand well.

But there was one thing that, were it to do over again, he would not have repeated. He would not have knocked down the officer who came to arrest him, as he did in his first natural heat of indignation at hearing himself charged with being an assassin and a thief. No, he would not do that over again, for after he was ironed he had heard men say that he did it in a desperate hope of escape, and that he would not have done it if he had not been guilty. And yet it seemed to him the most natural thing for an innocent man to do under the circumstances. Could he have imagined that such a construction would be put upon it? And now what had he to look forward to? He knew nothing, absolutely, of the murder, of the inquest, or of the grounds upon which he was suspected, save that he had a vague remembrance of hearing it said, amid the excitement attendant upon his arrest, that he had been in the vicinity of where Mr. Van Deust was murdered, on the night that the old man was killed. Yes, that was probably true; and how could he prove, or even state, the innocent purpose of his presence there. Could he ask Mary to come into court and testify to their love-meeting in the woods? No. Not even to save his life.

His reflections were broken by the sound of footsteps in the corridor without, and the sound of the jailor's voice saying:

"This is his cell."

The prisoner looked up and met the frank, kindly face and outstretched hand of Lem Pawlett.

"Well, Dorn, old fellow, I'm mightily sorry to see you here," he said cordially, as the jailor walked away, leaving him standing in front of the

grated iron door of the cell, through which his hand was thrust to grasp that of Mary's lover.

"Does—do they know of it?" stammered Dorn.

"Does Mary, you mean. Well, yes, I guess she does. Uncle Thatcher was at the store last night when the mail-rider brought the news, and he has most probably mentioned it at home. But, Lord bless you man! she don't think anything of it. Cheer up. Don't get down in the mouth. She won't believe a word against you, you may be sure. And it don't come on her like a shock, as it were, because she has been expecting it."

"She expected it?"

"Yes. She has known for two or three days that they were after you, but had no way of getting any word to you."

"But how did they come to be after me?"

"That was Aunt Thatcher's doings, I believe; but I'll tell you all about it, as far as I know."

Thereupon the good fellow proceeded to give as full and correct an account, as his information enabled, of the facts already better known to the reader, beginning his narrative with the discovery of the murder and concluding it with an expression of his determination of the night before, to "try to straighten out the tangle."

"God bless you, old fellow," responded Dorn, with tears of gratitude in his eyes. "I can't tell you how it warms my heart to have one friend stand by me in a time like this. But little did I ever think, when we were boys playing together, that you would ever have to do such a thing for me."

"That's all right, Dorn. Don't say any more about it. I'll be glad if I can do anything, and so will Ruth and Mary. And now, let's see what is to be done. The first thing is for you to tell me, as clearly and exactly as you can, every incident you can remember of where you were and what you did that night."

"Everything is as clear in my mind as the occurrences of yesterday. Let me begin at the beginning. I reached New Haven in the forenoon of that day, and, having made a much quicker voyage than was expected, found that I

would have several days at my disposal. Of course my first thought was of going to see Mary. I left the schooner in charge of the mate, to see to the taking out of her cargo while I was gone, and got a man named Hollis to bring me over to Napeague in a little fishing smack. He had to come, any way, to get a couple of pipes of rum that had rolled off a trader's deck one night. I left him at the beach, telling him that if I did not meet him there at half past nine o'clock that evening he need not wait for me, as I might have to remain over a day, or even two; for you know, as Mary would not be expecting me, I did not know whether I should meet her at the usual place that evening or not, and I couldn't go to her uncle's to see her."

"No. I know all about that."

"Well, I was fortunate enough to meet her, walking with Ruth, and naturally remained with her as long as I could. It was nine o'clock, as near as I could judge by the rise of the moon, when we parted, and I set out for the beach to meet Hollis. I was a little afraid of being late, and took a short cut through the woods that I thought I knew just as well as when we used to go huckleberrying in them when we were boys. But there had been at least one change that I knew nothing of—a new road."

"Ah, yes. The new one across from Amagansett."

"I suppose so. Whatever it is, I found it very suddenly. I was running at the time, along a little path that I knew well, and all at once went plunging down, head foremost, nine or ten feet into a cut. It's a wonder—and, as I then thought, a mercy—that I didn't break my neck. Lately I've had my doubts as to whether it wouldn't have been better for me if I had."

"Stow that, and pay out your yarn."

"When I could collect my scattered senses, I found that I had cut two ugly gashes in my head, upon sharp pointed roots or stubs of some sort, and had sprained my left ankle so that it was exceedingly painful for me to attempt to walk. While I sat there, thinking what I should do, a little elderly gentleman, on horseback, came along upon the new road into which I had fallen. I told him I was hurt, and he very kindly assisted me, first to fix up my head—giving me his handkerchief to use with my own for the purpose,—and then to get over to the beach. Hollis was gone. The accident had

delayed me far beyond my time, and he, of course, supposed that I was not coming. When I got my ankle in the cool sea-water it felt better, but still I could not walk any distance on it. Just then a small smack came along, with an old man and a boy in it—strangers to me—probably out on some smuggling errand, and I offered the old man ten dollars to take me over to New Haven, which he accepted gladly. The kind little gentleman helped me into the boat and bade me good-night, saying that he had yet to ride to Sag Harbor. We had very little wind, and it was daylight when the old man landed me in New Haven. I had lost a good deal of blood from the cuts on my head, and felt half sick and drowsy from it, so that I slept nearly all the time I was in the boat. And that's all I can tell you about that night."

"Well, man alive, that's enough. All we've got to do is to find the little gentleman and the old man to prove that you left the island before eleven o'clock, for it was after that hour that Jacob Van Deust was murdered. That will show clearly enough that whoever did kill him, at all events, you didn't; and that's all we care about just at present."

"Ah! If I had the slightest idea of who they were. But I never thought to ask their names, and indeed didn't take much notice of anything; for, as I said, I was dizzy, and half-sick, and drowsy, with the loss of blood; so that even if they had told me who they were, I don't know that I should have been able to remember. If the old man was, as I suppose, a smuggler, he would hardly be likely to willingly expose himself to inconvenient questioning in court. Old men are cautious about taking such chances, especially for people who are nothing to them."

"Can you give me a description of the little gentleman on horseback? or tell me anything about him that might lead to his identification?"

"No. Only I remember he said he was a stranger, and knew nobody in the neighborhood except the Van Deusts. The way he came to mention that was in talking of taking me somewhere."

"Well, as he mentioned the Van Deusts, old Peter doubtless knows who he is. Ah! Come to think about it, he said at the inquest that his lawyer from New York had called on him that evening. Why, it's all plain sailing now. I'll go to the old man right away and ask him, and he'll tell me who his lawyer is, and I'll go and see him, and we'll have you out in a jiffy."

"Lem, I can't tell you how I appreciate your kindness and the trouble you are taking in my behalf."

"Don't try to. It's all right, I tell you. You'd do the same for me; I know you would. And I rather think I begin to like the job, knowing how it will spite that old cuss, Deacon Harkins."

The remainder of the young men's chat at the cell door had no especial significance or bearing upon the progress of the events of our story, and may as well, therefore, be omitted. Suffice it to say, that when they separated, Dorn felt infinitely more hopeful and cheerful than he had before since his arrest, and Lem had far greater confidence in the result of his novel undertaking of detective work. Of course Lem carried away with him many loving messages to Mary, which were, in due time, faithfully delivered through Ruth.

It was too late that evening when the young man reached his home for him to call upon Peter Van Deust, but he went up to the homestead under the elms the next morning, at as early an hour as he dared hoped to find anybody astir. He found the lonely old man, already seated upon the long bench on the porch, in his accustomed place, with his pipe in his mouth, and his gaze turned toward the sea; but the pipe had gone out unnoticed, and the eyes saw nothing of the glory of the dawn upon the ocean, for they were blinded by tears that unconsciously filled them. Lem stood silently looking at him for some moments, hesitating to speak, and hoping to be noticed; but the old man did not seem to know that he was not alone, until Lem's voice, bidding him "Good-morning," awoke him with a start from his reverie. Then the start, with which he had been recalled, extended itself in a long fit of nervous trembling, and it was with a weak and quavering voice that he responded to his visitor's salutation. It was painful to see how the unhappy man had broken down in the little time that had passed since the death of his brother. It seemed to have added at least ten years to his age.

"I suppose, Mr. Van Deust, that you have heard of Dorn Hackett's arrest," began the young man, after a failure to find any other way than a direct plunge to arrive at his subject.

"Yes, yes, I was told of it yesterday. Dorn Hackett? Dorn Hackett? They say he used to live around here, but I don't remember him. I suppose I used to

know him, though. And he was raised in the neighborhood? It seems strange that any one who was raised near him, and knew him, could ever have had the heart to kill Jacob, don't it?"

"But, Mr. Van Deust, maybe he didn't do it at all."

"Somebody did it; somebody climbed into his window and murdered him for the sake of a little money. Beat in his skull and cut short his little remnant of life, just to get a few dollars. Oh! it was a cruel thing to do, to kill that poor, harmless, gentle, good old man. I wish we had never heard of that cursed fortune. Jacob would be alive to-day, if we hadn't."

His agitation while he spoke was extreme. He trembled like a leaf in the wind; tears ran down his withered cheeks; his voice was broken by sobs, and at length his emotion so obstructed his utterance that Lem could not understand him as he went rambling on about his brother's untimely end. After a little time, during which Lem silently waited for him to regain a little calm, his mood seemed to change to one of suspicion and fear for himself.

"I suppose they'll come to kill me next," he exclaimed. "They'll think there's more money; but there isn't—there isn't a dollar in the house. I'll never have a dollar in the house again; and I'll get a dog, a savage big dog, and I'll load the gun. Oh, I've got a gun, though it hasn't been loaded in forty years."

"Mr. Van Deust, a little elderly gentleman on horseback was in this neighborhood the night your brother was murdered, and he said he knew you. Who was he?"

"Why, he's my lawyer, the man who brought us the intelligence of—But what do you want to know for? What right have you to come here asking me questions about my private affairs—about my lawyer? Do you think he brings money here? No, he don't! he don't! there isn't a dollar in the house. It's none of your business! Go away from here. I won't answer any more of your questions. I was a fool to tell you so much! Begone! begone! Betsy! Betsy! Help! help!"

The old man's excitement seemed to have crazed him, temporarily, at least. He continued raving, and Lem, finding it impossible to get in a word of explanation, went away, no little disgusted with the rebuff he had

encountered at the very commencement of his task of hunting up an *alibi* for Dorn. Returning to Sag Harbor, he succeeded in finding the man who had hired a horse to the little elderly gentleman on several occasions, but could learn nothing from him beyond that fact. The gentleman, according to the man's statement, always arrived by boat from New York, got the horse, rode away, came back, paid, and disappeared, probably by boat again. And that was all that the owner of the horse knew about him.

Then Lem went to New York, saying to himself that he "would ask every little elderly lawyer in New York if he was the man," before he would give up the pursuit. Little did the unsophisticated young fellow, who had never before been away from home, imagine the magnitude of the job he had cut out for himself.

XVII. LOVE THAT IS NOT ASHAMED.

The closing of the inquest upon the body of Jacob Van Deust was a mere formality. It was generally understood that there was within reach, if not in actual possession, some evidence that would go far to connect Dorn Hackett with the crime, and Squire Bodley even hinted as much in a few remarks that he made to the jury; but it was deemed injudicious to make it known at this juncture, and the jury, by the Squire's direction, returned a verdict of "death by violence at the hands of some person unknown."

Mary Wallace, ignorant of the slow, serpentine, and deadly ways of the thing men amuse themselves by calling "justice," when the finding of the jury was told to her that night found it difficult to understand why Dorn should be kept in jail, when there seemed to be no evidence which the coroner's jury has found sufficient to connect him with the crime.

"Uncle," said she, timidly approaching grim Mr. Thatcher, as he sat on the stone door-step, surrounded by a litter of fine shavings that he had scraped from a whale-lance handle that he was finishing by the last light of day, "why is it that, if the jury gave their verdict that the murder was done by some unknown person, they don't let Mr. Hackett out of jail?"

"Did you ever see a cat playing with a live mouse that she had caught?"

"Yes, uncle."

"How she lets it go a little way off, making it think it is going to escape, and then pounces on it again? How she pretends she isn't paying any attention to it, and has no notion of hurting it, and then suddenly tears it to pieces?"

"Yes, uncle," repeated Mary with a shudder.

"Well, that's the way the law does with a man."

Mary covered her face with her hands, and wept softly, while he went on:

"If they still hold on to Dorn Hackett, it is because they hope to get proof enough against him to make him out guilty. I have heard lawyers say that the law presumes every man to be innocent until he is proved guilty; and when I was a younger man, I actually believed that; but as I have got older, I have learned that practically, in the administration of the law, when a crime is committed somebody has got to suffer for it, for the sake of the moral effect on the community; and it don't really make much difference who it is, so long as the poor devil who is caught cannot prove himself innocent, which is sometimes a mighty hard thing to do. He may not be guilty, but they will try to make him out so. Better hang him than admit having made a blunder in his arrest."

"Oh, but uncle! you don't believe Dorn could be guilty, do you?"

He looked at her pale anxious face with a feeling of deep pity,—for his eyes were keen enough to see that it was of her lover she spoke,—and replied with unwonted tenderness:

"No, my poor child. No, I don't; and I wouldn't if I knew nothing more about him than your trust in him."

Two low sounds mingled softly, and were doubtless duly noted by the recording angel on duty: a sigh from Uncle Thatcher, and a sniff of disgust from his lean and rancorous wife in the dark room behind him. He sighed to think, as he looked at Mary, and appreciated the worth of her full and perfect love, what a treasure his profligate son had lost in her, among all the good he had recklessly cast from him. Aunt Thatcher sniffed because she did not dare to express openly her contempt for his weakness in manifesting

sympathy for the poor orphan who had won her hearty and unextinguishable hatred by rejection of Silas's advances.

"And if Dorn cannot, as you say it is difficult to do, prove himself innocent, what will they do with him?"

"They'll hang him," exclaimed Aunt Thatcher, in a tone of malicious triumph, unable longer to contain herself, and now appearing in the door to enjoy Mary's horror.

Uncle Thatcher turned upon her with a look of disgust and retorted:

"Sallie Thatcher, if the devil himself ain't ashamed of you, he's meaner than I take him for."

"Oh, indeed! I'm so bad, am I? Thank you, Mr. Thatcher. Just because I don't choose to take up for a murderer and a thief. I'm sure any body might have known what he'd come to when he commenced by nearly killing my poor boy."

"Your 'poor boy' deserved all he got, and more, too; and I've good reasons of my own for thinking that we'll both see the day we'll have to regret that Dorn Hackett didn't finish him then."

Aunt Thatcher's surprise and rage at hearing those words deprived her for a moment of the power of articulation, and she could only give vent to her feelings by a sort of wild beast howl of fury. But very soon her ready tongue loosened itself again, and she poured forth a torrent of reproach, vituperation, and malediction directed at random against her husband, against Mary, against Dorn, against the world, indeed, excepting only her "poor injured boy."

When Uncle Thatcher had had enough of this, he straightened himself up before her, and she, as if fearing the weight of his heavy hand, retreated into the dark room. But he did not seem to have any intention of personal violence. He simply pulled the door to, locked it on the outside, and sat down again. A moment afterward the door was tried and rattled from the inside.

"Stay in there and keep quiet, if you know what's good for you," growled Uncle Thatcher.

The rattling ceased, and all was again quiet.

"Uncle," said Mary, after a little pause, "I want to go and see Dorn."

"In jail?"

"Yes."

"Well," he replied, a little doubtfully, "people might talk."

"Let them, if they will. I don't care—or, at least, I don't care enough to prevent my going to him when he is in trouble. What can they say, but that we are lovers. Well, yes, we are, and it is no time for me to seek to hide it when others look coldly and cruelly on him. He loves me—I know he does; and I love him—with all my heart. And we were going to be married very soon, uncle. I would have told you before, but I was afraid. Now you are so kind to me that I'm not afraid to tell you any more. And oh, Uncle, I *must* go to him!"

"Forgive me, little Mary—and may God forgive me for having made poor Lottie's orphan child afraid to put confidence in me. You say you want to go and see him. You shall. I'll hitch up early to-morrow morning and take you over to Sag Harbor myself."

Long before daylight the next morning Mary, who had not closed her eyes during the seemingly interminable night, was up and had breakfast prepared. Whether Aunt Thatcher was still under the influence of the sullen fury that possessed her when the door was closed upon her the night before, or had fresh fuel added to the fire of her temper by overhearing the arrangement between her husband and niece, did not appear. At all events she spoke no word of question or remark, and was still abed when they took their departure.

The sun was not risen above the sea when Uncle Thatcher's old carryall creaked through the one long rambling street of the little village, and entered upon the Sag Harbor road; but his upward glinting beams already spread with gold and crimson the lower edges of the fleecy clouds on the

eastern horizon. Diamonds of dew still clung to the long grass blades, and the points of the forest leaves and the morning breeze, heavy with the salt smell of the sea, was fresh and bracing. Robins flitted across the road with sharp notes, as of query why folks should be abroad so early, and a belated rabbit, homeward bound to his burrow in the brush, sat up-reared upon his haunches and seemed paralyzed by astonishment until the horses were almost upon him, when he bounded swiftly away. Higher and higher rose the sun, and as his ardent rays licked up the dew, light clouds of yellow dust swirled and spread behind the rapidly-moving wheels. Past orchards, where red winter apples glowed in the sunshine like balls of blood amid the foliage of the trees; past fields still golden with the stubble of the early ripened grain; past fallow lands, where the blue-bird carolled gayly on the hollow stump in which he and his mate had reared their springtime brood; past leafy woods, where nuts were ripening, the wheels rolled fast until they reached the quaint old town—their journey's end—and halted beneath the old-time tavern's venerable elms.

Leaving the horses hitched, after having carefully watered them, Uncle Thatcher accompanied his niece to the jail and asked permission for her to see Dorn Hackett, which the jailor, having no orders to the contrary, readily accorded. Mr. Thatcher did not enter. Though far from being a nervous man, he felt as if the close clammy atmosphere of that stone warehouse of sin and sorrow sent a chill to his heart. Besides, he had no business with Dorn Hackett. With a great breath of relief he turned his back upon the jail and wandered off down to the wharf to look at the shipping—for Sag Harbor had shipping in those days—to learn if there was any change in the oil and whalebone markets, and perhaps to ascertain what was coming to his share of that schooner in which he was part owner.

Dorn was just bidding adieu to his lawyer, when Mary appeared in the corridor.

"By jove! Here's a pretty girl come to see some prisoner!" exclaimed the lawyer at sight of her.

Dorn paid no attention to the remark. There was but one pretty girl in the world about whom he cared to think, and he did not expect her to come there. What, then, was his surprise when, the lawyer having stepped aside to

give place to the visitor at his cell-door, he looked out and beheld the beautiful face of his own true-love, Mary. With a cry of surprise and joy he thrust his arms through between the bars, catching her in an embrace, and their lips met in a long and ardent kiss. The lawyer, who was a young man, and possessed of a very lively appreciation of feminine beauty, lingered a few moments and then quietly took his departure.

"I hardly know whether I am most glad or ashamed to see you here, darling," said Dorn, looking tenderly at his beloved.

"Glad, I hope, dearest. Should you feel ashamed of being unfortunate? It is only guilt of which one need be ashamed; and that, I well know, my dear Dorn has not."

"True. But it is very hard to wash the prison taint off, even from an innocent man."

"Do not think so, my love. Everybody will know yet how true and good you are, and will be all the kinder to you for the mistake that has given us so much pain and trouble."

"Ah, my dear girl, it is your love and not your reason that tells me so. Even people who have no other reason for hating the man who has been the victim of such a mistake, will find sufficient the consciousness that they have erred in supposing him guilty, and will always profess to view him with suspicion, whether they feel it or not. There is nothing that people generally abhor so much as a confession of fallibility. But, no matter. I have your love and confidence, dear Mary; I'm sure I have, or you would not be here; and for all beyond that I'd ask small odds from the world if I were free again."

"And you will be, dearest, I am sure of it. It can never be possible that a man should be punished by law for that of which he is not guilty."

"Ah, you think so? Then you have not read much about people who have been convicted upon circumstantial evidence. I have read a whole book about such cases, and I tell you it takes very little real proof to hang a man sometimes."

"Oh, Dorn! Don't talk so! You make me wild with horror and fear!"

"Well, there,—there,—darling. I won't say any more about it. I shouldn't have said so much, but somehow I have got into a bad way of talking back since I have had to make the acquaintance of a lawyer."

And kissing her tenderly, he sought to remove the terror that he had unthinkingly given her, making light even of what he had just said, and forcing himself to speak much more hopefully than he dared to feel.

"Lem, you know," he said, "has gone to New York to find a witness who will certainly clear me if we can bring him into court."

"Ruth told me that he had gone, and the object of his going, as far as she knew, but he did not give her any particulars."

"No? Then I'll tell you all about it."

Thereupon he proceeded to inform her of all the untoward events that had happened to him after his leaving her on the last night they were together; his running through the woods and falling into the new road; the aid given him by the little elderly gentleman; the missing of the boat he had hoped to catch; the opportune arrival of the old man, probably a smuggler, etc., etc., just as has already been narrated in his interview with Lem, but much more slowly, as this time the story was much broken by affectionate condolences and consequent digressions to love-making. He told her also of Lem's unsuccessful attempt to learn from Peter Van Deust who the little gentleman was.

"What a pity it is," she said, "that you did not think to ask him his name! Was there nothing about him that you can remember that might help to his identification—no personal peculiarity of look, or dress, or manner of speech?"

He shook his head regretfully, saying, "I was not much in the humor to notice peculiarities just then. But yes, come to think about it, there was one little incident that rather amused me at the time, badly as I felt; but I have not thought of it since until now. The little gentleman had a very slow, cautious, and precise way of speaking. I asked him what time it was, when we were down at the beach. He pulled out his watch and replied very deliberately: 'Without desiring to be understood as committing myself to an affirmation of the absolute accuracy of my time-piece, I may say that, to the

best of my information and belief, it is now eleven minutes past ten o'clock."

"Ah, I have seen him! I recognize his phrase, 'information and belief!'" exclaimed Mary, "and know just how he said it. Ruth and I met him the first time he came into the neighborhood, looking for the Van Deusts, 'supposed to be brothers' as he then said. Ruth imitates him, sometimes, and does it very well. When we come to match together our remembrances of him, I am sure we will be able to give Lem some information that will help him to find the man."

"I certainly hope you may," answered Dorn, "for I can do nothing more. I have got to resign myself to play the passive part of a football for other people to bounce about, without being able to help myself, whether I am going into the goal or the ditch. I have a lawyer, but he seems to look rather blue over the prospect."

"Then get another."

"And have two of them looking blue? No, no. That would be more than I could stand. One is enough. Sailors don't take very kindly to lawyers, any way, you know."

At the end of an hour—a very short time as it seemed to them, but the limit set by the jailor, who now appeared, looking in at the corridor door from time to time, with an air of expectation—Mary said she would have to be going.

"How did you come over?" asked Dorn.

"Uncle Thatcher brought me."

"The—mischief he did! And did he know you were coming to see me?"

"Yes, he brought me for the purpose. Oh, Dorn, he has turned to be ever so kind and good to me! I told him I loved you—"

"God bless you, my darling!" exclaimed her lover, interrupting her with a kiss.

"—and that we were going to be married. And he did not say one word against it. He even said that he did not believe you were guilty; and when I told him I wanted to come and see you, he answered that he would hitch up early this morning and bring me; and so he did."

"Mary, if I've ever said a word against Uncle Thatcher I want to take it all back. A man who does me as good a turn as he has this day, I can never after hold any grudge against."

Mary went home that night with a much lightened heart, and looked so nearly happy that Aunt Thatcher would have liked to have bitten her, for sheer vexation and spite.

XVIII.

DORN'S TERRIBLE MISTAKE.

Dorn Hackett's preliminary examination by a committing magistrate took place before Squire Bodley, and was even a more important event, for all the country around, than the inquest had been. As upon the former occasion, the Squire's little office was crowded densely, and apparently by exactly the same persons who filled it then,—with the exception that the small space within the railing was somewhat more jammed by the addition of five more persons than were there at the time of the inquest; the prisoner, Dorn Hackett; his lawyer, Mr. Dunn; the prosecuting attorney; the officer who brought Dorn from Sag Harbor jail, and a reporter from New York. Peter Van Deust was seated where he sat before, looking fearfully worn and old, as was remarked by all who knew him and viewed with surprise the great change that had been wrought in him within the few weeks since his brother's murder. He had more command over himself now, however, than he showed on the first day of the inquest; and instead of bowing his head and weeping, leaned upon the end of the table and fixed his eyes with a hungrily keen gaze upon the witnesses and the prisoner, as if he would fain have penetrated their hearts to know the truth.

Lem Pawlett was called, but did not respond, and in his absence another witness formally testified as to the facts of the discovery of the murder.

Peter Van Deust repeated his former testimony. Then the prosecuting attorney called the name of Mary Wallace.

"Stop a moment," interposed the prisoner's counsel. "I desire to know the object of the prosecution in calling this witness?"

"It is neither customary nor requisite," responded the prosecutor, "for the State to give such information. At the same time, I have no objection, under the existing circumstances, to inform the counsel that we intend to prove, by this witness, that the prisoner was in the vicinity of where this murder was perpetrated upon the night of its perpetration; keeping himself in the woods, evading the sight of former friends and neighbors, though he had not re-visited them or made himself known among them for three years or more, and that he parted from the person we have just called as a witness a little while before the hour at which the murder, as we have reason to believe, was committed."

"We are ready to admit," replied Mr. Dunn, "that the prisoner was in the woods within a half, or possibly a quarter, of a mile of the Van Deust homestead on the night of the murder; that for what seemed to him good and sufficient reasons, yet very innocent ones—which the younger portion of my hearers will possibly imagine and appreciate more readily than the old ones—he *did* seek to avoid meeting any inquisitive and gossiping friends; and that he parted from the person whom the State has just called before the hour at which the murder was committed. I believe those admissions cover all the State desires to show by this witness, and consequently, I do not see that there can be any necessity, at this time, for placing her on the stand."

"None at all. We are satisfied with the admissions," assented the prosecutor cheerfully, not at all dissatisfied with expediting business in the close and heated quarters in which he found himself.

A look of relief, almost of pleasure, passed over Dorn's face. He had his Mary spared the embarrassment and unhappiness of appearing as a witness against him, for that time at least.

A man named Schooly, from New Haven, testified that he saw Dorn in his boarding-house in that city two days after the date of the murder, and he

was then suffering from some cuts, bruises, and sprains which he claimed to have received while running through the Long Island woods at night.

Detective Turner bore witness to the finding in the prisoner's room in New Haven of a pair of pantaloons and a jacket stained with blood, and a shirt which, though it had been washed, still bore blood stains. He further narrated that the prisoner had stoutly resisted arrest; had, indeed, fought hard to effect an escape; and upon being overcome and searched, had been found to have, in a belt about his body, some three hundred dollars in gold coins—which the witness here produced for inspection by the magistrate, and possible identification by Mr. Peter Van Deust.

The old man looked them over a little, and then pushed them away with a weary sigh, saying simply:

"Jacob had gold in his bag; I don't know how much. Minted coins are all alike."

The case looked very weak for the prosecution. There was really nothing beyond mere suspicion to connect the prisoner with the crime. The prosecuting attorney, with a discontented look, whispered to the detective,—who was evidently uneasy,—and shuffled over again the pages of the testimony taken at the inquest, with a faint hope that he might find there some previously overlooked clue to be of service now. But there was nothing.

The prisoner's counsel leaned back to his client and whispered exultantly: "I defy any jury, or magistrate, to find on that evidence anything worse than the Scotch verdict of 'Not Proven.'"

"'Not Proven'?" exclaimed Dorn, "I don't want such a verdict as that. Cast a cloud of suspicion and doubt over my whole life! No, I'd rather be hanged at once and done with it. What I demand is a verdict of 'Not Guilty.'"

"Better be satisfied with what you can get. 'Not Proven' would be just as good."

"Not for me. I want to tell the Squire, and everybody, just what happened to me that night. I'm sure that they will see I am telling the truth, and I'll clear away this suspicion."

An older and shrewder practitioner than Mr. Dunn would have positively refused to permit his client to imperil, by a word, the present promising condition of his case; but he could not help entering into the feeling of the brave, handsome and earnest young fellow who pleaded so hard to be permitted to defend himself with the truth, and yielded.

"If your honor pleases," he said simply, "my client requests to be permitted to make his own statement of the events of the night in question affecting him, or in which he had a part."

"I shall be happy to hear him," answered Squire Bodley, who was conscious of feeling prepossessed in Dorn's favor, and desirous of seeing him clear himself from suspicion.

The prosecuting attorney looked up with a new light of hope in his eyes. Well he knew how even innocent persons sometimes tangle themselves up in trying to tell a straight story, and how their unpractised and unguarded utterances can be garbled, warped, and misconstrued. But Dorn's manner gave him very little encouragement. In a plain, straight-forward way, that went home with the force of truth to the hearts of all who heard him, the young man told his brief tale of mal-adventure on that luckless night.

Why he had come to Long Island that evening and tried to avoid being seen by anybody but the person he came to see was, he said, his own business—had no bearing on this affair—and he did not propose to make any statement about that. He did not need to. Already it had in some way become matter of public knowledge all over that end of Long Island that he had come to see Mary Wallace, his sweetheart, who stuck to him so well in his trouble that she had been to see him in jail. And nobody thought the worse of him for that, certainly.

Having disposed of that matter so simply, he retold his story, from the time of his starting to run through the woods to catch Mr. Hollis's sloop up to his final arrival at his home in New Haven the next morning. "Deeply I regret," he said, in concluding the narrative, "that I do not know the two persons who assisted me; the gentleman on horseback and the old man in the smack; and beyond measure grateful I would be to them if they, learning of the trouble into which I have innocently fallen, would come forward to corroborate my statement of what happened that night."

"And you know of absolutely nothing," said the prosecuting attorney, after a little whispering with old Peter Van Deust, who was seen to violently shake his head, "which might lead to the discovery of the real existence of either of those persons who, according to your very romantic story, came so opportunely to give you their aid?" He spoke with an affectation of incredulity, which in his heart he was very far from feeling.

"Nothing whatever, sir," replied Dorn. "The only trace I have left of either of them, except the memory of their kindness to me, is the handkerchief which the little gentleman bound around my head. It has been washed, with the rest of my clothing over which the blood flowed from my scalp wounds, and was sent to me yesterday in the valise which was forwarded to me from my boarding house in New Haven. I have it with me. Here it is."

So saying he drew from one of his pockets a large white linen handkerchief, clean and neatly folded, which he handed to the prosecuting attorney. That official took it in an absent-minded way, looked at it negligently, and—his mind busy with some trap he was minded to set for the young man—then tossed the light fabric carelessly from him upon the table. It fell before old Peter Van Deust, who snatched it up and, after turning it from one corner to another for close examination, suddenly startled everybody by a loud cry and the exclamations:

"It was his! It was Jacob's! I can swear to it!"

The old man was immediately recalled to the witness-stand, and testified with much demonstration of excitement:

"I felt that it was his as soon as I saw it, and when I examined it I was sure of it. Jacob had some harmless, womanish ways about him. He could sew, and knit, and embroider a little. He marked all his clothing himself—every article of it I believe—in a very modest way; hardly discernible at a casual glance, but very plain when you come to look for it, as you can see on that handkerchief. Look in that corner and you'll see his initials '*J. V. D.*' worked with a single white thread. You can hardly see it without you hold it so that the light will show the lines of the letters lying across the threads of the fabric. There! That way it shows plainly."

It was as he said. The letters "*J. V. D.*" were unquestionably there.

Dorn sank back in his seat aghast and terrified by this astonishing discovery. Who now believed his story of the little gentleman and the old man in the smack? Nobody. Everybody saw that it was an artfully concocted lie, and was indignant with him for duping them, by his apparently ingenuous and honest manner, into momentarily believing him. An audible murmur about the "finger of Providence" ran through the throng, and Mr. Dunn groaned, half to himself and half to his client:

"Oh, I was afraid you'd play the devil somehow! Why couldn't you have let well enough alone?"

Squire Bodley, having carefully examined for himself the marked handkerchief, said solemnly to the accused:

"Young man, you have, I fear, placed the noose about your own neck. You will stand committed to await the action of the Grand Jury. Without bail, of course," he added, seeing that the prisoner's counsel had risen and seemed about to say something.

Whatever it was that Mr. Dunn had an idea of saying or doing when he got upon his feet, he changed his mind and sat down again. The fact was that he was as completely stunned as was his client by the revelation that had been made. Dorn had sworn to him that he was innocent, and he had believed it. But now—? He, even, began to have his doubts.

At this moment a sharp-featured woman, wearing a sun-bonnet and with a tangled lock of sandy hair hanging down her back, having literally fought her way to the railing, leaned over it and asked the magistrate in an acidulous whisper:

"Squire, can't I swear to something against him?"

"It would be useless, now, Mrs. Thatcher," replied the Squire, "as he has already been committed. But your evidence might be desired by the Grand Jury. What can you testify to?"

"I can swear," answered the woman, with eager spite, "that he's a hardened villain, and that I believe he killed Jake Van Deust, and that he's been keeping that fool niece of mine out in the woods to the latest and most indecent hours of the night."

"Madam," said the Squire, with mingled dignity and contempt, "you will excuse my saying that you are simply disgusting! Go away!"

XIX.

THE MAD AVENGER.

Nobody could devote himself with greater assiduity to an almost hopeless task than Lem Pawlett did to his pursuit of the unknown lawyer. The weather was exceedingly hot in the city, and he, accustomed to breathing the pure fresh breezes of the sea-shore, felt it terribly oppressive. The pavements were very hard to his feet, used to the soft earth and sand of the country, and he was actually lame most of the time. The interminable streets and the multitude of people confused him and gave him a horrible sense of isolation among them all. Then he very much missed little Ruth's affectionate despotism, and her practical good sense and encouragement, for he had so many disappointments and discouragements to encounter that he was fairly heart-sick almost all the while. Still the good fellow did not give up his chase. He had come to town for a purpose, he said to himself, and he would succeed in it or die trying. Day after day he haunted the courts and the streets where there were most lawyer's offices, and it was not long before he became actually a terror to all the little elderly gentlemen who practised law in New York—and there were a great many of them, as there are even yet. Seeing one who, it seemed to him, might come within the somewhat wide specifications he alone had for his guidance, of being small and past middle age, it was his habit to buttonhole the suspected person and put to him directly the question:

"Do you know the Van Deusts of Easthampton?"

They all said "No." A very few of them, at first, had curiosity enough to add "why?" But upon his commencing his story which from his manner promised to be long, they would always exclaim, "Ah! One moment—excuse me. I see a man—" and would dart away. Generally they did not even ask "why?" but darted away about their own business all the same.

His frequent repetitions of the same question were overheard by other members of the bar than those to whom it was addressed, and it was

observed that the interrogation was always directed to little, elderly gentlemen. So very speedily it became a stock-joke among the profession for waggish counsellors to ask of his selected class of victims, at the most inopportune times and unexpected places, "*Do you know the Van Deusts of Easthampton?*" until they were almost maddened by the iteration.

One jocose attorney christened Lem "*The Mad Avenger*," and by that title he was soon generally known. The poor fellow was much puzzled to account for the hilarity that his appearance in court sometimes seemed to occasion; for the general interest that appeared to be awakened among the lawyers when he approached one of whom he thought he should ask his question; and for the angry haste with which the person so approached would reply, oft-times before he said more than "*Do you—*" with an emphatic "*No. Never heard of them in my life.*" Sometimes he asked the same person, twice or thrice even, on different days, for he could not be expected to remember them all.

There are always haunting the courts a few poor, harmless mad people,—wrecks whose hearts and minds have been at some time crushed by the Juggernaut of the law. The mercy of forgetfulness has wiped away the memory of ruinous defeat and made place for ever-springing hope in their breasts. They imagine always that their cases are "*coming on very soon—to-morrow, perhaps;*" for the bitter, heart-sickening lesson of legal procrastination is deepest graven, and survives all else in their blighted brains. Lem got to be regarded as one of those unfortunate beings. And then, even if he had got an opportunity to tell his story to anybody, the chances are that it would have been taken for a fiction of his imagination. Still he plodded on indefatigably, with his eyes always open for the wanted witness, and his one question ever trembling on his lips. His manner of operation was certainly not the best,—not the one that a skilful detective would have adopted,—but it was the best he knew; and sooner or later Providence is pretty certain to help those who endeavor for themselves as earnestly and well as they know how.

Once only he sought to make a divergence from the path upon which he had set out. He went to the police, thinking to ask their aid. The superintendent received him brusquely, demanding as soon as he put his foot over the threshold of the office:—

"Well, my man, what do you want?"

"I have come, sir, to ask some help here in finding out about the murder of Jacob Van Deust, of Easthampton, Long Island."

The superintendent referred to a book at his elbow, and replied curtly, "Man on that case now."

"Yes, I know there is," answered Lem, "but it seems to me that he's on the wrong tack, and—"

The superintendent did not trouble himself to hide his contempt for the criticism of an unprofessional, and a countryman at that, upon one of his force of detectives, and interrupted with the abrupt retort:

"Very probably. But I guess you are not likely to teach him his business. Martin!"—turning to his messenger—"Tell the captain I'll see him now."

Lem accepted this discourteous dismissal, and found his way into the street without anybody seeming to have noticed that he said, "Good-day, sir."

Singularly enough as it might appear, in view of the notoriety that Lem's question had obtained among the lawyers, but for a very excellent reason, nevertheless, the one man of all of them who could have responded "yes;" the one man of whom he was in search, had not in all this time heard that anybody was hunting an acquaintance of the Van Deusts and, though he was the only person in New York who had any direct business interest in the Van Deusts, knew anything about them or would have been likely to know of any important event happening to them, he had not even heard that Jacob Van Deust had been murdered. That one man was Mr. Pelatiah Holden. Of late years he had practiced very little in the courts. He had amassed a considerable fortune—one so regarded in those days, at least—by the exercise of his profession; and as he grew older and attained a high and deserved reputation by his ability, gradually drifted into the comparatively quiet, easy, and lucrative life of an office lawyer—one who gives counsel to other lawyers in difficult and important cases. His deep learning in the law, his wide knowledge of rulings and precedents, and his great caution in forming and framing opinions, gave weight and value to his advice, and put him in the position of a general who plans battles for others to fight, but seldom finds himself directly engaged in combat.

It was his custom to go to his office at an early hour every week-day morning; lock himself in a little inner room, the walls of which were covered with a magnificent legal library; receive there only persons who came on such important business as could not be attended to by Mr. Anderson, his old and able confidential clerk; have a lunch handed into him at noon precisely; and, at four o'clock to leave for his home somewhere in the upper part of the city. During his seclusion in that inner room, he was constantly busy, poring over law books, reading points submitted by counsel, and writing opinions. When a person was admitted to see him, the very atmosphere by which he was surrounded, was a warning against waste of time in idle conversation. Not one, of even his most intimate friends, would have dreamed of taking up his time with mention of a new lunatic haunting the courts.

So it was that Lem met him and passed him by in the street, unconsciously, over and over again, not even knowing that he was a lawyer. The young man was so uneasy, restless and unhappy, as the days flew rapidly by, and the time for Dorn's trial was drawing nearer—for the grand jury had found an indictment against him within a week after his commitment by the magistrate, and he was to be tried for his life at the next session of the court—that he could no more sleep at night than rest in the daytime, and was almost constantly strolling aimlessly about the streets, growing thinner, more careworn and despondent daily.

One evening, as he was passing the front of the old Chatham Street theatre, he was surprised to hear himself called by name, and turning, found himself face to face with Silas Thatcher. He had not seen the scapegrace for more than three years, had never been at all intimate with him, and hardly recognized him now, so greatly had his appearance changed. Silas was dressed in black cloth, wore a silk hat, flashing breast-pin and shining boots, had a moustache and goatee, and was smoking a long cigar. In all respects he was a good sample of the lot of a dozen or more fellows lounging near the theatre door, every one of whom was known to the police as a gambler or a thief, and most of them as deserving official notice in both characters. The vulgar affectation with which he sought to impress his rustic acquaintance, did not lacquer over the coarse blackguardism of his customary manners, and Lem, without well knowing why, felt an instinctive dislike for, and distrust of, him. Still, he stood and talked a little while,

telling the last news he had from home; that Uncle and Aunt Thatcher and Mary were all well; that Eben Stebbins had gone a-whaling; that the schooner "Pretty Polly," with Captain Marsh and three men, had been lost in a gale; that Dorn Hackett had come back and been arrested on suspicion of having murdered Jacob Van Deust—

"Murdered old Jake Van Deust! You don't mean to say that you folks down in that dead-alive little village, have had the sensation of a real murder!"

"Ah! yes. A terrible sensation, too, the killing and robbery of a poor, weak, old man, and the arrest of an innocent person for the crime."

"Let's go and get a drink, while you tell me all about it."

"No, thank you. I don't drink. But I can tell you all about it here, all the same." And he told the whole story, at least, as far as it was known to the public, instinctively suppressing, however, all mention of the evidence he hoped to find in the city.

"That handkerchief business will be likely to hang him, won't it?" asked Silas.

"It seems very serious to his friends."

"Mighty queer that he should have had the thing!—if he isn't guilty."

"And yet I am as sure as that I am alive this moment, that if they hang Dorn Hackett for that murder, they will hang an innocent man for the crime of another."

"Come, let's go and take a drink, just one. Take something light if you like. And then we'll go around and see some life. Come on. I want a drink."

"No, you'll have to excuse me, Silas. I never drink, and I feel pretty tired; and, I think I'll go to bed."

"Go to bed! now! Why, a man isn't a hen. Night is the only time to see life in New York. I've only been up a couple of hours or so. Come along, and I'll show you the elephant."

"No, thank you. I have no desire to see him. I'd rather go to bed. Good-night."

"Well, good-night,—if you will go."

Silas, when left alone, hastily entered the bar-room attached to the theatre, and called for a glass of brandy. While he was pouring out the fiery beverage, an acquaintance entered, and, looking at him with surprise, exclaimed:—

"Why, Silas! What the deuce is the matter with you? You look as if you'd seen a ghost!"

"Maybe I have. What'll you take?" answered Silas, dryly.

"Brandy," replied his friend, and the young man's looks were no more commented on.

XX.

RUTH'S LETTER.

When Lem reached the humble hotel on Pearl Street, at which he put up, he found a letter addressed to him in the clerk's rack. It had arrived while he was out that afternoon. No need for him to open it to know who it came from. One glance at the superscription was enough for him to see that Ruth's chubby little hand had guided the pen. Retiring to his little room he opened the missive, trimmed his solitary candle, and with a countenance of happy anticipation sat himself down to read.

"DEAR OLD LEM," she wrote, "I'm beginning to think that you are away an awful long time, and I'm getting real anxious about you sometimes. Perhaps you have found some handsome city lady that you think you like ever so much better than me, and have no idea of coming back to the village. If so, just mention the fact while I have some chance left. I hear that Deacon Harkins is looking out for a fourth wife, and who knows—But there, I won't plague you any more, you big, good-hearted, stupid dear. I know you won't fall in love with anybody but your little Ruth, any more than she will with somebody else than her big Lem, and I can answer for her. But there! I

haven't much time to write about you and I, for I've got something real serious to tell you, something that may be a great deal of help to you in what you are trying to do; that is, supposing you are trying what you started for, and not just to capture the handsome city lady. Mary has been to see Dorn in jail, and had a talk with him about the little elderly gentleman, and he has remembered something more than he told you that makes us both sure we have seen him, and would know him again; and it's a wonder to me that he didn't think of telling you, for he's a man you couldn't mistake. But then you men are all so flighty and slow to think about things, and you never get them right until a woman takes them in hand."

Lem scratched his head, looked perplexed, reread the long sentence, and then muttered to himself:

"Ah, yes! I see. Dorn has remembered something more—and it's the little elderly gentleman she and Mary have seen—and it's a wonder Dorn didn't think of telling me that something he has remembered—and the little elderly gentleman is a man I couldn't mistake. Yes, it's all clear now." And he read on:

"I remember him just as well as if I saw him only yesterday, and I'll tell you exactly how he looked. He wore a wig, very dark brown, nearly black, and very neatly brushed; and he had a shirt bosom with a frill—like those queer old heroes of the revolution in our pictorial book of American History; and his tall silk hat had a very wide crape around it; and he had a funny little breast-pin in his frill that looked like a square of glass with gray hair under it, and little pearls around it, like grandmother's brooch. He had on a stock, a very wide, stiff stock, that kept his head up very straight; and when he bowed he moved as if he was only hinged in the middle. He spoke very deliberately, and seemed to be afraid somebody would snap him up right off if he didn't say exactly the right word, and he appeared to be too cautious ever to say anything positive. He spoke of the Van Deusts as 'supposed to be brothers,' and when Dorn asked him what time it was, he looked at his watch and replied that, 'according to his information and belief it was eleven minutes past ten.'"

"Now I'm sure, Lem, that such peculiarities as his must mark him out; so that when you know them you will have little difficulty in finding him. Do

your best, darling, and make haste, for the time is getting terribly short for poor Dorn and dear Mary,—and yet it seems awful long to

"Your own little
"RUTH."

"This is serious. This merits consideration and dissection," said Lem to himself, spreading the letter on the table before him, and squaring himself to go at it as a study. It was nearly morning when he felt that he had fully mastered all its contents, and threw himself on his bed for a short and troubled sleep.

But the earliest lawyers on the street—those who snatch a subsistence from the dregs and scum of humanity thrown up daily by the currents of misfortune and vice, upon the strands of the police courts—saw "the Mad Avenger" already prowling about the vicinity of their offices long before the hour at which the civil and principal criminal courts would be opened for business. When the judicial mills commenced their grinding, he was within sound of their clatter, and from one to another he wandered, anxiously and wearily, as was his custom. When the day's grist was completed, and the grinders hurried away to their respective offices to prepare more grain for the morrow's grinding, he mechanically followed them.

It was getting late in the afternoon; he had not yet seen anybody approximating to the picture he had in his mind's eye—the portrait drawn by Ruth—and he was just arrived at that period of the day when he always felt most sick with disappointment, and most sorely tempted to give up the seemingly useless pursuit and go home. He stopped before the little hand-cart of a street fruit vender, which was drawn up to the curbstone, to buy an apple. While he made the purchase he heard the voice of a man, who halted just behind him, saying quickly:

"Ah! I was just coming up to see you. Are you in Fordyce vs. Baxter?"

"Not having been advised by my clerk," said a precise and deliberate speaker in reply, "that any papers in an action so entitled had been deposited in his hands, and having no other knowledge of such action than your present mention of its title, I believe that I am justified in saying, sir, that to the best of my information and belief—"

"Aha!" shouted Lem, wheeling around and seeing before him the living original of Ruth's very exact sketch—"You're the man I'm looking for!"

"What the—the—the—mischief do you mean, sir," exclaimed the little gentleman, warding off the hand that Lem stretched out to clutch his collar.

"It's the Mad Avenger," said, laughingly, the gentleman interested in Fordyce vs. Baxter. "He will ask you, in a moment, if you know the Van Deusts of Easthampton."

"Of course I will," retorted Lem, growing hot and angry, "I don't know why you call me the Mad Avenger—my name is Lemuel Pawlett, and I do want to know, for very serious reasons, if this gentleman is acquainted with the Van Deusts of Easthampton."

"And I reply that I am," answered Mr. Holden, sufficiently perturbed by the immediate excitement to forget his customary caution and make a positive statement without qualification.

"Oh! The deuce you are! Then there really are Van Deusts of Easthampton!" exclaimed the other lawyer, with genuine surprise and beginning to feel an interest in the affair.

"Thank God! I have found you, sir. Thank God!" ejaculated Lem, fervently, "for I believe you can be the means of saving an innocent man's life."

"Bless my soul!" gasped Mr. Holden—"But, here! This is no place for a consultation. Come up to my office;" and he began elbowing his way through the crowd that had already gathered.

"But *are* you in Fordyce vs. Baxter?" called after him the gentleman whose lucky inquiry had brought to Lem the good fortune of this meeting.

"No," Mr. Holden answered, still moving off.

"Then remember that you are retained for the plaintiff!"

"See Anderson about it," shouted back the little gentleman, disappearing with Lem in the big doorway of the stairs leading to his office.

It was with profound astonishment and genuine sorrow that the worthy lawyer heard of the murder of Jacob Van Deust, for he had achieved quite a liking for the younger of the two brothers.

"But," said he, "I am tempted to say that it seems to me somewhat strange that I have not been notified of the fact by the surviving brother."

"Old Peter is greatly broken down, sir; more shaken by the loss of his brother than any one would have believed he could be, seeing how hard and selfish he always used to seem."

"Ah!" replied Mr. Holden, meditatively, his eyes resting upon the mourning band of his hat on the table before him. "The rupture of life-long ties gives deep pain. We are such creatures of habit, if nothing more. We miss a face to which we have long been accustomed; a voice that we had thought was only in our ears, when it was in our hearts all the while. When the grave covers that face and there is only silence, or the sadness of its own echoes in the lonely heart, the world is no longer the same—But, there!—Don't talk about it any more. You have not yet told me how I can, as you said in the street, save the life of an innocent man."

"The man arrested for that murder, perpetrated at or about midnight, as is supposed, is the one you found in the road suffering from the consequences of a severe fall, and whom you helped to leave Long Island, in a disabled condition, nearly two hours earlier that night than Mr. Van Deust was killed."

"Ah! If I did not know of what the police are capable, I should be surprised at it."

"You know he is innocent, sir; and I know it, and Ruth, and Mary, his sweetheart; we all know it. But they would hang him if we couldn't prove it."

The reaction from his long sustained anxiety, the present excitement and his joyful emotion over finding the man upon whom he looked as Dorn's saviour, so affected the poor fellow that he cried like a schoolboy.

"Yes," assented Mr. Holden reflectively, "that is practically what the law seems to require sometimes—and it is hardly ever an easy thing to do. But,

come, my good fellow! Leave that crying for the girls you mentioned and give me all the facts you possess bearing on the case."

"I—I—can't help it, sir. Don't mind me—I'll be over it directly. I know it's weak, and foolish,—but I've been worked up so, fearing I wouldn't find you in time."

In a few minutes Lem recovered his self-control, and then it took but a very short time for the skilful lawyer to elicit every detail of the progress of Dorn's case. Lem was surprised at seeing him smile when the discovery of the handkerchief, the strongest point against the accused, as it was deemed, was mentioned, but did not dare to ask him why he did so. When the narration was concluded, Mr. Holden asked:

"When is his trial to come off?"

"On Tuesday next, sir."

"Tuesday next. H'm. Prosecution will take up first day; defence not be reached before Wednesday—and this is Thursday—leaves me four days to get through what I have on hand. Oh, Mr. Anderson!"

The door opened noiselessly in response to his loud summons, and the old clerk poked in his head.

"If Mr. Sarcher comes to retain me in *Fordyce vs. Baxter*, you will decline to take his papers unless he can wait for an opinion until after next week."

"Yes, sir."

"That is all, Mr. Anderson."

"Thank you."

The clerk bowed and retired his head, again carefully closing the door. Mr. Holden turned to Lem and said, cheerily:

"With Heaven's help, young man, we will save your friend's neck."

"Oh! I'm quite satisfied you will, sir, I'm easy in my mind about it, now that I've seen you. Did you know there's a schooner goes to Sag Harbor,

Tuesdays and Fridays, starting at five o'clock in the evening from Coenties Slip?"

"Yes, I know. I have taken it before, and will again, God willing, next Tuesday evening. Go home, see your friend and his sweetheart, and cheer them up, especially the girl. Tell them I'll—well, no; on second thoughts, you'd better say nothing about my evidence that you can avoid;—he would tell his counsel who must be, metaphorically speaking, an ass, or he would have kept his client quiet at the preliminary examination—and it might get to the other side. That might do harm. It is always unwise to let your antagonist in law know your weapons."

XXI.

THAT SWEET BOON—TRIAL BY JURY.

On the day that Dorn Hackett's trial commenced, the little court-house of Sag Harbor was by no means large enough to contain half the people who came from all the country around to attend it. From the neighborhood in which the murder had been committed, they seemed to have come in a body. Old acquaintances, neighbors, friends of the prisoner—who had known him since he was a child; who had heard as fresh the news that his father, William Hackett, had been swept overboard from a whaler's yard-arm and lost in a gale, and who had seen the drowned man's little orphan boy grow up to young manhood among them—were present by dozens; yet among them all one could hardly hear a few faint expressions of sympathy for him, or hope for the demonstration of his innocence. There is nothing for which ignorant people, particularly rustics, are so ready as the acceptance of the guilt of a person accused legally of a crime; nothing they resent so deeply as what they believe to be an attempt to deceive them by a false assumption of innocence. The discovery of the marked handkerchief in his possession, had been, to their narrow minds, conclusive evidence of Dorn's guilt and each man of them felt it an insult to what he deemed his intelligence, that Dorn had, just before that discovery, betrayed him into a temporary fear that they might not have the right man after all.

Deacon Harkins, who, by the way, had tried to have Dorn, as a child, indentured to him by the county overseer of the poor, as soon as he heard of

the drowning of the lad's father—a slavery from which the boy was saved by the kindness of a good old man, long since dead—was prominent in the crowd about the court-house, quoting texts and vaunting the foresight with which he had "always looked forward to seeing that young man come to a bad end." Aunt Thatcher, was of course, present, and—as might have been expected—vindictively exultant. Mary Wallace, having been summoned as a witness by the prosecution, was compelled to attend, and made her way through the throng to the county clerk's office, beneath the court-room, where she was given a seat to wait until she should be called. Happily there was still humanity enough among the rough people who were eagerly awaiting the conviction of her lover, to prompt some little sympathetic feeling for her; and, as she went by, they at least refrained from saying, in her hearing, that they hoped Dorn Hackett would be hanged. Aunt Thatcher was incapable of such delicacy and reserve. She had been saying that daily, and almost hourly, since she had heard of his arrest, and she continued to say it now, loudly too, until the disgusted county clerk ordered her to keep quiet or get out of his office, to which she had forced her way with Mary.

There was little difficulty in getting a jury, for in those days fewer newspapers were read than now are; fewer people sought to escape jury duty by deliberately "forming and expressing opinions relative to the guilt or innocence of the accused" in advance of the trial; and, above all, lawyers had not yet developed, as they since have, the science of delay at that point of the proceedings. Twelve "good men and true" were selected—perhaps a sample dozen as juries go. One of them heard with great difficulty; two kept yawning and dropping asleep from time to time; a fourth belied his looks, if he was not at least semi-idiotic; three were manifestly weak, simple-minded persons, devoid of moral force and easy to be influenced by a stronger will, and the remaining five were evidently men who doubtless meant to do right, but were obstinate to the verge of pig-headedness, and showed, by the countenances with which they regarded the prisoner, that they were already inimical to him. And before this "jury of his peers" Dorn Hackett stood, to be tried for his life.

It would be time and space lost to recite the thrilling opening speech of the prosecuting attorney; to tell how vividly he depicted the horrors of the crime that had been perpetrated; how artfully he seemed, by word and gesture, to connect the prisoner with the crime at every stage of its progress;

how scornfully he dwelt upon "the absurd story by which the murderer had sought to explain away the damning proofs against him, and which his counsel might have the audacity to ask this intelligent jury to believe," etc. It was more like a closing than an opening speech, and when it was ended, five of the jury looked as if they were satisfied that the proper thing to do would be to take the prisoner right out and hang him to one of the big elms beside the court-house.

Mr. Dunn's heart sank within him. What had he to make headway with against that speech, before those five men and with that fatal marked handkerchief ever fluttering before his eyes?

The hearing of the witnesses for the State continued slowly all the first day. All that had been sworn to before the committing magistrate, was repeated now, and there was really very little more, but that little was adroitly handled, and the temper of the jury was to make the most of it. Peter Van Deust produced a great effect when he gave his testimony as to the identification of the handkerchief belonging to his murdered brother, which was, in the language of the prosecutor, cunningly woven into questions "voluntarily, confidently, and impudently exhibited by the prisoner to sustain his preposterous story." Poor Mary Wallace had to go on the stand and testify that Dorn had been with her, walking and conversing, in the edge of the woods, less than half a mile from the Van Deust homestead, on the night of the murder, and that he left her about nine o'clock. Witnesses were brought from New Haven to testify to Dorn's arrival in that city, the morning after the murder, with his clothes bloody, head cut, and one ankle sprained; and to his admissions that he had received those injuries while running through the woods on Long Island the night before.

"Not," exclaimed the prosecuting-attorney, "as he would have it believed, long before the murder, but when he was fleeing red-handed, conscious that the brand of Cain was on his brow!"

The prisoner's counsel protested against this sort of interpolation of comments, as irregular and unfair, and the court sustained him in that view, but the majority of the jury looked as if they would have thanked the prosecutor for expressing their sentiments so forcibly.

Then other witnesses were called to prove, as experts, that a man would have time after the hour at which it was believed the murder was committed,—say, at midnight—to run to the Napeague Inlet, take a sail-boat and reach New Haven early the next morning. One, indeed, testified that he had tried and accomplished the feat.

And that was all the State had to offer. Still, the popular feeling was that it was sufficient.

"It would hardly amount to much before a city jury," said the prosecuting-attorney, in confidential chat with some other lawyers at the close of the day's proceedings, "but I guess it will be enough down here."

The jury, at the adjournment of the court for the day, gravely heard the injunction of the judge, that they "should refrain from talking to anybody about the case," and then went out and discussed the evidence with their friends and neighbors.

"The handkerchief must hang him; that's clear," said everybody. "How could he have had it if he hadn't killed the old man?"

Dorn was remanded back to the jail, where Mary had a little interview with him, during which she wept almost constantly, and he spent all his time in trying to console her with loving words and foolish hopes, so that neither of them said or did anything particularly reasonable or worthy of the telling here. And then Mary went back to the room that had been assigned her in the tavern, and cried so all night, that in the morning her eyes were red and swollen almost sufficiently to justify in some measure the gratified assurance of Aunt Thatcher, that she "looked like a fright."

As for Lem Pawlett, it must be admitted that he acted in what seemed to his friends a most reprehensible and unaccountable manner. Following even too strictly the injunctions of Mr. Pelatiah Holden about saying nothing to anybody, he would not even give them the satisfaction of knowing positively that he had found his man, and that the much needed evidence would be forthcoming in due time. He did go so far, under Ruth's most severe pressure, as to assure her that it would "be all right," but beyond that the little maiden found that for once her power was set at naught. He felt resting upon him a responsibility that temporarily out-weighted his love,

and the gravity of his stubborn silence awed the girl, and made her look upon him with a new respect. But how he suffered! Bearing alone and in silence his weighty secret, made him feel that virtually Dorn's salvation depended upon him, and should anything happen by which that evidence would not be forthcoming, and Dorn be hanged in consequence of its failure, he would be neither more nor less than the executioner of his friend. The next most unhappy man in the town that night, after the prisoner himself, was Lem Pawlett. When, from sheer exhaustion, he fell asleep, nearly at daylight, he had a horrid dream that he was tied hand and foot, and powerless to speak, while his witness was fleeing swiftly away from him on horseback, and that Dorn was standing before him, under the gallows-tree, with a noose about his neck and a horrible look of haunting reproach in his eyes. From that dream he awoke with a howl of fright, and, fearing to go to sleep again, sprang up, dressed himself and hurried out into the deserted main street of the still slumbering town.

He took his way toward the wharf. "Sometimes," he said to himself, "the packet from New York gets in early; hardly so early as this, but then she might have had an extraordinary good breeze last night." His road led him by the jail. He shuddered as he passed the grim, gray building, for never before had it seemed to him so big, so strong, so terrible. Not one living thing did he meet in his lonely walk, and when he reached the wharf the most profound silence surrounded him. The tide was rising, but without the sound of its accustomed swash on the piles. Its influx was indicated only by a slight ripple around the obstacles it met. As far out as he could see the surface of the bay was as smooth as a mirror. Going down some slimy green steps to a boat-landing, he dipped one hand into the water, and held it above his head. There was not even a breath of air moving. With sullen resignation he seated himself upon a pile of lumber and waited.

The dawn appeared, then suddenly the sun rose up behind the town, casting upon the glassy surface of the water before him long shadows of the tall warehouses, and of the people who now began to busy themselves in the vicinity. Not the smallest ripple broke the outlines of those shadows. He looked anxiously up at the sky. Ah! with what joy he would have seen, in the direction of New York, a myriad of those ragged fleecy clouds which sailors call "mare's tails," and believe to be sure harbingers of wind. But

there was not one to give him hope. The sky looked like a monster dome of unflecked, burnished brass. It was high tide, and a dead calm.

With a groan he turned away and retraced his steps to the tavern. An unwonted excitement began to be perceptible in the streets, the continuation of that of the preceding day. Already people were flocking in from the country, determined to be nearest the court-room doors when they were thrown open. The tavern bar-room was crowded, even before the sleepy bar-keeper had his eyes well rubbed open, and a sort of general picnic scene was presented by the people breakfasting on cold lunches in the shade of the elms.

XXII. IN THE NAME OF JUSTICE.

When the court was opened that morning, at the usual hour, and the expectant multitude rushed, scrambled, and tumbled in, to fight first for front places and then for any place at all; the lawyers—who had entered by the judge's private stairway—were already seated inside the railing, chatting and laughing with cheerful indifference; the prisoner, looking worn and haggard, was seated in his place, and the two drowsy jurymen were already commencing to yawn.

The defence began the presentation of its evidence immediately. Mary Wallace was recalled to the stand to testify that when her lover was leaving her on the evening of the night of the murder he told her that he was going back to New Haven in Mr. Hollis's sloop. But the prosecuting attorney objected, and the court ruled that the prisoner's statements at that time were not admissible. Mr. Hollis, of New Haven, bore witness that Dorn had come over from New Haven with him that evening, had said that he might not return that night, and did not return to the beach at the appointed hour to accompany him back. Altogether, Mr. Hollis's evidence was rather injurious than otherwise, and the prosecuting attorney looked pleased as he made a note of it. Lem Pawlett was called to testify that the tracks left by the murderer in the soft earth of Mr. Van Deust's garden were those of a man wearing high-heeled, fashionable boots or shoes, and having much smaller feet than Dorn Hackett; but as he had taken no measurements of them, and

only judged from memory, and didn't know the size of Dorn's feet, and was, as he readily admitted, a friend of the prisoner, the prosecuting attorney in cross-examination made it to be inferred from his manner, that there was no doubt in his mind that the witness was deliberately perjuring himself in the hope of helping the case of the accused. And at least five of the jury responsively looked as if that was the way they felt about it.

Then witnesses were put forward as sea-faring experts to prove that on the night of the murder there was almost a dead calm on the water, such as would have made it impossible for a sail-boat to go from Napeague Inlet to New Haven in the time that it was claimed by the prosecution Dorn had gone. But when the prosecuting-attorney got to bullying and confusing them in cross-examination, he made them say that they could not really swear whether the calm was that night, or the night before, or the night after, or two or three nights distant either way; and one of them even admitted that perhaps it might have blown a gale on that particular night, for all he was now prepared to make oath to about it. Simple-minded people, who do not know how much more lawyers bark than bite, when going through the ordeal of cross-examination are apt to feel much as the toad proverbially does when he finds himself under the harrow.

Things were going swimmingly for the prosecution. The defence was forced to fall back upon its last and always weakest intrenchment—proof of previous good character and reputation. A few persons were found to swear that they had known Dorn Hackett from his boyhood, and had always considered him honest, industrious, truthful and kind-hearted, and they were confident that such was his general reputation. Uncle Thatcher was one of those witnesses, at his own request, and the prosecuting attorney, who had, in some mysterious way, learned much more than he should have been permitted to know about the witnesses for the defence, asked him sneeringly:

"Did not this excellent young man, about three years ago, perpetrate an unprovoked and brutal assault on your son?"

"No, sir," replied, the old man sternly. "He thrashed him, as he deserved, for a contemptible action."

But all those witnesses to good character had to admit that they had known nothing of Dorn for three years past, during which time he had been away from the village—whaling, it was said, but for all they knew to the contrary he might have been living the most vicious and ill-regulated life in some big city. Then a stronger witness in that direction took the stand, Mr. Merriwether, of New Haven, owner of the schooner of which Dorn was master, and he could, and did, swear positively that he knew Dorn had been on a three years' whaling voyage, had since been steadily in his employ, and was in all respects moral, sober, and an entirely trustworthy young man of irreproachable character. The prosecuting attorney seeing that this witness was one who could not be easily bluffed or confused, contented himself with asking:

"You are his employer, are you not?"

"Yes, sir."

"And interested in getting him back to work for you, as you deem him a good sailor?"

"Yes, sir. But—"

"Never mind. That will do, sir. I am through with this witness." And the prosecutor sat down, looking with a scornful smile toward the jury, as if he would have said to them confidentially: "You see this man cares nothing whether the prisoner is guilty, or not, of all the crimes forbidden by the Decalogue, if he only serves him well."

In those days, a person accused was not permitted to go upon the stand in his own behalf and give his testimony, under the sanctity of an oath, as is now allowed him by the law. Then, he might be granted the privilege of making his statement, but it would be merely a statement, and the prosecution was very careful always, when a prisoner thus spoke for himself, to impress upon the jury that his unsworn affirmation of innocence was of no value whatever, when weighed in the balance against other men's affidavits. Stress would be laid upon the time and knowledge the accused had had to enable his preparation of his own version of the affair, and undue prominence and importance given to the fact that he could not be cross-examined. In this way an artful prosecutor could generally neutralize all

good effect the accused might otherwise produce, if not, indeed, make the poor wretch's asseverations of innocence absolutely harmful to him, by stirring up the suspicion, antagonism, and secret consciousness of infallibility in the minds of the jury, who resent attempts to deceive them.

Dorn was duly warned of this, yet he persisted in demanding to be allowed to tell his own story, and the court granted him permission to do so. He told it simply, clearly, and truthfully, as he had told it before to Lem, to Mary, to his lawyer, and to the magistrate who committed him, but he made no new converts to his innocence now—unless it might have been the clear-sighted and experienced old judge on the bench, who believed that he heard the ring of truth in the young man's voice, and saw honesty in his frank, manly face.

But at the conclusion of the statement, as Dorn left the stand and returned to his seat by his counsel, the prosecuting attorney silently held aloft before the jury the marked and identified handkerchief, and that action was more conclusive in its effect upon their minds than all that the prisoner had said. Looking upon their faces, the lawyer for the defence murmured to himself, "We are lost!"

As the day wore on Lem Pawlett was in agony, for his witness did not appear. It made him dizzy and sick to see one witness after another leaving the stand in such rapid succession, for he did not know how soon the supply of them would run out, and the weak defence be compelled to close before the one upon whom all depended should make his appearance. "Why had he not come? The boat was due many hours ago, and had not yet arrived! Becalmed, doubtless, on this one day of all the days in the year. Perhaps he might not be aboard. He might be sick. What if he should be a cunning villain, the real criminal, for all his smooth exterior, who had purposely given that handkerchief to Dorn to cast the guilt apparently on him? He smiled when it was mentioned. And now he might be flying far away." These thoughts almost maddened Lem. Bitterly he reproached himself that he had not staid in New York and kept his witness under his eye until the last moment, and brought him along by force, if necessary. Again and again he was tempted to make his way to Mr. Dunn, and urge him to fight the day through by all means; but each time he remembered what Mr. Holden had said the prisoner's counsel must be, and refrained. Parched with thirst, and blazing with fever, yet with a cold perspiration breaking out all over him,

poor Lem could hardly understand half that was going on. But when Dorn's lawyer arose and said, "May it please the court, the defence rests," the words came to his ears like a clap of thunder. It seemed to him that that was the last moment of grace, and he staggered to his feet, trying to say something; to cry a halt; to appeal to the judge for time; to do, he did not know what. But his tongue clave to the roof of his mouth, and a deputy sheriff, seeing him standing there, waving his arms and looking as if he was about to speak, shouted at him with such an awful voice, "Silence in the court," that he sank down, stunned and speechless in his place, as helpless as he had been in that awful dream of the night before.

The prosecuting attorney began summing up to the jury. If he was forcible in the opening, he was terrible now. Of course he assumed that a clear case had been made out, as prosecutors always do; that "there was no moral doubt of the guilt of the accused, any more than if the jury had actually beheld him battering in the skull of his aged victim, wiping the dripping blood from his hands upon the raiment of the corpse, and clutching the gold, for lust of which he had done this hideous deed." [Five of the jury looked as if they quite agreed with him; three others glanced timidly and furtively at the faces of the five, as if to read there what they too should think about it; the sleepy men were very wide awake now, having had a good nap while the evidence as to character was being introduced; and the deaf man had both hands up to his ears to enable him to hear better, for if there is anything that country people do love, it is a good strong speech.]

In the midst of one of his most vigorous declamatory efforts the eye of the prosecutor caught sight of the judge, who was sitting with upraised gavel and a look as if he was only waiting for the end of a sentence to arrest his progress. The speaker stopped, and the judge, laying down his gavel, held up a note and said:

"I am in receipt of a communication which is, if written in good faith—that is, by the person whose name is signed to it—of so very important a character, and has such a decided bearing upon the interests of justice in this case, that I feel it would be in the highest degree unwise to ignore it. I will therefore ask the prosecuting attorney to have the kindness to at least postpone for a short time the continuation of his address to the jury. The court will now take a recess for half an hour."

The densely packed and excited audience hardly waited the conclusion of the sheriff's formal repetition of the formal order of the court, to break out into a loud murmur of exclamations, conjecture, and discussion as to what the important communication might be. The judge, upon rising from his seat, made a sign to the prosecuting attorney and the counsel for the defence to accompany him to his room, and the trio went out by the private door, which they closed behind them.

"What is it, Lem? What do you suppose they are going to do now?" Ruth asked anxiously of the young man, who sat in a semi-inanimate condition at her side, and who actually had not heard a word of what the judge had said. He started from his dream, into which reality had again plunged him, and replied miserably:

"I don't know. Hang him, I suppose."

"Don't talk nonsense, Lem. What's the matter with you? Wake up. Didn't you hear what the judge said about his receiving an important communication that had a decided bearing, and all that?"

"Did he?"

"Yes, 'a decided bearing upon the interests of justice in this case.' Those were his very words; and he held up a letter."

"Then it's all right now, Ruth! All right at last! He has come! He has come!"

"Who has come?"

"The man who will save Dorn Hackett."

XXIII.

TURNING OF THE TIDE.

It seems a little strange to some people that a prosecuting attorney should so hungrily devote himself to the conviction of an accused person, even when, as is sometimes beyond question, he feels in his heart that the individual against whom he is exerting all the force of his trained legal ingenuity, eloquence, and mental power is, in fact, guiltless of the crime alleged

against him. If his gains depended upon his success in obtaining a conviction, many who are accustomed to look upon pecuniary interest as a sufficient excuse for almost anything not absolutely prohibited by law, would understand him better. But such is not the case. His salary is the same, whether he succeeds in hanging a guiltless unfortunate or not. Success, in many cases, may help him to re-election: but that is not always a serious consideration. Why, then, when he cannot convict by clear proof of guilt, does he call to his aid the technicalities of law, the power of precedent, and all that may enable him to even prevent the prisoner accomplishing that herculean task—the proving of his innocence? Simply because of the development in him—and the conscious possession of the widest license in its exercise—of the hunting instinct that is inherent in all carnivorous animals, man included. He hunts the accused down to death, with not even the cannibal's excuse of wishing to eat him, but that he may have the joy of triumph in the achievement, and that his reputation as a hunter may be enhanced,—as some men used to kill buffaloes on the plains, as long as there were any, simply for the sake of the killing. In other circumstances and relations of life he may be gentle and kind-hearted; but put him in the chase, and he knows no pity. Perhaps there are times when, after a conviction, he secretly says to himself:

"Thank God it was the jury's work, not mine! I did not convict him!"

But he deceives himself. The average jurymen, even one who is without prejudice and means to do rightly, is but a tool of the most cunning and able of the two lawyers pitted against each other before him. Some drops of the innocent blood the jury sheds must cling to the hands of the prosecutor.

When the court resumed its session, after the brief recess, another person sat within the railing among the lawyers, a little elderly gentleman, at sight of whom Lem Pawlett almost wept for joy, and the prisoner's heart felt a thrill of hope.

Dorn's counsel formally announced to the court that since the closing of the defence new and most important evidence, completely demonstrating the innocence of the prisoner at the bar, had been put in his possession, and he asked that the court grant permission for the reopening of the defence and the admission of this testimony.

The prosecuting attorney argued long and earnestly against the introduction of any further evidence at the present stage of the proceedings. In view of the high character and standing in the profession of the proposed witness, who had been made known to him in the judge's private room, and with whose reputation he was well acquainted, he did not dare to cast a shadow of suspicion upon the proposed evidence as manufactured and unworthy of belief or consideration. Evading that issue, he confined himself to opposing as informal, irregular, and liable to be viewed as a dangerous and evil precedent, the reopening of the case. Even if improperly convicted for lack of this evidence, the prisoner, he argued, would still have his relief in a new trial, which the Court of Appeals would be sure to grant if the new testimony was indeed material.

Mr. Dunn made a strong plea for the accused against the injustice of condemning an innocent man to await in prison, under the shadow of a sentence of death, and in an agony of suspense, the slow action of the Court of Appeals, rather than disturb the mere formality of a trial.

Finally, the judge ruled—as he had intended to before either of the lawyers said a word—that the new evidence should be admitted.

The little elderly gentleman, responding promptly to the crier's call for "Pelatiah Holden," took the stand, was sworn, and testified:

"My name is Pelatiah Holden; I reside in New York, and am a lawyer by profession. I have been the legal adviser of the brothers Peter and Jacob Van Deust in certain money matters; and, upon business connected with their affairs, visited their house on the evening of the 19th of July, coming from New York by boat to Sag Harbor and thence riding over on horseback."

"That was the night upon which Jacob Van Deust was murdered, was it not?" the prisoner's counsel interposed.

"To the best of my present information and belief the murder was perpetrated on the night of the 19th, or morning of the 20th."

"Yes, sir. Proceed, sir."

"I remained with the Van Deust brothers, taking supper with them, receiving their signatures to some papers, and holding a consultation with them in

regard to the investment of certain monies belonging to them jointly, until, as nearly as I can now remember, about fifteen minutes before nine o'clock in the evening. They pressed me to remain all night, which I declined to do, as I had business of importance to attend to in New York, for other clients, and was desirous of returning as speedily as possible to the city. When I took my departure Jacob Van Deust accompanied me to where my horse was hitched in the lane, and we stood there talking a few minutes. There was no wind stirring, and the mosquitoes annoyed me very much. In switching them from the back of my neck with my handkerchief I dropped it accidentally, and the horse chanced to step upon it, trampling it into the dirt of the lane. Seeing that it had been rendered unfit for present use, Mr. Jacob Van Deust was kind enough to offer me the loan of a clean one which he had in his pocket, and I thankfully accepted it. I mounted my horse, said good-by, and set out upon a new road that Mr. Van Deust—the younger brother, I mean—had recommended to me as shortening considerably the distance I had to travel.

"I had ridden, as nearly as I can judge, about a mile, or perhaps only seven-eighths of a mile, when, in passing through a cutting that depressed the roadway to a depth of nine or ten feet below the surface of the ground on either side, I found, lying upon the ground and groaning, a young man."

"Do you recognize that man among those here present?"

"I do, sir. It was the prisoner at the bar. He informed me that having been unacquainted with the existence of that new road, he had just sustained a severe fall into it. His injuries seemed to corroborate his statement, at least so far as the severity of his fall was concerned. His scalp was badly cut in at least two places, and he was bleeding profusely.

"When I assisted him to rise he found that one of his ankles—the left, I believe—was so seriously sprained that he could not bear to rest his weight upon it, and could not walk a step without assistance. I used the clean handkerchief which was in my possession, together with one he had, to bind up his head and stanch the flow of blood, after which I supported him to the beach, where he hoped, he said, to find a small vessel to take him to New Haven, where he resided. But he was only able to move very slowly, and when we arrived at the water's edge no vessel was in sight. While we were

debating what was best to be done with him, under the circumstances, a small fishing-boat came within a short distance of the shore, and the person directing its movements responded to his call. He offered the person in the boat—who appeared to be an old man, accompanied by a boy—the sum of ten dollars to take him over to New Haven, which offer was accepted. I assisted him to enter the boat, and, when it had sailed away returned to where I had left my horse tied to tree, remounted him, and prosecuted my journey homeward."

During the giving of this evidence, a stillness prevailed in the court-room as if the speaker had been alone, and when his voice ceased there was such an enormous sigh from the crowded audience as if all were at once exhaling the pent-up breath they had not dared to free before for fear of losing a word of what he said. Five jurymen and the prosecuting attorney looked equally disgusted.

"At what hour that night did you last see the prisoner?" asked Mr. Dunn.

"At twenty-seven minutes past ten o'clock."

"In a small boat, sailing from the shore?"

"Yes, sir. Very slowly, however, as there was very little wind."

"From your knowledge of his condition at that time, do you believe it would have been possible for him to have returned that night to Mr. Van Deust's, entered that house, perpetrated the murder with which he is charged and made his escape?"

"No, sir. He was very weak from loss of blood, and I know, from personal examination, that his ankle was so severely sprained that it would have been a physical impossibility for him to have done what you said."

"Ah! you say that you examined his ankle. Did you notice at the time what kind of shoes he wore?"

"I did. He had on the low, broad, soft shoes, with hardly any heels, which sailors customarily wear."

"That is enough, sir. Thank you. Take the witness," said Mr. Dunn, with an air of triumph, to the prosecuting attorney.

That official did not seem to care about taking the witness. He knew that it was a master in the art of cross-examination who was thus lightly turned over to him, and had no hope of entrapping him or shaking his testimony. Still, he had to make some show.

Indifferently he asked: "Of course you have no idea of who the old man in the boat was?"

"To the best of my information and belief, his name was Jabez Sanborn. I asked him and that was what he told me."

Jabez Sanborn! Why, everybody around Sag Harbor knew about him; a shy old man, reputed a miser, who lived with a lad, his grandson, in a hut in the woods and was known to be addicted to wandering all along the coast at night, in a little fishing-smack, on errands best known to himself. Yes, the most likely man in the world to be met under just such circumstances was old Jabez Sanborn. And the least likely man to hear that a murder trial was going on in which he might be an important witness—or perhaps to care if he had heard it—was also old Jabez Sanborn. The prosecuting attorney felt that he had not drawn a trump that time at least. While he cast about mentally for something else that he might ask the witness, with at least the minimum of harm to his side of the case, a startling diversion occurred to interrupt the proceedings.

Old Peter Van Deust, who had been sitting near the prosecuting attorney and directly in front of the witness, suddenly sprang to his feet, walked up to Mr. Holden, clutched with trembling fingers the seal that dangled from his watchguard and, after examining it a moment, cried shrilly:

"It's all a lie! All a cunningly made up story! He is an accomplice of the assassin! This was Jacob's seal. I'll swear to it!"

Almost everybody had jumped up in the excitement of this interruption, even the sedate judge was standing, leaning over his desk to get a better view of what was going on before him but below his range of vision, and there was a deafening chorus of exclamations from all sides; but above all arose the sharp voice of Peter Van Deust, crying:

"Arrest him! arrest him! I demand the arrest of this man as an accomplice!"

The only tranquil person in the assemblage was Mr. Pelatiah Holden. He was surprised at his client's outbreak, but only for a moment. Then, blandly saying to the almost mad old man who stood before him, shaking a long, lean finger in his face, "Mr. Peter Van Deust, you seem to be excited."

He very calmly drew his watch from his fob-pocket and with the seal attached to it, passed it up to the judge. The seal was a heavy, square onyx, with a foul anchor engraved on one side.

"I'd swear to it among a thousand," shrieked old Peter. "It belonged to my father when he was in the navy. He left it to brother Jacob. It was stolen by the thief who murdered him."

The judge rapped his gavel until order was restored in the court-room, and old Peter had been fairly dragged down into a seat by the prosecuting attorney, who was nearest him—after which, addressing the witness, he asked:

"How did this seal come into your possession, Mr. Holden?"

"Very simply, your Honor. But before I relate how, permit me to request your Honor to issue strict injunctions to the officers at the door to permit no exit from this court-room or communication by those within to persons on the outside."

The judge was evidently surprised, but his respect for the well-known and honored Mr. Holden was sufficient to induce him to comply with the request without asking its reasons. When the necessary instructions had been issued to the court officers, Mr. Holden resumed:

"About three weeks ago, while I was taking lunch one afternoon at Windust's—a very popular and well conducted restaurant on Park Row, New York—a young man came to the box in which I was seated and offered this seal for sale. I am, as a rule, averse to the purchase of personal property from unknown persons and in an irregular way, but this young man told a melancholy story of his present need for money for the sake of a widowed mother and sister, said that the seal had belonged to his father who was a naval officer and asked for the article a price that was at least its full value. That influenced me to purchase it. I reflected that if it had been stolen it would have been, in all probability, offered at a cheap price to effect ready

disposal of it, whereas if he really needed money, as he said, for his mother and sister and the thing honestly belonged to him, he would naturally try to get as much as he could. So I gave him seventeen dollars for it and have since worn it."

"What," asked the judge, "was your reason for requesting the careful tyling of the doors before making that statement, Mr. Holden?"

"Because I recognized to-day, in the court-yard without, as I was entering this building, the young man from whom I purchased this seal."

"You believe so!"

"I am certain of it. If your Honor will permit an officer to accompany me, I believe that I will be able to bring him before you in a few moments. When I saw him he was seated at the root of an elm tree near the door, and alone."

An officer was directed to accompany Mr. Holden and they went out together by the private staircase. The curious throng in the court-room, unwilling to lose a single incident of the eventful drama unfolding itself before them, struggled hard to get out and follow the officer and his guide, but were not allowed to do so, and returned to their seats with a sense of injury. Everybody was intensely excited. The prosecuting attorney leaning over the judge's bench held a long and earnest conversation with him. The prisoner and his counsel whispered together. The jury jabbered to each other so that even the idiotic-looking one among them seemed to awake to an interest in the proceedings.

Suddenly the little door behind the judge was flung open, and Mr. Holden entered, followed by the officer and a third person—a young man, attired in a flashy sort of vulgar fashion, and wearing a dyed mustache and goatee. Many audible exclamations of astonishment were uttered among the audience, numbers of whom recognized this new actor thus brought upon the scene.

"That, your honor," said Mr. Holden, "is the young man who sold to me the seal which you now have before you."

XXIV.

THE HAND OF PROVIDENCE.

"What is your name?" demanded the judge of the young man thus brought before him.

The fellow hesitated an instant, and a lie trembled on his lips; but then looking around and seeing many who could identify him, he knew that falsehood would be useless, and sullenly replied:

"Silas Thatcher."

"Where do you live?"

"On Hester Street, near the Bowery, in New York."

"What is your business?"

"Haint got none."

"What have you to say in reply to the statement which you have just heard made by this gentleman, to the effect that you sold this seal to him?"

"Nothin'," answered Silas after a little hesitation.

"Nothing? But do you not understand, young man, that this may be a very serious matter? I do not ask you that you may criminate yourself in any way, but with the hope that if you have any reasonable explanation to offer you will not withhold it. How did this seal come into your possession?"

Silas paled, was visibly perturbed, and hesitated longer than before; then responded doggedly:

"I haint got nothin' to say. I want a lawyer, I do." The judge was silent for a moment, then replied drily.

"Of course you are entitled to counsel. You will stand committed for further examination. Mr. Sheriff, adjourn court until the usual hour to-morrow morning."

It was a loving and a hopeful interview that Dorn and Mary had at his cell door that evening, and Mr. Holden had the pleasure of being present during at least a part of it, when he received the heartfelt thanks of both for his opportune aid in their darkest hour. Peter Van Deust, whose wits were manifestly failing, had not seemed to comprehend what was done in the court-room after he had sustained the violent mental shock of recognizing his murdered brother's seal, and had clamored, at the adjournment of the court, for the arrest of the New York lawyer. But the judge smilingly replied, that he would himself be responsible for the attendance of Mr. Holden, whenever it might be required, and had gone away down the main street to the tavern, arm in arm with that gentleman; a sight that had fairly stunned poor old Peter. After dinner Mr. Holden paid his visit to Dorn's cell, and the judge said he, too, would like to go along "but for the looks of it," as he "considered Dorn now virtually a free man, and had all along suspected that he was an innocent one."

The prosecuting attorney was alone in his office that evening, looking over a *resumé* of another case, that of a mere horse-thief, which would succeed Dorn Hackett's in order of trial—for he had already given up all hope of hanging Dorn—when the sheriff entered, with an air of mingled eagerness and caution, to inform him, in a sort of melodramatic whisper:

"Silas Thatcher's father has asked permission to see his son in his cell, and I have had him delayed until I could tell you. Do you wish to overhear their interview?"

"I—rather think—I'd like to," answered the prosecutor, meditatively. "I shall have him in hand before long, no doubt, and might as well know beforehand what he has to say for himself."

The men passed together through the sheriff's office, and by a private entrance therefrom into the rear part of the jail, first taking off their boots that their steps might not be heard on the stone floor.

When they entered the corridor, along one side of which the cells were located, they moved with caution, and noiselessly entered a dark and unoccupied cell adjoining that in which Silas was confined. After a little quiet fumbling along the wall, the sheriff found the end of a string, which he pulled, thus conveying to his assistant in the front office of the jail,

where Uncle Thatcher was waiting, a private signal that all was ready. In a few minutes more the grim old man was shown in by the jailor, and permitted to enter his son's cell, the door of which was locked upon him. Every sound made there was clearly audible where the prosecutor and sheriff were.

Silas, to whom the interior of a prison was not altogether a novelty, had laid down with a sort of philosophical content upon his little cot bed, but sat up, somewhat surprised, when his father appeared. The jailor put upon the stone floor the tin candlestick holding a tallow candle which he had carried in, and went away.

For some moments neither father nor son spoke a word. The old man was the first to break the oppressive silence.

"So," said he, "this is where I find you at last."

"Yes, it is, and what of it?" retorted Silas sullenly.

"My God! How I have dreaded this shame!—this horror! How the fear of it has haunted me, day and night, for years!"

"If you've come here for to preach to me, why, you might as well drop it; that's all. I ain't no chicken. I'm a man, I am, and game for all there is in the pot. I ain't afraid. I don't want no snivellins around me!"

"Silas, I haven't come here either to preach or snivel. I have come to learn, if I can, whether the agony and blighting shame of seeing a son hanged is likely to be mine or not."

The young reprobate winced visibly at his father's plain speech, and it was with a violent effort, belied by his pallid lips and quavering voice, that he assumed sufficient bravado to reply:

"What's the use of making a fuss about a feller's getting into a little scrape? I'll get out of it all right. All I want is a good lawyer. It might happen to any feller to get into a hole. Fellers get into 'em all the time and get out of 'em again. This morning everybody thought Dorn Hackett was in the worst kind of a hole, but to-night the jailor tells me everybody says he's bound to get out of it."

"Dorn Hackett was innocent. Are you?"

Silas hesitated a moment before he replied:

"Course I am! Every fellow's innocent until he's proved guilty."

"Where did you get that seal?"

"A—a—feller gave it to me."

"Who was he?"

"I dunno—never saw him before."

"Silas, you are lying to me."

"Well, what business have you got to come here pestering me with questions, as if you was trying to catch me?"

It was hard work for the old man, who was naturally of rather a violent temper, to keep his hands off his rebellious son; nevertheless, he restrained himself.

"Silas," he exclaimed after a brief pause, "there is blood upon your hands."

"Where? No, there isn't! They're clean!" ejaculated the young man in a tone of fright, starting to his feet and nervously examining his hands.

"Fool!" said the old man, with contempt, "did you think I meant red drops that human eyes could see? No. But in the sight of God they are dripping with the stains of a foul murder. I read your guilt in your skulking eyes, your impudent assumption of brazen effrontery, your falsehoods. Ah, you will not get out of this hole as easily as you pretend to think. There is but one road open from here before you."

"What is that, father?" asked Silas, tremblingly, for he had already begun to lose the fictitious nerve that had hitherto sustained him.

"The gallows!" responded the grim old man, sternly.

"Oh, for the Lord's sake, don't talk like that!" pleaded the young wretch, with a piteous howl. "It's all your fault, anyway. You wouldn't let me have

any more money, and I was hard up. You told me the Van Deusts had a mint of money. I didn't mean to harm anybody, but he jumped out of bed and clinched me; the jimmy was in my hand, and I was afraid of being caught, and I—Oh! my God! what have I said? You've got me all unnerved, with your cursed croaking. I didn't know what I was saying. It wasn't true. I haven't been in a mile of Van Deusts' for more'n three years. I don't know who killed Jake Van Deust any more'n you do. Dorn Hackett did it. Why don't they hang him, curse him! and be done with it!"

He was crying, trembling. The unhappy father bowed his face in his hands and was silent a long time, while Silas went rambling on:

"I can prove I was in New York that night. There's lots of the fellers will swear me out of it. What if I did have the seal? Didn't Dorn have the handkerchief? I know where I got it. I buy'ed it one night from a stranger that got broke in a faro bank. I can get fellers to swear they see me buy it. All I want is a lawyer. You've got to get me one—a good one. You will, won't you? I'm broke or I wouldn't ask you. I've had awful bad luck lately. But I'll pay you back when I get out. And you wouldn't see your son h—h—hanged, would you?"

Uncle Thatcher raised his head and, looking fixedly at his son, asked slowly:

"Why did you come here to-day?"

"I don't know," answered Silas, almost with desperation. "Because I am a damned fool, I suppose. I met Lem Pawlett in the city, and he told me about the trial, and—somehow—I had to come. I couldn't keep away."

"And you still think that a lawyer could get you out?"

"Oh, yes. A good, sharp lawyer, from New York. I know of one that's up to all the dodges. He gets lots of the fellers off. He'd clear me, I'm sure of it."

"And you do not see God's hand driving you here and giving you up to man's justice? You think to contend against His will? To employ a lawyer who shall shield you from the fate He has decreed? Foolish and unhappy boy! you have sown and the day of harvest is nigh; the harvest for both of us: for you the full sheaf of ripe dishonor and death; for me the gleanings of

bitter shame and grief. And to the Lord of this harvest we may neither of us say 'nay.'"

As he spoke he arose from the cot, where he had taken a seat early in the interview, stood before his son, and continued:

"It is not probable that I shall ever see you again. In due course of time you will be tried, convicted, and hanged, and I shall hear of it all: that will be enough for me. As far as other people will allow me to, I shall endeavor to forget that I ever had a son. You have simply to continue, as for years past, so far as affection or respect for his counsels were concerned, in forgetting that you have a father. Send me no gallows-tree messages of penitence and love. Carry your penitence, if you have any, to your God; and may He, in his infinite knowledge and justice, grant you such mercy and pardon as you deserve."

With this farewell, the wretched father took his departure, preserving his sternness of demeanor as long as he was in his son's sight; but in the jail office without, he gave way to his natural grief, which he could repress no longer, and much time elapsed ere he recovered himself sufficiently to go home. Silas, left alone in his cell, threw himself upon his bed, on his face, alternately weeping, cursing, and praying, in a delirium of remorse and fear, and no sound of stealthy footsteps leaving the adjoining dungeon reached his ears.

XXV.

THE LESSON OF PETER VAN DEUST'S LIFE.

Immediately upon the opening of the court, the morning after Silas Thatcher's arrest, the prosecuting attorney arose and made a neat little speech, in which he admitted his conviction that an error had been made in the accusation of Dorn Hackett, expressed his gratification at the discovery of the new and unimpeachable evidence of the innocence of the accused afforded by his learned brother from New York, and, in conclusion, desired to move the entry of a *nolle prosequi* in the case of the People vs. Dorman Hackett. In short, never did hunter retire with better grace from a hopeless

chase. The motion was promptly granted by the court, and Dorn Hackett was a free man once again.

Lem Pawlett shouted and hurrahed at the top of his voice, defying two sedate officers of the court who sought to hush him; and many others joined in his cheers—almost all, indeed, for so fickle are the multitude, so worshipful of success, and so easily influenced by impulse, that their purposes and the currents of their feelings vary like the shifting winds. How many there were who now said that they "had always looked upon Dorn Hackett as a noble fellow, one who could not be guilty of a crime!" How many who declared they had "thought his arrest a great mistake from the first!" And they found it the easier to forgive Dorn for escaping since they had another victim in prospect, in his stead. Not even Deacon Harkins was altogether unhappy, for he still had a horrid example at whom to aim his homilies and texts. All that was necessary was to substitute the name of Silas for that of Dorn, and his stream of malignant cant flowed steadily on.

Dorn was conducted into the judge's private room, where he found Mary awaiting him with open arms, glad smiles, and tears of joy in her bright eyes. How happy and how beautiful she looked. He pressed her to his breast, again and again, with rapture: but the lovers' hearts were too full for speech. The greatest joys, like the deepest griefs, are voiceless; mere words humble, even profane them. Could those two loving ones have phrased the gratitude, to the Giver of all Good, that thrilled their souls? Ah, no! They could only kiss and be happy.

In the court-room without it was very evident that, for a time at least, there need not be any hope of doing business. Even after Lem had been silenced,—thanks not to the two sedate officers but to little Ruth, who had by this time regained all her authority—there was still kept up such a buzz of conversation, interchange of ejaculations and comments, breaking out afresh in one place as soon as quelled in another, lulling for an instant and then recommencing with even greater vigor, that the judge and prosecuting attorney pantomimed to each other that there might just as well be an adjournment until the afternoon. And after the prosecutor had laid his little sacrifice upon the altar of form, in a statement, audible only to those at his elbows, that he would not be ready until afternoon to go on with the next

case upon the docket, the judge ordered an adjournment and retired to his room.

"Well, young folks," he said cheerily, finding the lovers in each other's arms, of course, "you seem to be enjoying yourselves!"

Mary blushed and hung her head, but Dorn looked up manfully and replied, with a glad ring in his voice:

"Ah, yes, sir! I cannot tell you how happy we feel! But you, sir, may be able to know what is in the heart of a man who has been very close to a shameful death, for a crime of which he was innocent, and who is suddenly restored to life, and hope, and the love of the woman who is dearer to him than all the world beside."

"Yes, my boy," responded the good-hearted judge warmly, shaking his hand. "Yes, I do appreciate your feelings; and while congratulating you on the fortunate end of your trial, join you most heartily in thanking God that another has not been added to the already too long list of melancholy proofs of the fallibility of human wisdom in the administration of justice. But it was a providential thing for you that Mr. Holden arrived when he did, just in the nick of time."

"Indeed it was, sir. I had ceased to hope for his coming. I would like to see him before he goes away, to offer him my thanks."

"So you shall. Right away, if you wish." And stepping to the door the judge called in the little elderly gentleman, who came looking as radiant with pleasure, almost, as if it had been himself who had just escaped the gallows.

After shaking hands with Dorn, congratulating him, and receiving his thanks, Mr. Holden addressed himself to Mary and, with old-time courtesy and gallantry, made her a pretty little speech of compliment.

"You young folks intend to get married, don't you?" suddenly and bluntly asked the judge.

Mary flushed red as a peony, but smiled, and Dorn, too, felt the color rising in his cheeks as he replied, half laughingly:

"Yes, sir, if Mary doesn't change her mind."

"How is that, Mary?" demanded the judge. "Have you any notion of changing your mind?"

"Oh, no, sir," answered the girl timidly, and with an affectionate glance at Dorn.

"I should think not, from the way I found you when I came in," added the judge mischievously. "Well, you know what Franklin says, 'never put off until to-morrow what can be done to-day.' Why not get the business over right away, and complete the happiness of your day. Stand right out there before me and I'll soon—"

"Oh, no, sir," exclaimed Mary, in a half-frightened way, "Please, no, sir. I promised Ruth that we would wait for her and Lem, and we are all to stand up together."

"Ah, indeed! Well where are your friends Ruth and her lover? They ought to be here."

"I think they are in the court-room outside," volunteered Mr. Holden. "At least they were there a few moments ago, when I came in here. I have the pleasure of knowing Mr. Pawlett, and can guess the relations between him and a very pretty little girl sitting beside him."

"You know Lem?" exclaimed Dorn.

"Yes, he hunted me up in New York, and it was at his instance that I came here to give my testimony."

"And he didn't tell me a word about it when he came back; did not even come to see me—left me to imagine that he had not succeeded in finding you!"

"Ah, he followed my instructions somewhat too literally. I advised him not to tell anybody, but I did not exactly mean that he should not mention it to you. Still, the fault, if any exists, is mine. And it's all right now."

"All right? Oh, sir, how can I ever sufficiently thank you and him for what you have done?"

"You need not mind thanking me any more; and as for him, I guess he will consider the obligation squared if you facilitate his matrimonial projects by calling in him and his sweetheart, and carrying out the judge's suggestion for immediate action."

"Yes, by all means," urged the judge, "call them in, and let us have a wholesale hymenial tournament at once."

Mr. Holden looked out into the court-room, which was by this time almost emptied. Lem and Ruth were still there, however, and sturdy Mr. Merriwether, of New Haven, who was talking to Mr. Dunn; and three or four loiterers near the door; and a man who sat at the prosecutor's table, and bent over it, his head resting upon his arms.

"Come in here, Mr. Pawlett, and bring the young lady with you!" called Mr. Holden. "And step this way, if you please, Mr. Dunn, and your friend."

While the persons thus indicated came forward, the loiterers at the door, seeing no chance of their being included in the invitation, went away. When Dorn had passed through another torrent of congratulations, the judge genially resumed the direction of affairs.

"Come!" said he. "When justice gets hold of a man, she cannot let him go scot free, even if he is innocent. Something must be done to him. If we can't hang him, we must at least marry him. And as you young folks, Lemuel Pawlett and Ruth—I haven't yet been told the rest of your name, Miss."

"Ruth Lenox, sir."

"Ruth Lenox, eh? A very pretty name—almost worthy of so pretty an owner. Very well; as you, Lem Pawlett—and you, Ruth Lenox, have confessedly aided and comforted Dorn Hackett in evading the fate that a very blind justice had marked out for him, it is deemed right and proper that you should suffer with him."

Lem and Ruth, knowing nothing of what had transpired before they entered the room, and not half understanding the judge's rapid and somewhat figurative language, looked very much puzzled and even a little alarmed.

Mary led her friend to one side, and the two girls held a little whispered consultation together, from which they returned blushing, but apparently resigned, for each placed herself beside her lover. Then the two couples ranged themselves in order before the judge, who, dropping his jocose manner, and with the gravity befitting so solemn a ceremonial as that of uniting two human lives "until death does them part," proceeded to make the lovers husbands and wives.

Then the judge resumed his jovial mood, and claimed as his fees the first kiss from each of the brides, and Mr. Holden and Mr. Merriwether followed suit, and Mr. Dunn was very certain not to let himself be forgotten when any such fun as that was going on. There was a great deal of hand-shaking, and expression of kind thoughts and good wishes all around. And amid all this happiness nobody noticed for some little time that the man, whom Mr. Holden had seen bowed over the prosecutor's table, had arisen, come forward, and was standing in the door. A weak, trembling old man he was, with thin, deeply furrowed face, and a sad, weary look in his eyes. It was Peter Van Deust.

"I suppose," said he, speaking in a slow, meditative way, and with a weak, quavering voice, "that I have no right to come here as a kill-joy among you. Love and youth were done with me long ago. The first I drove from me, and the second left me. I can no more call back one than the other, now. If Jacob were alive to-day, he'd be more at home among you than I am."

He paused a moment, sighed deeply, passed a tremulous hand over his eyes, that were full of tears, and continued:

"But I feel as if I ought to speak to you, to two of you at least, and—beg your forgiveness. I erred, and I'm sorry. I ain't what I used to be; my head's failing me, a little, sometimes, I guess. But they've got the right man now, haven't they? They've got him at last! And they'll hang him, won't they?"

His voice was becoming momentarily more shrill, and his manner more excited. Mr. Holden took his hand with a gentle, sympathetic pressure that seemed to recall him to himself, and in a lower tone, half-choked by a sob, the poor old man exclaimed:

"Oh, you don't know how I miss Jacob! I didn't know how much he was to me, how much we had grown together, until I lost him! He was so good, so kind! Ah! If I had been more like him, people would feel for me now more than they do. But it has taken me all my life to learn that love is better than gold."

Sadly and slowly he turned and moved away, through the deserted courtroom and the crowded street—lonely alike in both—to his desolate home, from which, thereafter, he was seldom seen abroad. But the lesson that it had taken him all his life to learn, he did not forget; for, when they laid him down by Jacob's dust—ere again the trailing arbutus put forth its fragrant blossoms beneath the dead leaves of the forest—and read his will, they found that he had left all he possessed to Mary Wallace, "for the sake of the kindly love my dear brother Jacob bore for her in memory of her mother."

What need can be to say the rest? how justice laid her heavy hand upon profligate young Silas Thatcher, and his doom was that his father had foretold; how Dorn entered into partnership with Mr. Merriwether, who proved his staunch and life-long friend; how faithful Lem Pawlett flourished, and how happy Ruth and Mary were. The interest of our story is done. Even justice, good deeds, calm joys, and placid lives are tame to tell.

THE END.

FOOTNOTES:

- [1] The intermediate regiments were raised in Boston, Philadelphia, and in Ohio.
- [2] Sam was a member of the 7th regiment, and in battle was distinguished for his bravery. He was killed Oct. 27, 1864, in the battle near "Kill House," Va.
- [3] A much larger number of slaves had been received at the barracks, but the great majority, being non-combatants, had been transferred to other points.
- [4] The rights of dramatization of this story are reserved by the author.
- [5] Copyright, 1888, BELFORD, CLARKE & CO.

Transcriber's Notes

Obvious typographical errors have been repaired, but archaic spellings and grammatical usages have been retained.

Both "have'nt" and "haven't" were used in the text—standardized to "haven't."

Both "its" and "it's" were used for "it is" in the text—standardized to "it's."

P. 408-409, "who, like you, have no without a blush for what they are"; the page break was after "no", with possible loss of content, making this sentence difficult to interpret.

*** END OF THE PROJECT GUTENBERG EBOOK BELFORD'S
MAGAZINE, VOL. II, NO. 3, FEBRUARY 1889 ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.